

Bahir Dar University

Law Faculty Distance Education Program



Constitutional Law I

By: Belachew Mekuria
(LLB. Msc, LLM candidate)
Editor: Muluneh Worku
Belayneh Ketsela

MODULE I 4

**INTRODUCING THE CONCEPTS OF CONSTITUTIONAL LAW, ETHIOPIAN
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Module I

Introducing the Concepts of Constitutional Law, Ethiopian Constitutional Law Development & Constitutional Making Process

Chapter I: Conceptual Background

1.1. Introducing the Course

Dear student, welcome to this course which I will be bringing to your attention. The course is classified in to two wide parts: Constitutional Law I & II. As you know, constitution is a fundamental law of states that defines, classifies, and limits the powers of governments. And it is a basis for all other laws to be issued by an organ to be established by this same law-popularly known as the mother of all laws. It is, therefore, not easy to cover all the ideas relating to this body of law under one course justifying its grouping in to two parts.

Constitutional Law I is meant to give elaborations on the concepts of Constitutional Law, the History & Making of Constitutions, its Features and Principles, Systems, Forms and Organs of Governments. Whereas, Constitutional Law II is totally devoted to the treatment and explanations of one of the Fundamental Principles of Constitutions, i.e., the Fundamental Rights & Freedoms as enshrined under Chapter III of the FDRE Constitution and other international human rights instruments. There will also be a part to consider Interpretation & Amendment of Constitutions and an Overview of States' Constitutions. As these catalogues of Rights and Freedoms are being given

special significance and extensive treatment in our current Constitution, there is a need to see them in detail which compels us to earmark one part of the course to them.

A minimum knowledge of Constitutional Law is a requirement for any citizenry as it is a law laying down the relationship of everybody with the government, not to mention its contents that guarantee the rights and freedoms of everyone. The expectation is that every act-governmental, non-governmental or private-should conform to what is provided in the text of the constitution justifying the need for a basic knowledge in everyone's mind about it. Because it is only this way that there could be constitutionalism, in the absence of which one can hardly say that there is a constitution in that particular country where measures can be taken in disregard to the fundamental law, the constitution. As a law student (or a student taking law as a minor area of study), therefore, you need to have even much deeper knowledge of Constitutional Law.

Each part of the course has 3 credit hours, which means that you will have to spend nearly 144 hours (the normal face-to-face credit requirement of 48hrs times 3) reading the text, attending tutorials, handling discussions with your friends and working on the review questions that I have put at the end of each chapter. I strongly advise you also to have at least the FDRE Constitution and a standard dictionary whenever you engage yourself in reading this distance material. When and if I consider it necessary to have the specific provision reproduced in the material, I will do so relieving you of the burden of turning the pages of the Constitution on. I wish you a fruitful study of this Part of the course.

Objectives:

After completing your readings of Constitutional Law I course material you will

- ❖ know the concepts, history and the making of Constitutions,
- ❖ understand the features and principles of Constitutions,
- ❖ grasp the basics of forms, systems and organs of governments,
- ❖ understand the interpretation and amendment of Constitutions and
- ❖ Acquire the basic knowledge of states' Constitutions.

1.2. Introducing Module I

Dear Student, in this first Module, I will take you to the concepts of constitutional law and then I will treat its historical development in Ethiopian context. Finally there is a chapter allocated for discussions on how constitutions are made. The concepts will acquaint you with the skeletal aspects of all constitutions and you will be able to read and understand texts relating to constitution. Specifically, you need to know what a constitution is all about before reading about it. Moreover, there are few concepts that often better be described in relation to constitutional law course than anywhere else. History, on the other hand, is the best tool to have a distinct knowledge of today since it opens up the forum for making a comparative analysis of the present status quo with that of yesterday. This will put you in a position to go deep in to the basics of the subject matter and critically analyze what a constitution ought to include to stand alive even in the face of various political, economic or social variations.

Module Objectives:

A student who has read this part will have

- ⇒ A clear knowledge on few concepts relating to constitutions,

- ⇒ An understanding of the historical background of Ethiopian Constitution, and
- ⇒ A distinct idea on the making of constitutions.

1.3. Defining a Constitution & Constitutional Law

In this subsection we will try to define constitution and constitutional law. Dear friend, what does a constitution sound to you? In an ordinary parlance, people use the term 'constitution' to mean the governing document of their association. In fact, they consider it as the rule of the game for the 'play' they are going to perform. This is not as such devoid of any form of truth in the path of understanding what a constitution is. However, when it is applied to a concept having both legal and political significance, it goes beyond what private persons agree for themselves. Following are few definitions that will help you understand its meaning.

'A constitution is a body of rules that express the wishes and whims of the people who make it with regard to the type and powers of the government through which they decide to be represented.'

Dear friend, I am going to pose few questions for you once you finish re-reading this definition.

☞ Who should make the constitution, according to this definition?

☞ What do the rules in a constitution, according to this definition, mainly purport?

Before reading this part, please compare your answers with that of your friend for the above queries and check if you have succeeded in answering them similarly.

Then read the following. According to the above definition, a constitution is viewed as the expression of the people's wish. Therefore, it must be made by the people themselves who are the only true sources of their own wishes. If, however, a constitution is to be made by experts who think that they know what the people in that country wish, then it violates the basic definitional element of a constitution irrespective of the ability of the speculators in properly addressing those wishes.

Such rules which reflect the wishes of the people mainly address, according to this definition, the type of government that they want to put in place as well as the powers of same. Thus, the main object of a constitution is instituting the government together with defining its power. Dear student, did you succeed in responding to the queries above? Great!

Even if it is believed that the makers of the constitution are the people in the particular country concerned, the processes in having the final work may, nonetheless, follow very complex procedures. In such processes, the people may not, sometimes, play an active role by direct involvement. Moreover, beyond and

above the role that it plays as a document that institutes a government together with defining its powers, there are other important issues that it addresses. For instance, the basic rights of the people, which are usually made part and parcel of the constitution, are meant to serve as 'contractual terms' between the government and its subjects. These and other aspects of a Constitution seem to have been overlooked by this definition. Let's read another definition:

'A constitution is a fundamental law by which the powers of the government are being defined and limited.'

✍ Read closely this definition and see it in comparison with the first one. What does it miss from and/or add to what we have seen above?

Unlike the former definition, the later does not state as to who may make a constitution. However, it has brought in to our attention the fundamentality of a constitution which in fact is correct. By 'fundamental' we mean that a constitution is the basis for all other laws and that is why we call it 'the mother of all laws'. Furthermore, the definition explains the contents of a constitution to be defining and limiting the powers of the government. Thus, what it has in it is only the powers of the government which need to be defined and limited.

When we look to this definition very critically, we can say that it is too limitative a definition restricting the contents of a constitution only to few parts that this basic politico-legal document is supposed to have. Not to mention what we have

said above concerning the rights and freedoms of the people, a constitution also lays down such things as state structure and forms of government, basic constitutional principles, amendment procedures, etc. Therefore, such a narrow definition may have the risk of uncovering the relevant aspects of a constitution.

Let me give you a third definition and then we will try to wind up our discussion of this subsection. 'A constitution is the whole system of government that establishes and governs the government.'

My dear friend, did you read this definition? What distinguishing features does it sparkle in your mind when you see it in light of the other definitions? What is a constitution, according to this definition? And can you tell me what it is not?

When simply put, a constitution is a system of government. And the whole purpose of it is to establish and govern the government. Still one may mention the above comments relating to the second definition where we said that it was too narrow a definition failing to confer proper meaning for what a constitution is. When you look at it, a body of rules that does not establish and come up with rules to regulate the government would not be named as a constitution. We may agree with this fact since a constitution is actually meant to establish and govern the powers of the government within the confines of some defined principles and terms. Nonetheless, there are lots of other factors that need to be addressed by this fundamental document.

✓ All the above definitions put together will only give us the essence of a constitution and the fact that it is not easy to come up with a single definition for it. Basically, it is meant to address the wishes of the people in a country as to what form of government to have, the powers of such government, the division of its powers among the various state organs, the guarantee of the people's rights and freedoms which will serve as contractual terms, for a government that keeps them to remain in power, or for the one which readily defaults to be removed by the subjects of these rights. In addition to that one has to bear in mind the fundamentality aspect of the constitution.

Constitutional law, which is a continuation of what we have discussed above, is that branch of public law that governs the interplay of the government in relation both to the public as well as within its subdivisions. It is the fundamental national law of states by which they institute state organs, lay down the basic enforceable norms and other general principles that are meant to guide the ordinary laws to be issued. Most importantly, the rights and freedoms of the people are dogmatically phrased in the constitutional law indicating their scope and the possible restrictions that may be imposed through special laws. Thus, constitutional law is a law that sets the whole system of government in motion within clearly defined play yards and rules of the game as stipulated in the same law.

When a constitution is used rather narrowly to refer to a single authoritative document, the aim of which is to codify major constitutional principles, it constitutes the highest law of the land, known as constitutional law. Since it is

not possible to cover all constitutional provisions in a single document, a constitution is not, *ipso facto*, coextensive with constitutional law.

As is true for any ordinary law, it needs interpretation, modifications, and application. However, the interpretation, amendment procedures and its applications have unique characteristics than what we see in all other branches of the law. We will be treating all such distinguishing features as we go along the course.

1.4. Some concepts relating to Constitution

There are few concepts that best be treated in relation to constitutional law study than any other courses. They impinge, one way or another, upon constitutional law adoption, application and analysis. The most important ones are the concept of State, Nations, Government, Democracy and Sovereignty. We shall look at each of these concepts briefly in the following subtopics.

Objective:

After going through this subsection the student will

- be able to analyze the basic ideas of state,
- have the ability to describe what distinguishes a state from a nation,
- define government,
- be in a position to write about the concept of democracy,
- be able to analyze the various forms of sovereignty.

1.4.1. State

My dearest friend, what comes to your mind when you hear the word 'State'?

Would you please write few lines that you think best describes state for you?

Did you write something? Great, and don't ever try to be precise whenever I ask you to write something. Everything will be clearer afterwards if you just attempt whatever you feel forthwith.

A state is better felt than defined since it exists in every human activity either as an active player or at least as a supervising organ. These activities could range from those having communal character up to strictly private affairs. For instance the state has a say in education, development, defense and so forth. Moreover, marriage, divorce, adoption, etc have also pass through the state's regulation, one way or another. Thus, it is not a surprise to see that most of the teachings relating to politics and law relate to the institutional set up, the powers and functions of the state, both what is and ought to be. And most of the contentious issues pertaining to state powers are to be resolved in a constitution of a country. That is why it is worthwhile to define a state and understand its meaning as one of the important concepts in this constitutional law course.

* A state is a political institution that establishes *sovereign* jurisdiction within *defined borders*, and *exercises authority* through a set of *permanent institutions* which are recognizably *public*.

According to this definition, therefore, a state has five features: first and foremost it has a sovereign power over all individuals and groups where it has

won political supremacy. Secondly, such sovereign power is to be exercised within a defined territory which should be measurable and recognizable by other states. The third feature is that the state should have a dominant exercise of power which must be, if worse, backed by coercion. This is to mean that the state must have monopoly in using coercion to secure compliance to its laws and standards that address the common good. Fourthly, the exercise of power is done through its permanent institutions. And finally such institutions are, in contrast to the private institutions such as family and civil societies, recognizably public, in the sense that they address the public interest and are financed by the public money.

Dear student, have you understood what a state is and its five definitional features? Would you please try to respond to the following few questions before you go on to the next subtopic?

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Exercise I.

1. What do you understand by the term sovereign when we say that the 'state has sovereign power over all individuals and groups'?

2. What makes a state different from civil societies?

3. What do you think is the purpose of putting as a precondition for the existence of an entity as a state to have its own defined territory?

1.4.2. Nation

Our next discussion will be to see what a nation is. It is not unusual to find the use of state, nation, country, ethnic group and race interchangeably. However, these have deep distinctions. Nation and nationalism have won a tremendous attention worldwide and the cause for widespread disputes justified by nationalism is mainly attributed to the misunderstanding as to the exact meaning of a nation.

Dear my friend, what is a nation for you? Would you express what you feel about it on a piece of paper before reading what I have put below?

'Nation' is a derivative of a Latin word, 'nasci' to mean 'to be born'. It is a very complex phenomenon describing interplay of cultural, political and psychological factors.

❖ *Culturally*, a nation is a group of people bound together by a common language, religion, history and traditions.

- ❖ *Politically*, a nation is group of people who regard themselves as a natural political community.
- ❖ *Psychologically*, a nation is a group of people distinguished by a shared loyalty or affection in the form of patriotism. However, such an attachment is not a necessary condition for membership of a nation; even those who lack national pride may still recognize that they 'belong' to the nation.

Thus, such objective and subjective elements involved in the definition of a nation make the concept much more complex. Objectively speaking, every nation has its own peculiarities by exhibiting common language, culture, religion, etc. However, it does not end here. They also, subjectively speaking, have a psychological tie to be political entities within a group that shares such common cultural values. Thus, the members in a nation, regard themselves as a nation, a collectivity, a distinctive political community. This, however, is not the case in other groupings such as ethnic group. An ethnic group, though shares a common identity and patriotism-the objective element-they still lack a common political aspiration.

Dear my friend, are you clear with the meaning of a nation?

?

Exercise II.

1. What is the difference between a state and a nation?

2. Describe the three factors that are involved in defining a nation.

3. What is a nation-state?

1.4.3. Government

Now we are going to see the third concept relating to Constitution and Constitutional law. Government is a very common word as are state and nation. Again I will give you the opportunity to say what you feel in few words about this concept as well. What does government sound for you?

Broadly speaking 'to govern' means to rule or to have control over others. Government therefore can be taken to include any mechanism through which ordered rule is maintained, its central features being the ability to make collective decisions and the capacity to enforce them. A form of government can thus be identified in almost all social institutions: families, schools, businesses, trade unions and so on. However, the latter type of situations could properly be

named as institutions of governance. Government is more commonly understood to refer to the formal and institutional processes that operate at the national level to maintain public order and facilitate collective action. The core functions of government are thus to make law (legislation), implement law (execution) and interpret law (adjudication).

Dear student, it is really worthwhile to see the distinction that a government has from a state since these two are often confusing. Before reading the following keynote, think of the relevant distinction of the two by yourself.



The principal differences between government and state are the following:

- ✚ The state is wider than government. The state is an inclusive association that encompasses all the institutions of the public realm and embraces all the members of the community (in their capacity as citizens). Government is part of the state.
- ✚ The state is a continuing, or even a permanent entity. Government is temporary: governments come and go, and systems of government can be reformed and remodeled.
- ✚ Government is the means through which the authority of the state is brought into operation. In making and implementing state policy, government is 'the brain' of the state and it perpetuates the state's existence.
- ✚ The state exercises impersonal authority. The personnel of state bodies is recruited and trained in a bureaucratic manner and is (usually) expected to be politically neutral, enabling state bodies to resist the ideological

interests of the government of the day.

- ✚ The state, in theory at least, represents the permanent interests of society. That is, the common good or general will. Government, on the other hand, represents the partisan sympathies of those who happen to be in power at a particular time.

There exist various forms of governments based on the classifications adopted from the ancient political philosopher Aristotle. His refined classification of governments in to six varieties has been adopted by many writers. Look into this table very closely.

A figure Adopted from Andrew Heywood (Politics 1997; 27)

		Who Rules?		
		One Person	The few	The many
Who Benefits?	Rulers	Tyranny	Oligarchy	Democracy
	All	Monarchy	Aristocracy	Polity

According to this classification, tyranny, oligarchy and democracy are forms of government where a single person, the few or the many exercise power in their own interests and at the expense of others, respectively. Whereas, monarchy, aristocracy and polity are preferred forms of government where a single person, the few or the many exercise power in the interest of others.

1.4.4. Democracy

As is true for many of the political science and legal terms this well known term-democracy-is also derived from the ancient Greece. It is a combination of two terms; Demo, 'demos' in Greek and 'Cracy', 'cratos' in Greek. The later-as in cases of autocracy, aristocracy and bureaucracy-refers to power or rule. When it comes to the former it refers to 'the people' although originally the Greeks used this to mean 'the poor' to 'the many.' When read together it tantamount to saying 'rule by the people.'

I am sure that you have heard of this word almost daily through the media. All countries of the world claim to be democratic and speak of it as basic virtue of any government. To that extent it is being given varied meanings and definitions that one way or another relates it with what has been said above. The problem with such popularity of concepts is that they may mean anything for organ or person that defines them. That is why a writer has once described the threat as, 'a term that can mean anything to anyone is in danger of meaning nothing at all.' The following meanings are being accorded to democracy by different politicians and scholars:

- A system of rule by the poor and disadvantaged,
- A form of government in which the people rule themselves directly and continuously, without the need for professional politicians or public officials,
- A society based on equal opportunity and individual merit, rather than hierarchy and privilege,
- A system of welfare and redistribution aimed at narrowing social inequalities,
- A system of decision-making based on the principle of majority rule,

- A system of rule that secures the rights and interests of minorities by placing checks upon the power of the majority,
- A means of filling public offices through a competitive struggle for the popular vote,
- A system of government that serves the interests of the people regardless of their participation in public life.

Rather expressive and short description of the nature of democracy had been given by Abraham Lincoln in 1864 and it goes “government of the people, by the people, for the people.” It is crucial to answer the following three important questions in understanding the nature of democracy: who are the people, in what sense should the people rule, and how far should popular rule extend?

It must be clear by now that democracy implies power distribution. For early Greek writers the ‘demos’ represented the disadvantaged and propertyless masses. Whereas others understood ‘the people’ as enshrined in democracy to mean the general will or collective will. Finally, the people can be thought of as a collection of free and equal individuals, each of whom has a right to make autonomous decisions.

Dear student, what type of difficulties do you see in these three ways of addressing ‘the people’ for the purpose of understanding ‘democracy’?

To begin with, to consider only the poor as having a say implies a bias to such group of the society based on their lack of material wealth and there is no any rational ground to do so. When it comes to the second view where the people refer to the majority, there is a tendency for the tyranny of the majority, in which the will of the majority or numerically strongest overrides the will of the minority. When we see the third and the final view it tends to imply that only unanimous decisions can be binding upon the demos, and so dramatically restricts the application of democratic principles.

The core principle of democracy is thought to be 'political equality'. In broad terms this is to mean an equal distribution of political power and influence. Political equality ensures, however the 'people' is defined, each individual member carries the same weight: all voices are equally loud. This can be understood in two ways. In liberal democratic theory, political equality implies an equal distribution of political rights: the right to vote, the right to stand for election and so on. This is often summed up as the principle 'one person, one vote; one vote, one value'. In contrast, socialists, amongst others, link political influence to factors such as the control of economic resources and access to the means of mass communication. From this perspective, political equality implies not merely equal voting rights, but also a significant level of social equality. Where there exists political equality, therefore, there is democracy and thus distribution of political power as widely as possible.

The second important question is how should the people rule in an atmosphere of political equality? If we say that democracy is government by the people, then people govern themselves by participating in the making of crucial decisions that structure their lives and determine the fate of their society. This participation

may, however, take two basic forms. In the case of direct democracy, popular participation entails direct and continuous involvement in decision-making, through devices such as referendums, mass meetings, or even interactive television. The alternative and more common form of democratic participation is the act of voting, which is the central feature of what is usually called representative democracy. When citizens vote, they are not making the decisions that structure their lives; rather they choose who will make those decisions in their behalf. What makes voting democratic is that it makes the officials publicly accountable and enables the public see that the office-holders are there discharging their duties in accord with their wishes.

Now that we have decided who the people are, and how they should rule, it is necessary to consider how far their rule should extend. What is the proper realm of democracy? What issues is it right for the people to decide, and what should be left to individual citizens? With this regard, the models of democracy that have been constructed on the basis of liberal individualism have proposed that democracy be restricted to political life, with politics being narrowly defined. From this perspective, the purpose of democracy is to establish, through some process of popular participation, a framework of laws within which individuals can conduct their own affairs and pursue their own private interests. Democratic solutions, then, are appropriate only for matters that specifically relate to the community; used in other circumstances, democracy amounts to an infringement of liberty.

However, socialists and radical democrats have an opposing view to this answer to our third question that relates with the proper realm of democracy. According to, for instance, radical democracy proponents, democracy is seen not as a means

of laying down a framework within which individuals can go about their own business, but rather as a general principle that is applicable to all areas of social existence. People are seen as having a basic right to participate in the making of any decisions that affect their lives, with democracy simply being the collective process through which this is done. This position is evident in socialist demands for the collectivization of wealth and the introduction of workers' self-management, both of which are seen as ways of democratizing economic life. Instead of endorsing mere political democracy, socialists have therefore called for 'social democracy' or 'industrial democracy'.

Dear student have you understood clearly the three basic questions of democracy and their answers? Let's try to check your understanding through some exercise questions.

Exercise III.

1. Define, in one sentence, the term 'democracy.'

2. How did Abraham Lincoln define democracy?

3. What are the three basic questions that serve as tools in understanding the nature of democracy?

4. Give brief explanation for political equality.

5. Distinguish between direct and representative democracy.

6. What is the difference between liberal democracy and radical/socialist democracy?

1.4.2. Sovereignty

Dear student what do you understand by the term 'sovereignty'? Have you ever heard of it?

Sovereignty, in its simplest sense, is the principle of absolute and unlimited power. It could be described either as internal or external sovereignty,

parliamentary or popular sovereignty. By internal sovereignty we are referring to the notion of a supreme power/authority within the state, located in the body that makes decisions that are binding on all citizens, groups and institutions within the state's territorial boundaries. When it comes to the external one it is also termed as territorial sovereignty and refers to a state's place in the international order and its capacity to act as an independent and autonomous entity. The peace treaty of Westphalia in 1648 established the notion of territorial sovereignty as a doctrine of non-interference in the affairs of other nations.

Parliamentary sovereignty, as followed by such countries of the world as the UK and New Zealand, is a concept in constitutional law that applies to situations whereby a legislative body has absolute sovereignty, meaning it is supreme to all other government institutions (including any executive or judicial bodies as they may exist). Furthermore, it implies that the legislative body may change or repeal any prior legislative acts. Parliamentary sovereignty contrasts with most notions of judicial review, where a court may overturn legislation deemed unconstitutional.

Finally, by popular sovereignty we are referring to the situation where the sovereign power holders are the people and not the parliament or any other organ. This is described in our FDRE Constitution Article 8:

Article 8: Sovereignty of the People

1. *All sovereign powers reside in the Nations, Nationalities and Peoples of Ethiopia.*
2. *This Constitution is an expression of their sovereignty. Their sovereignty shall be exercised through their representatives elected in accordance with this Constitution and through their direct democratic participation.*

Dear friend, what does this provision imply for you as far as the various notions of sovereignty are concerned? Have you seen that popular sovereignty has been recognized by our Constitution? Great!! The Ethiopian people-the nations, nationalities and peoples-are described to have the ultimate power in all the acts of the government and such power is primarily exercised, unlike the case of direct democracy, through their elected representatives. This reflects also the notion of representative democracy. In addition to that such popular sovereignty is stated to have been expressed by the Federal Constitution as well as through direct participation in the acts of government.

In federal state structures such as ours, sovereignty also refers to powers which the state governments possess independently of the central/the federal government, in the sense that the federal and the state governments have their own defined jurisdictions as described in the federal constitutions that both have agreed to. Any deviation from those specifications will tantamount to infringement of sovereign powers. Thus, the federal constitution is like a pact that the central and the federated units have put as the rule of the game for their continued and coordinated existence.

? Exercise IV.

1. State few examples where, in Ethiopia, representative and direct democracy are being exercised by the people.

2. Describe the three basic expressions of the sovereign power of the people in Ethiopia.

3. What are the various forms of sovereignty and which type of sovereignty has been adopted by the FDRE Constitution?

1.5. Constitution and Constitutionalism

So far we have been discussing the various notions that relate with constitutional law studies. These concepts are very relevant in the understanding of constitutional law provisions. In this subtopic we shall be looking into the relationship of constitution and constitutionalism in brief. The fact that a country has come up with a constitution does not mean that it governs itself up to the standards that constitutionalism expects. For a constitution to have any meaning, it must be tuned with constitutionalism. The concept is very important as far as constitutional law study is concerned. Read the following box.

Σ

Constitutionalism, in its narrow sense, is the practice of limited government ensured by the existence of a constitution. Thus, constitutionalism can, in this sense, be said to exist when government institutions and political processes are

effectively constrained by constitutional rules. More broadly, constitutionalism is a set of political values and aspirations that reflect the desire to protect liberty through the establishment of internal and external checks on government power. In this sense, constitutionalism is a species of political liberalism. It is typically expressed in the form of support for constitutional provisions that achieve this goal: for example a codified constitution, judicial review, a bill of rights, a separation of powers, bicameralism, and federalism or decentralization.

Dear student, which of the above examples fall within internal and external checking mechanisms?

Separation of powers could be taken as the best example that serves as an internal checking mechanism to ensure constitutionalism in a particular country. The existence of judicial review, a constitution, a bill of rights, bicameralism, and decentralization may be taken as external checking mechanisms.

As is said above the fact of having a constitution may not, therefore, lead us to conclude that there exists a constitutional government unless the constitution has the character of limiting the government power through these internal and external checks on the exercise of government power.

Conclusions and Review Questions:

We have started our studies of constitutional law by introducing the course, its importance and why it deserved wider coverage in the legal education institutions. Defining constitution itself is not an easy venture. The existence of varied definitions that have been forwarded by scholars proves that there exist no single definition that may be applied invariably in all jurisdictions. Rather, it becomes more or less simple to get consensus on the basic features of constitution and constitutional law.

Constitutional law study makes it indispensable to treat some fundamental politico-legal concepts that one way or another relate with this subject matter. As we have considered in depth, state, nation, government, democracy and sovereignty are some of the few concepts that a constitutional law student must have a clear idea about. Sometimes the first three concepts have been interchangeably used, though unduly. It is undue because they are meant to address completely separate ideas. A state is a legal entity that has personality in the international plane while a nation is a group of people that have a culturally and psychologically explained bondages and nation can exist without the existence of state while the converse may not be possible. Government is, on the other hand, an ambassador for the people who are living within a particular state. And it is one of the defining factors for the existence of a state together with defined territory, population, and sovereignty which is a follow up of recognition by the international community as having fulfilled the requirements for statehood.

As far as democracy is concerned it is meant rule by the people the basic principles of which could be summarized as citizen participation (either direct or indirect), political equality, tolerance, accountability, transparency, regular, free and fair elections, recognition and protection of bill of rights, and the rule of law. Our Constitution under Articles 8, 12, 13, 38, and 78 one way or another has addressed these virtues of democracy. Dear student you are strongly advised to go through these provisions and see how the FDRE Constitution tried to treat them.

Sovereignty is the fact of being endowed with the ultimate decision making power which is more often than not addressed by the fundamental laws of countries-the constitution. Of the various options of leaving sovereign power, our Constitution under Article 8 has made the Ethiopian Nations, Nationalities and People to be the ultimate sovereign power holders as expressed through the FDRE Constitution, their direct and indirect participation in the day-to-day tasks of government.

Exercise V. Review Questions:

1. One of the following may not be cited as an example for representative democracy:
 - a) Referendum,
 - b) Athenian Democracy,
 - c) Periodic elections,
 - d) Public discussions on pieces of legislations before their promulgation by the concerned body,
 - e) **a & b are answers.**

2. Which one is not an external checking mechanism of government's power?
 - a) Decentralization,
 - b) Separation of powers,
 - c) Judicial review,
 - d) Bill of rights.

3. One of the following explains the Ethiopian Constitution relating to sovereignty:
 - a) Parliamentary Sovereignty,
 - b) Federated states' Sovereignty,
 - c) Monarchical Sovereignty,
 - d) Popular Sovereignty,
 - e) b & d are the right answers.

4. Which one of the following is true for radical/socialist democracy?
 - a) It supports social and industrial democracy,
 - b) It supports democracy in the realm of politics and no more,
 - c) It is similar with liberal democracy,
 - d) All are false.

5. One of the following is true about state and nation:
 - a) A nation may not exist without a state,
 - b) A state may exist without even a single nation,
 - c) A state may not exist without at least a single nation,
 - d) 'Only one nation for the entire state is a reality everywhere in the glob.
 - e) No correct answer is given.

6. One of the following is not given in the FDRE Constitution as expression of the sovereign power of the Nations, Nationalities, and People of Ethiopia:
- a) The Constitution itself,
 - b) Through the representatives whom they elect periodically,
 - c) Through direct exercise of their sovereign power in such instances as public discussions on piece of legislations,
 - d) All are answers,
 - e) None of the above is an answer.
7. One of the following is the strength of direct democracy:
- a) It offers a practicable form of democracy, especially for today's society,
 - b) It relieves ordinary citizens of the burden of decision-making, thus making possible a division of labor in politics,
 - c) It allows government to be placed in the hands of those with better education, expert knowledge and greater experience,
 - d) It maintains stability by distancing ordinary citizens from politics, thereby encouraging them to accept compromise,
 - e) It heightens the control that citizens can exercise over their own destinies, as it is the only pure form of democracy,
 - f) It creates a better-informed and more politically sophisticated citizenry, and thus it has educational benefits,
 - g) It enables the public to express their own views and interests without having to rely on self-serving politicians,
 - h) It ensures that rule is legitimate in the sense that people are more likely to accept decisions that they have made themselves,

- i) a, b, c, & d are correct answers,
- j) e, f, g, & h are correct answers.

Chapter II

Historical Development of Ethiopia's Constitution

2.1. Introducing the Chapter

Dear student we are now going to see the brief account of Ethiopia's Constitution in retrospect. This will enable us to understand better today's situation as we will have information at hand to compare it with the past and as the historical facts are the foundational inputs for the present. For the purpose of Ethiopia's constitutional law development discourse, it is usual to classify the past into five periods; the pre-1931, the period of the 1931 constitution, the period for the 1955 Revised Constitution, Derg's period and post 1991. These have been the periods ranging from the ones that we have been listed as a country without a written constitution up to those we have introduced a federal constitution in to our system of government.

Constitutional development usually follows the social, political and economic development pattern of the particular society. Where we had lower social values were dominated about religion and Solomonic legends, we have had an absolute monarch that claimed Devine power and who reduced the legend in to a constitutional text. Where we had socialistically tuned political philosophy we have had a constitution that basically addressed the socialist values and principles. Basically, the chapter tries to address Ethiopia's constitutional law development beginning from the time that the country has adopted a written constitution.

Objectives:

After reading this part of the module the students will be able to:

- Describe the Ethiopian constitutional law context of pre-1931,
- Understand the basic elements of the first written constitution of the Ethiopia,
- Analyze the reasons for the revision of the 1931 Constitution in 1955,
- Explain the historical happenings before and after the 1987 Derg's constitution,
- Discuss the transitional period charter and the steps taken in adopting the current Constitution,
- Answer any theoretical as well as practical questions relating to Ethiopia's constitutional law development.

2.2. The 1931 Ethiopia's Constitution

Before the adoption of this Constitution, the country did have governments after governments with their own systems. Even if there were no written texts about these systems, they were functioning as well as any other system could with a working and written constitutional text. The pillars of the then governments, which had been traditional and absolute monarchies, were three; Might, religion and Kinship claims. These had been serving for assuming office, for running it and loosing it as well.

In no time in Ethiopia's history there had been peaceful transfer of power. So, might has been playing a central role in assuming and maintaining government power during those days. Moreover, religion and state had been functioning hand in hand that assumed for long a quid-pro-quo type of relationship. Most of the Emperors had been using the Ethiopian Orthodox Church as one of the basic

ideological weapons to backup their power. And in return for that the Church was benefiting from the government budget as a single state religion. Therefore, the Church had also been a functioning element of the government system during that era.

Till it had got its final and conclusive resolution by the first written constitution, the kinship claims for Kingships and other higher offices of government had been given higher significance. Those nearer to the Crown, who himself must have had some kind of linkage with his former, would have had the chance to join the club in the ruling class. It was Emperor Haileselassie I who gave this kinship claim a constitutional basis so that government power should remain perpetually in himself and his descendants.

Therefore, these three aspects of life had influenced the unwritten government system pretty much in its making and day-to-day running. That is why Clapham had written 'if a constitution is defined not as written document but as set of practices which guide the exercise of political power, then Ethiopia enjoyed constitutional government over a long period.' And it is very important to note that a constitution, for it to be named as such, need not be written as there are few countries of the world which do not have a written constitution to date, one of which is the United Kingdom.

Dear student, it is good to know the basics of why Emperor Haile Selassie came up with the idea of 'granting' this constitution to the people of Ethiopia. The interest for centralized Ethiopia and the introduction of modern government system did lie behind the 1931 and the first written constitution of the country. With its very few Articles-only 55-many issues of contending nature had been addressed. Principally the inclusion of the first chapter with five articles with an

exclusive treatment of the Emperor's power and the matters relating to the succession to the throne marked the culmination of the disputes on the candidacy to the kingship. Under Article 3, it was stated, 'the imperial dignity shall remain perpetually attached to the line of His Majesty Haile Selassie I, descendant of King Sahle Selassie whose line descends without interruption from the dynasty of Menlik I, son of King Solomon of Jerusalem and of the Queen of Sheba.'

This, therefore, had assured the other claimants of the throne that they never get it, even for 'eternity.' And the provisions in the constitution had been designed in such a way that the Emperor remained to be the central role-player in all matters of government. This way, government power was made to be highly centralized.

The other motive behind the constitution, i.e. introducing modern government system had been expressed through such matters as the establishment of a legislative organ. This was, in return, motivated by the wish that the Emperor had for elegance in the international forum where the country was, when it joined the League of Nations, accused of being uncivilized because it had still embraced slave trade as national practice. Thus, to address such blasphemy, the Emperor was committed to make internal adjustments.

The first parliament was introduced to the country with two chambers. These were the Chamber of Deputies and Senate. According to the Constitution, however, these organs only had advisory role to the Emperor's ultimate law-making power. According to Article 31, members of the Senate were to be appointed by the Emperor from among the nobility and the local chiefs. When it came to the Chamber of Deputies, they were to be chosen by the nobilities and

the local chiefs. This was of a great achievement for its time though it meant little or nothing as far as modern, deliberative and democratic law-making processes.

The inclusion of Chapter III that treated some rights and freedoms of people was also another sign of modernity together with the introduction of the ministerial system that are accountable both individually as well as collectively to the Emperor. All these combined, gave the country a better picture to the international community.

Dear student, have you followed our discussion with these words of history? I can imagine how hard it is to read through history though never possible to compare the benefit that one will acquire in knowing past events. As I said in my introduction part of this chapter, they always are the gateways for the better understanding of what you have at hand. Let me put you few exercise questions before we go to the next sub-topic.

Exercise I.

1. What are the three pillars of the unwritten constitutional periods of Ethiopia?

2. Could there be a constitution which is unwritten? If you say yes, what do you think will be the grounds for identifying its contents? Would you mention a country as an example with an unwritten constitution?

3. What were the driving motives for the Emperor for the 'grant' of the 1931 Constitution to the people?

4. Why do we refer to the 1931 Constitution as the one granted to the people?

5. Mention some examples from the 1931 Constitution that were meant to introduce modern administration to the country.

6. What basically forced the Emperor to come with the modern ideas and principles in the Constitution?

2.3. The 1955 Revised Constitution

This Constitution had been issued on the silver jubilee of the Emperor, on 4th Nov. 1955. The basics of the reasons for the revision of the 1931 Constitution

have not been changed as such, except the newly added factors. First of all, after many African countries declared independence from colonial rule and most had been in the process to follow suit. Thus, lingering on the 1931 Constitution was not proper since it was by then outdated compared with what is going on outside. Secondly, the federation of Eritrea with Ethiopia in 1952 had urged the Emperor to reconsider the 1931 Constitution with the intention of pursuing the consolidatory policies that he persistently wanted to follow. Finally, as we said for the external changes that had happened at the region's level, there had also been internal changes to which the 1931 document was far less than adequate to respond to. For instance, the legitimacy of the old monarch had been challenged to some extent which must be addressed by reinforcing the previous stance.

The way it had come into force was not any different from its predecessor. It was stated in the Preamble in the following way;

*'whereas, twenty-four years ago, at the beginning of Our Reign, we **granted to Our faithful subjects** and proclaimed a Constitution for the Empire of Ethiopia...and WHEREAS, ALMIGHTY GOD, THE SOURCE OF ALL BENEFITS, has strengthened and inspired Us to lead Our beloved People,...We have prepared a Revised Constitution for Our Empire after many years of searching study and reflection;... NOW THEREFORE, WE, HAILE SELASSIE I, EMPEROR OF ETHIOPIA, do, on the occasion of the Twenty-Fifth Anniversary of Our Coronation, **hereby proclaim and place into force and effect as of to-day**, the Revised Constitution of the Empire of Ethiopia for the benefit, welfare and progress of Our beloved People. **GIVEN in Our Imperial Capital**, on*

this the 24th day of Tekemt, 1948 (Ethiopian Calendar), and on the Twenty-Fifth Anniversary of Our Coronation.'

Those underlined words imply that the making and unmaking of the constitutions had remained to be under the exclusive decisions of the Crown with no involvement of the people in it. In Chapter I, with a title 'The Ethiopian Empire and the Succession to the throne' the writers had exerted a lot of effort to elaborate on the succession to the throne issue in a much extensive manner. Only that chapter had 25 Articles out of the total of 131 Articles. The first Article tried to address the Eritrean question by stating the boundaries and the sovereign authorities of the Empire in the following words;

'The Empire of Ethiopia comprises all the territories, including the islands and the territorial waters, under the sovereignty of the Ethiopian Crown. Its sovereignty and territory are indivisible. Its territories and the sovereign rights therein are inalienable. All Ethiopian subjects, whether living within or without the Empire, constitute the Ethiopian people.'

In Chapter II, the Constitution had tried to address the powers and functions of the Emperor, even if everywhere in the constitution his powers had been made to shine above all else. I have reproduced those relevant provisions included in chapter II so that the students could see how extensive the Emperor' powers and prerogatives had been in the revised constitution.

The Powers and Prerogatives of the Emperor Chapter II

Article 26- The Sovereignty of the Empire is vested in the Emperor and the supreme authority over all the affairs of the Empire is exercised by Him as the Head of the State, in the manner provided for in the present Constitution.

Article 27- The Emperor determines the organization, powers and duties of all Ministries, executive departments and the administration of the Government and appoints, promotes, transfers, suspends and dismisses the officials of the same.

Article 28- The Emperor appoints Mayors of the municipalities referred to in Article 129 of the present Constitution from three candidates presented in each case by the Municipal Council thereof.

Article 29- The Emperor reserves the right, with the advice and consent of Parliament, to declare war. He, further, reserves the right to decide what armed forces shall be maintained both in time of peace and in time of war. As Commander-in-Chief of the Armed Forces, He has the right to organize and commend the said Forces; to commission and to confer military rank upon the officers of the said Forces; and to promote, transfer, or dismiss any of the said officers.

Article 30- The Emperor exercises the supreme direction of the foreign relations of the Empire... He alone, has the right to ratify, on behalf of Ethiopia, treaties and other international agreements, and to determine which treaties and international agreements shall be subject to ratification before becoming binding upon the Empire...

Article 32- The Emperor has the right to coin, print and issue money.

Article 33- The Emperor has the right to convene the annual sessions of the deliberative Chambers and to convoke extraordinary sessions thereof...

Article 34- In accordance with the provisions of Article 86, 88, 91 and 92 of the present Constitution, the Emperor has the right to initiate legislation and to

originate other resolutions and to proclaim all laws, after the same have been passed by Parliament.

Article 35- The Emperor has the right and the duty to maintain justice through the courts; and the right to grant pardons and amnesties and to commute penalties.

Article 36- The Emperor as sovereign has the duty to take all measures that may be necessary to ensure, at all times, the defense and integrity of the Empire; the safety and welfare of its inhabitants, including their enjoyment of the human rights and fundamental liberties recognized in the present Constitution; and the protection of all His subjects and their rights and interests abroad. Subject to the other provisions of this Constitution, He has the rights and powers necessary for the accomplishment of the ends set out in the present Article.

From these catalogues of powers and prerogatives, it is easy to discern how the Emperor's hands were far-reaching. Even if there was a Council of Ministers, He had the final say on all the decisions that might be given by this organ. Even more, the major decisions that otherwise would have been left to the Council of Ministers, had been made under the exclusive prerogative of the Emperor. He also had the power over the judiciary. As far as the legislative part was concerned, again the two houses were not anymore greater than, in their power, advisories to the Crown.

Thus, the Constitution was primarily used to consolidate and centralize government power in the hands of His Majesty. The interesting aspect of this constitution again, like its predecessor, was the inclusion of Chapter Three on the rights and duties of the people. Even if it was entitled as 'rights and duties' the

content tells us that the intention of this chapter was to treat, as the current constitution chapter III does, the rights and freedoms of the people. These provisions are also worth looking into as a constitutional law student. Accordingly, I have reproduced those provisions that I think are relevant.

Rights and Duties of the People: Chapter III

Article 37- No one shall be denied the equal protection of the laws.

Article 38- There shall be no discrimination among Ethiopian subjects with respect to the enjoyment of all civil rights.

Article 39- The law shall determine the conditions of acquisition and loss of Ethiopian nationality and of Ethiopian citizenship.

Article 40- There shall be no interference with the exercise, in accordance with the law, of the rites of any religion or creed by residents of the Empire, provided that such rites are not utilized for political purposes or prejudicial to public order or morality.

Article 41- Freedom of speech and of the press is guaranteed throughout the Empire in accordance with the law.

Article 42- Correspondence shall be subject to no censorship, except in time of declared national emergency.

Article 43- No one within the Empire may be deprived of life, liberty or property without due process of law.

Article 44- Everyone has the right, within the limits of the law, to own and dispose of property. No one may be deprived of his property except upon a finding by ministerial order issues pursuant to the requirements of a special expropriation law enacted in accordance with the provisions of Article 88, 89 and 90 of the present Constitution, and except upon payment of just compensation determined in the absence of agreement, by judicial procedures established by law. Said ministerial order, to be effective, shall be approved by the Council of Ministers and published in the Negarit Gazeta.

Article 45- Ethiopian subjects shall have the right in accordance with the conditions prescribed by law, to assemble peaceably and without arms.

Article 46- Freedom of travel within the Empire and to change domicile therein is assured to all subjects of the Empire, in accordance with the law.

Article 47- Every Ethiopian subjects have the right to engage in any occupation and to form or join occupational associations, in accordance with the law.

Article 48- The Ethiopian family, as the source of the maintenance and development of the Empire and the primary basis of education and social harmony, is under special protection of the law.

Article 49- No Ethiopian subject may be banished from the Empire.

Article 50- No Ethiopian subject may be extradited to a foreign country. No other person shall be extradited except as provided by international agreement.

Article 51- No one may be arrested without a warrant issued by a court, except in case of flagrant or serious violation of the law in force. Every arrested person

shall be brought before the judicial authority within forty-eight hours of his arrest. However, if the arrest takes place in a locality which is removed from the court by a distance which can be traversed only on foot in not less than 48 hours, the court shall have discretion to extend the period of 48 hours. The period of detention shall be reckoned as a part of the term of imprisonment imposed by sentence. No one shall be held in prison awaiting trial on a criminal charge the sole penalty of which is a fine.

Article 52- In all criminal prosecutions the accused, duly submitting to the court, shall have the right to a speedy trial and to be confronted with the witnesses against him, to have compulsory process in accordance with the law, for obtaining witnesses in his favor at the expense of the Government and to have the assistance of a counsel for his defense, who, if the accused is unable to obtain the same by his own funds, shall be assigned and provided to the accused by the court.

Article 53- No person accused of and arrested for a crime shall be presumed guilty until so proved.

Article 54- Punishment is personal. No one shall be punished except in accordance with law and after conviction of an offence committed by him.

Article 55- No one shall be punished for any offence which has not been declared by law to be punishable before the commission of such offence, or shall suffer any punishment.

Article 56- No one shall be punished twice for the same offence.

Article 57- No one shall be subjected to cruel and inhuman punishment.

Article 58- No one shall be imprisoned for debt, except in case of legally proved fraud or of refusal either, to pay moneys or property adjudged by the court to have been taken in violation of the law, or to pay a fine, or to fulfill legal obligations of maintenance; this provision shall not have the effect of absolving the debtor's obligation.

Article 59- No sentence of death shall be executed unless it be confirmed by the Emperor.

Article 60- Confiscation of property as a penalty shall not be imposed except in cases of treason against the Emperor or the Empire as defined by law; sequestration of property as penalty shall not be imposed except in cases of property belonging to persons residing abroad and conspiring against or engaging in deliberately hostile acts against the Emperor or the Empire as defined by law. Attachment proceedings covering the whole or part of the property of a person made under judicial authority to cover payment of civil liability, or arising out of the commission of an offence or to meet taxes or fines shall not be deemed a confiscation of property.

Article 61- All persons and all private domiciles shall be exempt from unlawful searches and seizures.

Article 62- (A) In accordance with tradition and the provisions of Article 4 of this Constitution no one shall have the right to bring suit against the Emperor.

(B) Any resident of the Empire may bring suit in the Courts of Ethiopia against the Government, or any Ministry, Department, Agency or instrumentality thereof, for wrongful acts resulting in substantial damage. In the event that the

courts shall find that such suit has been brought maliciously or without foundation, the Government, or any Ministry, Department, Agency, instrumentality, or official thereof against whom or which such suit was brought, shall have a right of action against such resident for malicious or unfounded suit, and the court shall in such cases decree remedies or penalties in accordance with the law.

Article 63- Everyone in the Empire shall have the right to present petitions to the Emperor in accordance with the law.

Article 64- Everyone in the Empire has the duty to respect and obey the Constitution, laws, decrees, orders or regulations of the Empire. Ethiopian subjects, in addition, owe loyalty to the Emperor and the Empire, and have the duty of defending the Emperor and the Empire against all enemies, foreign and domestic; to perform public services, including military service, when called upon to do so; and to exercise the right of suffrage which is conferred upon them by the Constitution.

Article 65- Respect for the rights and freedom of others and the requirements of public order and the general welfare shall alone justify any limitations upon the rights guaranteed in the foregoing articles of the present chapter.

If one can see how extensive it was with this regard, it is easy to realize that even the present constitution, which is considered to have given much attention to the fundamental rights and freedoms of the people, falls short of it. Some 28 Articles were devoted to this chapter out of a total of 131. Especially, the provision that related with private property rights to all things including land had been of its first and last kind in Ethiopian constitutional law history. Under Article 43, the

constitution seems to have upgraded the right to property to a status having equal importance with the right to life and liberty.

In an era of religious dominance, it was also noble to recognize under its Article 40 the freedom to exercise any religious rites of one's choice without interference. No matter what the practice might have been, declaring such freedom in the constitution was really daring for the Crown. Primarily what this cataloguing had lacked was a design that shows a logical frame on the basis of the linkages that those rights and freedoms have, as is done in the present Constitution, i.e., to put them into a category of human and democratic rights. Though this classification has its own faults it still shows how far an attempt has been made to give some kind of meaningful shape to the rights and freedoms.

The remaining parts of the Constitution covering five chapters were respectively devoted for the powers and functions of the Council of Ministers, the Legislative Organ, as well as the Judiciary, finance matters and finally some general provisions concerning amendment, effective dates, etc.

Overall, this Constitution had introduced the principle of separation of powers though the Emperor remained to have powers over all the three organs. Secondly, the introduction of popular representation through universal suffrage in the Chamber of Deputies marked the era of public participation in the affairs of government. But the balance had been still maintained since the Emperor was given the right to appoint members of the Senate, the upper house. The nobler of all was the extensive treatment of the rights of the people in chapter three of the Constitution. If there was anything more, the Emperor managed to consolidate its power by reinforcing the 1931 Constitution.

Dear student, before we wind up this discussion let me pose few exercise questions so that they could enable you to refresh your readings and revise it, if need be.

? Exercise II.

1. What was/were the new factor(s) that motivated the Emperor for the revision of the 1931 Constitution?

2. What new developments had been introduced by the revised Constitution?

3. Do you think, in your opinion, the 1955 Constitution had brought any meaningful change to the country's socio-political system?

2.4. The Military Administration and the 1987 Constitution

The discomforts that had been felt by the society towards the monarchical rule had got their momentum in the 70th during which the Emperor was trying to make few adjustments to regain the status quo. There had been measures to install constitutional monarchy in the country though it had not been successful. This latter system is a system of government that few countries of the world are governed with at present. It is a system of government in which the monarch shares power with a constitutionally organized government. The monarch may be *de facto* head of state or a purely ceremonial leader. At any rate the constitution allocates the rest of the government's power to the legislature and the judiciary. The countries that have this mode of government are the UK, Belgium, Cambodia, Jordan, The Netherlands, Norway, Spain, Sweden, and Thailand.

The attempt wasn't fruitful and the rebellions that had covered virtually all parts of the country had finally been culminated by the military getting the upper hand to reach to the palace in Sept. 12, 1974, and established the Provisional Military Administrative Council (PMAC) by a single proclamation that at the same time deposed the Emperor from power. The 1975 nationalization proclamation of all rural lands and extra-houses had made all privately owned enterprises and buildings to fall under the state ownership, including the rural lands. Especially, the nationalization of land was a measure that aimed at responding to the various revolutionary motto of 'land to the tiller' and was somehow meant to loath one of the biggest agendas of the rest of political parties that still remained dissatisfied with what was going on in the palace which had been taken over by less educated, though powerful military junta.

2.4.1. The Constitutional Making Process: Preparation of a Draft & Discussions

The Derg continued to rule the country without any constitutional basis for thirteen years. The Workers' Party of Ethiopia's (WPE) formation in 1984 had included with it a duty to devise a new national constitution that would put in place the People's Democratic Republic of Ethiopia (PDRE). In March 1986, a 343-membered Constitutional Commission was formed to draft a new constitution which had, as its guiding doctrine, the principles of scientific socialism. The commission's diverse membership included religious leaders, artists, writers, doctors, academics, athletes, workers and former nobility. There was also an attempt to have balanced ethnic representations in the committee.

For about six months the committee debated on the contents of the Constitution and finally managed to come up with a 120 article draft Constitution in June 1986. The government printed 1 million copies of this draft and distributed it for discussions and comments to Kebeles and peasant associations all over the country. The draft was discussed in over 25,000 places for a consecutive two months time which had in reality given fruits though the willingness to apply those fruits with genuine commitment to the public's interest remained to be constrained by the absence of political will. Basically, the regime used this discussion to legitimize the constitution-making process and create a forum for testing the public's reaction on the Constitution.

In some cases people attended constitutional discussion sessions with full will, while in most of the cases it was done because of the impositions by the peasant associations, who had used various enforcement mechanisms to secure attendance. By far, the most controversial draft provision was the one that outlawed polygamy, which caused serious furor anger among Muslims. Few

questions were raised about the document's failure to address the outstanding nationalities problem and the right to self-determination. According to government officials, the citizenry submitted over 500,000 suggested revisions, though only ninety-five of which were to be accepted by the Commission which had reconvened in August. And to be exact, most of the changes on which the Commission had acted upon were more of form than substance that didn't alter the structural aspects of the draft.

2.4.2. Adoption of the 1987 Constitution

Once in Ethiopian history the public was called for a referendum to vote on the draft constitution that was discussed by the public and revised by the Commission. The referendum was held on February 1, 1987 whose result had been announced by the President three weeks after. He reported that 96% of the 14 million people eligible to participate (adults eighteen years of age and above) actually voted. 81% of the electorate endorsed the constitution, while only 18% opposed to it (1% of the ballots was declared invalid). Without denying its democratic moves by calling such national forum for decision, the presence of the communist party cadres ensured the outcome to be as right as the government wanted it to be. In Tigray and Eritrea, however, the regime held referenda only in urban centers because much of these territories were controlled by the Tigray People's Liberation Front (TPLF) and the Eritrean People's Liberation Front (EPLF), respectively.

The Constitution became officially effective on February 22, 1987, when the People's Democratic Republic of Ethiopia was proclaimed, although practically it was not until September that the new government was fully in place and the PMAC formally abolished. The people had elected the members of the National

Shengo in June that year which had officially assumed power in September as the first civilian government of the country. Except the adoption of the document, however, little had been changed in the leadership of the government in terms of changes of personalities. For example, the National Shengo elected Mengistu to be the country's first civilian president; he remained, however, the WPE's general secretary. Other high-ranking Derg and WPE members received similar posts in the new government, including the Derg deputy chairman, Fikre-Selassie Wogderes, who became Ethiopia's prime minister, and Fisseha Desta, WPE deputy general secretary, who became the country's vice president.

The document, which established the normative foundations of the Republic, consisted of seventeen chapters and 119 Articles. The Preamble traced Ethiopia's origins to the antiquity, proclaimed the historical heroism of its people, praised the country's substantial natural and human resources, and pledged to continue the struggle against imperialism, poverty and hunger. The government's primary program was also written within the Constitution and it was claimed to be the country's development through the implementation of the Program for the National Democratic Revolution (PNDR). In the process, it was assumed that the material and technical bases necessary for establishing socialism would be created. Thus, the Constitution was not only used to lay down the framework of the government to be in place, defining its organs with their respective powers and lay down the general principles from which all other laws would have to be drawn, it rather was used to legislate the government's policies and programs which do not go along with the basic nature of a constitution in terms of content.

The Constitution attempted to situate Ethiopia in the context of the worldwide movement of so-called "progressive states" and made no direct reference to

Africa. Critics claim that the Constitution was no more than an abridged version of the 1977 Soviet Constitution, with the exception that strong powers were assigned to the newly created office of the President. A second difference between the Ethiopian and Soviet constitutions is that the former declared the country to be a unitary state rather than a union of republics. It was reported that the problem of nationalities was hotly debated in the Constitutional Commission, as well as in the WPE Central Committee, but the regime would not abandon its desire to create a single multiethnic state rather than a federation.

This Constitution had been a document that was short-lived ever in Ethiopian constitutional law history as it was suspended by the Transitional Government of Ethiopia in 1991, when the Derg military force had gave up itself for the current TPLF and other groups which were in an armed struggle for the last 17, and for some over 30 years. Thus, there was no enough application of the provisions to judge if the constitution was effective in achieving the purposes and policies that it had pledged in its contents.

Dear student, after this brief account of the 1987 constitution, I have put you some simple exercise questions so that it may enable you to test your understanding of the topic through your readings.

Exercise III.

1. What is meant by a constitutional monarch? Name at least three states that are currently following this system.

2. In 1975 the PMAC had taken a very radical measure. What was that measure? What effect did it bring to the then contemporary situation?

3. What do you think, in your own opinion that the government had tried to establish a constitutional commission with its members being from various nationalities' backgrounds?

4. Was there, in your opinion, any meaningful change that this constitution had brought into the system of government that used to exist as a PMAC?

5. Describe the constitutional making process of the 1987 constitution briefly.

What makes this constitution unique in the history of Ethiopian constitutional making process?

6. What were, if any, the differences between the 1977 Soviet Union's constitution and that of the 1987 Ethiopia's constitution?

7. What is the difference between 'a single multiethnic state' and 'a federation'?

2.5. The Transitional Period Charter

The Derg's constitution, as I said to you above already, was a very short-lived one. After four years, the opposition groups were getting hold of most of the parts of Ethiopia. The major win for the rebels and a debacle for the Derg had happened in 1989 during which the coalition forces of EPLF and TPLF had

captured Shire, Tigray. When the win had increased in scope, the latter started to rethink its agenda as it was an organization formed to liberate only a single region-Tigray. Controlling power at the centre made it imperative for TPLF to mobilize the other forces and bring them under common agenda. EPRDF was the result of this thinking which gave the leaders to discuss nation-wide control rather than only Tigray. EPRDF was constituted of TPLF, EPDM (Ethiopian People's Democratic Movement-which later changed to the Amhara National Democratic Movement-ANDM in 1994), OPDO (Oromo People's Democratic Organization) and EDORM (the Ethiopian Democratic Officers Revolutionary Movement, composed of the government military officers who had fallen into TPLF's hands, which didn't last long), and the last to join EPRDF was the coalition members representing the South, Southern Ethiopian Peoples' Democratic Front (SEPDF) in 1994. The establishment of the OPDO was a last resort decision that the EPRDF had taken when the attempt to forge a meaningful cooperation with the OLF (the Oromo Liberation Front) had failed.

The Derg's economic power was staggering because of the fall of its important source-base, the USSR. Even if a conference was scheduled for May 1991 to bring together the opposition forces and the government, it never took place and the opposition forces had managed to get hold of Asmara and Addis Ababa (here they had already encircled it by then). That led the president-Colonel Mengistu Haile Mariam to flee from the country. Just a day after the scheduled May 27, 1991 conference, the EPRDF forces declared that they had controlled Addis Ababa.

A national conference was convened from the 1st to 5th of May 1991 which resulted in the signing of a Charter (Charter No. 1 Negarit Gazeta No. 1, Year 50,

Addis Ababa, 22 July 1991) by the representatives of some 31 political parties. By the words of the Charter, an 87 seat Council of Representatives was established together with the Transitional Government of Ethiopia. TPLF, OPDO, EPDM, the three main members of EPRDF, each secured 10 seats and two seats were reserved for another member of EPRDF mainly constituting former officers and were later dissolved. In total EPRDF secured 32 seats, OLF secured 12 seats, and other ethnically based parties by and large were granted seats ranging from 1 to 3.

The conference had also agreed on some program of actions for the coming two years. Holding elections for local governments, the drafting of a new constitution, electing members of the Constitutional Assembly that would ratify the constitution was to be conducted, and finally election of the National Assembly that brings an end to the transition was to be held.

2.5.1. The Charter and its clues for federalism

Even if there had been many elements that clearly imply how much federalism had been taken as the bottom-line for all the contents of the Charter as well as the subsequent Proclamation referred below, no mention of the word 'federation' could be found in the total text of both. Even both documents ensure each nationality with the right to self-determination including secession. The Proclamation specifically enumerated the powers of the central government and those of the self-governments though the power seemed to have been concentrated within the centre. Following is the description of some of the ideas that echoed the federal state structure for the future Ethiopia.

From the outset, the composition of the participants in the May conference itself was an indication of Ethiopia's prospect concerning the state structure and the right of self-determination that it intended to provide to its nationalities. Save the representatives from professional groups and members of the university, members to the conference were entirely designated on the basis of nationality, either from existing movements, or in some cases, notably in the South and Southwest, from organizations rapidly formed in order to take advantage of the new political atmosphere.

The Charter had shown a complete shift in terms of political power distribution, from the traditional centralized system to the empowerment of the regions so that avoiding the regions' marginalization that persisted for long in traditional Ethiopia. The Charter, under its Article 2 established the framework for the provisional government and guaranteed nationalities to preserve their identity, administer their own affairs within their own defined territory, the right to participate in the central government based on fair and proper representation, and the right to self determination. Under its Article 8, it expressly empowered all legal and political responsibility for the governance of Ethiopia on the regions until it hands over power to a government popularly elected on the basis of a new constitution.

Article 13 of the Charter empowered the TGE (Transitional Government of Ethiopia) to establish by law local and regional councils defined on the basis of nationality.

Then a later proclamation (Negarit Gazeta 51st Year No. 2, Addis Ababa, 14th January 1992) established the national regional self-governments with 14 independent regions and enumerated 64 nations, nationalities and peoples. The

Proclamation provided for 48 of the identified nationalities to be able to start their own national/regional self-government at the woreda level or above. The charter and the proclamation explicitly provided that the boundaries of the respective self-governing regions be defined on the basis of nationality as a means ensuring the guarantee of these nationalities with their right to self-determination. The Proclamation distinguished regional self-governments based on an agreement of two or more adjacent nationalities, and national self-governments established by any nation, nationality or people.

The remaining other nationalities and peoples with small populations were defined as minorities, i.e. a nationality or people which can not establish its own woreda or self-government because of the small number of its population. The national/regional governments had law-making, executive and judicial powers and had used them extensively until they were replaced by new elections with the adoption of the 1995 Constitution.

So, in this way we saw a shift in the system of government by principally changing the unitary system to federal structure and also by recognizing the right of peoples for self-determination. This is believed to have given a solution to the long-standing nationalities questions that had been consistently ignored for the last many years. It was by then, and still it is recognition of Ethiopia as a multi-ethnic state.

2.5.2. The 1995 Constitution's making process

One of the major tasks of the Transitional Council of Representatives was to direct the process of constitution making and pave the way for a national election based on the ratified constitution. A Constituent Assembly was elected in 1993,

the TGE a constitutional commission to prepare a draft instrument for submission to a specifically elected constitutional assembly vested with plenary power to promulgate an organic law. As they did during the 1992 elections, the opposition parties withdrew from the process and one can say the whole story was under the influence of EPRDF and only few individuals dared to participate representing the oppositions.

A 106 Article draft Constitution had been adopted by the Constituent Assembly on Dec. 8, 1994, which came to effect only on August 21, 1995 after it was published on the *Negarit Gazata* signed by the first Ethiopia's Federal Government president. The hot issue during the discussion on the draft text had been, as it used to be, on the self-determination and rights of nationalities. In fact this was not as debatable as the structural adjustment of the regions while opting for classification on the ground of ethnicity. This was so because the question of the nationalities right to self-determination had already been mainstreamed by then, though how to go about it had been postponed to that critical time of adopting the constitution.

As was true with the 1987 Constitution making, the Constitutional Commission presented a draft for discussion. The divergence was, however, it was presented for approval for the Constituent Assembly which was presumably a representation from the wider range the Ethiopian people. Therefore, referendum remained to be a history once made in Ethiopia and that was in the 1987 constitution which was also historical in the sense that it lived for a very brief span of time. Thus, the 1995 and the currently operational FDRE constitution had been approved by the majority vote of the elected representatives of the people and not by the people themselves directly. Much of

the contents of this constitution will be discussed in the chapters to come in much greater detail and we will not for the moment go further with this regard.

Exercise IV.

1. What do you think may be the reason why the TGE charter and the 1992 proclamation that established the self-governing regions did not make any reference to 'Federalism' as such?

2. What difference do you see between the 1987 and the 1995 constitutions' making process?

3. Why was that the coming into effect of the 1987 constitution had been postponed after its adoption in Feb. 1987 until Sept. 1987, and that of the 1995 constitution which was adopted in Dec. 1994, but became effective in August 1995?

4. What is the difference between adopting a constitutional document through referendum and adopting it by the decisions of a constituent assembly?

Chapter III

Brief overview on constitution-making processes

3.1. Introductory remarks

Dear student, welcome to the third and last chapter of module I. By now we are going to finish laying down **the background for the constitutional law study**, which in a way is part of what one needs to know about a constitution. While treating the various constitutions of the country we have been trying to see the process that they had passed through which gave us the opportunity to learn part of this chapter. Therefore, we will be brief in this part of our study to avoid **undue repetitions**. It deserved separate treatment because of its unique nature as compared with ordinary law-making process. Thus, we will try to distinguish some of the elements that make it unique.

Objectives:

After finishing this chapter students will be able to;

- Identify the difference between ordinary law making from that of constitutional law making,
- Understand the various approaches to constitutional law making,
- Discern the stages of modern constitutional law making processes,
- Answer any questions relating to constitution-making.

3.2. Constitution-making process v. ordinary law making

In the ordinary sense of the term law-making involves an **assigned law-making organ that functions in the interest of those for whom the laws are made**. This is

done by a national and/or regional legislature with its members elected from the community through the election processes as laid down in the fundamental laws of the land.

When we see constitution-making process it is different in the sense that it needs to be done, as far as the modern understanding goes, with the active participation of the people either as during approval or sometimes through out the whole process. In this way, hierarchy of the constitution is being established as superior to any other laws that are to be made by the representatives, because naturally a law made by the people must morally be superior to a law made by the people's representatives.

Dear student, are you following me? This is a very important aspect that links the constitution-making process with establishment of hierarchy. Moreover, an ordinary law-making process involves initiation, deliberation, adoption and promulgation by the parliament itself. However, when it comes to constitution making there may be involvement of various organs at the different stages. For example, for the preparation of a draft, a commission may be engaged which shall be composed of experts and from among groups of the society having different political, economic, social and religious interests in the country's future. Then at the discussion part, the whole public may be engaged through systematized means of reaching as a wider number as possible. And at the approval level also it may be followed either of the two ways; either referendum or constituent assembly that represents a wider range of the society and usually more in number than a parliament. Therefore, one can find these protracted stages in constitution making having different participants at each stage of the process.

The making of legislation may be for a specific situation that may be very short-lived. Accordingly, the legislatures need not to make any extensive study about that area of enactment so that it could be future-looking. In the case of constitution making, the drafters must make a very extensive search through the past, the present and the future problems that need to be addressed in the constitution. In that way the stability of the constitution may be ensured, and for its existence for an unforceable future with necessary adjustments for new occurrences. Therefore, the process is relatively speaking longer and must be supported by wider investigation of the facts on the ground of the country for which it is meant to be applicable. This is not the case in most instances of ordinary law making processes. Dear student after saying this in general about the distinction between constitution and ordinary law making processes, we shall proceed to the next sub-topic after I put you few questions by way of review to the above sub-topic.

Exercise I.

1. Describe the possible relation between the constitution-making process and hierarchy of laws.

2. What are, in your own words, the major differences between constitution-making and ordinary law making processes?

3.3. Guiding principles in constitutional making processes

Constitution-making may be differently handled in different countries and by different regimes. The basic idea behind such variation usually stems from the very reason why the constitution is being drafted. For instance, where it has the intention of consolidating power and creating a dictatorial system of rule, then the process may be completely different. The Imperial constitution-making processes had as their basic aim, inter alia, power-consolidation in Ethiopian history and accordingly, there was no any sort of clearly specified procedure. It was, in those days, a gift from the Emperor to the people. Thus, a constitution may be made in this form while in modern constitution making there shall be, from the outset, publicly known procedures that the task will have to pass through.

It is only for this form of constitution-making that we may specify the various stages of the process. For any country that goes towards this lofty task of crafting a constitution, there are important guiding notions that must be taken into account throughout the process. This act marks a special moment in a state's history when political discussion must go beyond everyday concerns and to grapple with the very nature and future of the state. Questions of consent, legitimacy, key institutions, methods of apportioning and controlling power, and respect for rights come to the fore as basic options are weighed, and then chosen or rejected. Should the state be federal, unitary, or confederal? Should it be

parliamentary, presidential, or some hybrid of the two? What will be the duties and powers of judiciary? How should all those with a stake in the country be represented both in the process of forming the constitution (the "ground rules of the game," so to speak) and in the regular "game" of politics itself? Are popular elections necessary at every step of the way? If so, how can they be made feasible in countries struggling in the wake of war and dictatorship? How can the majority's right to rule be balanced against the rights of minorities and individuals to be free from oppressive majority dictates? How can the government be made both strong enough to govern effectively and yet not so strong that it threatens to smother human rights?

It is good to bear in mind that the process of constitution-making, while rightly focused on the long-term goals of promoting human rights, strong state institutions, and stability, may also-with proper handling-aid the more immediate causes of conflict resolution and peace. But the converse is also true: An ill-conceived or otherwise faulty constitution-making process can harm the prospects for stable democracy even in countries that offer promising proto-democratic conditions.

World-wide, there are refined models that have demonstrated the basic guiding principles of why constitutions are being done in a particular country. These principles, properly called as models that tell us the rational behind formulating a constitution could be considered from five perspectives:

1. The constitution as frame of government and protector of rights.
2. The constitution as code
3. The constitution as revolutionary manifesto.
4. The constitution as (tempered) political idea.

5. The constitution as modern adaptation of an ancient traditional constitution.

Let's see each of these models briefly.

a) *The constitution as frame of government and protector of rights:*

This constitutional model is characteristic of the United States, the oldest of the modern constitutions. As a frame of government, it delineates the basic structure, institutions, and procedures of the polity; and as protector of citizens' rights, it declares certain rights to be basic and provides the means for their protection through the due process of law. It is not a code and that is why it is not interested with details. Hence it is not designed to be highly specific and is only explicit in connection with those elements essential to the framing of a government. Written constitutions of this model often are designed to be devices for organizing new societies founded in new territories, such as the United States, Canada, Australia, New Zealand, and South Africa.

b) *The constitution as code*

In contrast to the frame of government model that we have seen above, Western European constitutional codes tend to be far more rigid and require precise and deliberate formal textual change to be tuned or adopted. The frame of government model works best in political systems where there exists basic consensus with regard to the character of the state structure, while the constitution as code model reflects the reality of the state in which the character of the regime itself is sufficiently problematic for change in its authority, powers, or functions to require explicit consent.

For most Western European states, the constitution is a state code designed to cope with an established order, with established pre-existing constituencies, not to speak of a pre-existing state. As the word "code" signifies, it is long, detailed, highly specific, and explicit, certainly by American standards. Constitutional change in the case of such constitutions reflects either a change in regime or the necessity to adapt the constitution to delineate precisely the ends of government at a given time. The constitutions of Austria and the German Federal Republic are classic examples of that highly rigid model.

c) The constitution as revolutionary manifesto

The third model, most common in the Socialist (Communist) states, is designed for the comprehensive revolutionary reconstruction of an established civil society, based upon the achievement of a social revolution of the most fundamental kind, with all of its political manifestations and impact. This is a constitution designed to root out the old order and to reorder its elements in their entirety. Thus Communist constitutions tend to exclude certain groups or classes from participation in the body politic as much as to define the rights, roles, and responsibilities of those who are entitled to participate. Moreover, the central feature of every Communist constitution is the location of power in the hands of the organized revolutionary cadres and/or party, as was historically done in the 1987 PDRE constitution that made the WPE and/or the President to be the ultimate power holders. Indeed, the constitution is not only used to establish the legend of the social revolution but as an instrument for fostering that legend and enhancing the power of the revolutionary cadres to make the revolution in the name of the myth.

d) The constitution as (tempered) political ideal

This model is most closely identified with the Third World. It was pioneered by the Latin American countries in the nineteenth century. This type of constitution combines an expression of what its citizens believe the regime should be with the basic structure of authority which will enable the current power-holders to rule with a measure of legitimacy. The former is presented without any serious expectation that the polity or regime will achieve that constitutional ideal, and the latter in anticipation of periodic change as rulers change, usually through revolution or coup. This model bears some superficial resemblance to the communist model but it has a political rather than a social revolutionary intent. In essence, most Third World constitutions are designed to present an ideal picture of the institutional framework of the proper polity while simultaneously reflecting the character of already rooted power systems and the specifics of rule by the current power-holders.

Constitutional change in much of the Third World involves balancing regime realities with constitutional aspirations. Hence, Third World states seem to be constantly changing their constitutions in their entirety. In fact, while each constitution is presented as new, usually there is a great continuity of basic articles from one document to the next, combined with changes in specifics to reflect each new regime.

Latin American constitutions over the past 150 years or more demonstrate this pattern: on the surface an apparently frequent change of documents but underneath substantial continuity in their contents. In each Latin American state, there is a "classic" constitution, usually adopted sometime during or at the close of the first generation of independence, in which the fundamental tensions are sufficiently reconciled to enable the state to continue to exist. Each subsequent

constitution accepts this original reconciliation and adapts it to reconcile present realities with long-term constitutional aspirations. In most cases, after a revolution or coup, when a constitution is changed, the new power-holders will explicitly make this point: that what they are doing is "temporary" or "interim," to make possible the achievement of larger constitutional aspirations.

e) The constitution as modern adaptation of an ancient traditional constitution

States utilizing this model have a deeply-rooted commitment to what can only be characterized as an ancient and continuing constitutional tradition, rooted in their history or religion, or both. This commitment frequently finds expression in what is conveniently referred to as an "unwritten constitution," which often encompasses a collection of documents of constitutional import, each of which marks an adaptation of the great tradition to changed circumstances.

The United Kingdom is one example. Its constitution is celebrated for its piecemeal constitutional development, uninterrupted at least since the Norman Conquest and perhaps even before William the Conqueror's claims to the throne are recognized. One of the characteristics of this model is the inclusion among its constitutional documents of basic laws which relate to specific ancient traditions.

Dear student, have you tried to grasp these models? I really think that you did. Take a look at this table that summarizes what we have been discussing so far.

Constitutional Models

1. Constitution as Frame of Government and Protector of Rights	e.g., English-speaking countries of the New World
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2. Constitution as Code	e.g., Continental European democracies, India
3. Constitution as Revolutionary Manifesto	e.g., Soviet bloc countries, Yugoslavia
4. Constitution as Political Ideal	e.g., Latin American and African states
5. Constitution as Adaptation of Ancient Traditions	e.g., United Kingdom, Israel, Iran

Before we briefly consider the stages involved in constitution-making try to respond to the following exercise questions which will help you revise what we have been raising so far.

Exercise II.

1. Describe some of the critical questions that need to be addressed at the start of constitution-making process.

2. Why do we say that the American constitution is an example for the first model, i.e. constitution as frame of government and protector of citizens' rights?

3. What reason/s obliges us to consider most of the third world constitutions to have been modeled on tempered political ideal?

4. Which model/s do you think have influenced the 1995 FDRE constitution?

3.4. Stages in modern constitutional making process

There are recognized stages in modern constitution making processes and these involve **initiation**, **discussion/deliberation**, **approval/ratification/adoption** and finally **promulgation**. The initiation of a constitutional draft document is to come from a **committee** to be organized for this same purpose. The profile of this committee itself needs adequate care and diligence especially to accommodate **differing interests**, **professionals in the areas of the country's history**, **politics** and **legislation**. As many **opposition parties** as possible must be let to participate in this committee mainly because especially in countries that emerge after conflicts such as ours, Israel and others, the constitution is considered as a pact for bringing lasting solutions to the causes for the conflicts. This way, therefore, a state can ensure that everyone having different stance with regard to the country's policies will have an opportunity to be heard and thereby as much as

possible those interests will be tried to be accommodated. This, in fact, will only be possible if those involved remain willing for compromise and discussion.

This committee shall come up with a draft document for discussion/deliberation.

These two words can be used interchangeably. Discussion or deliberation is a

method of confirming others in their errors through a democratic handling of talks and exchange of ideas. Deliberation means any method used to weigh and

examine the reasons for and against an idea including careful and mature

consideration. The purpose of the deliberation process is to allow for opinions to

be changed by conference in a round table. The expectation is that the

participants will harmonize their opinions by discussion of the reasons. In

constitutional making process, this is to be done by the public at large. The wider

the domain for the discussion the better will be the feedbacks to be obtained on

the committee's draft work. This is also an important means of creating national

consensus on the future political life of the country and securing legitimacy from

the governed. Moreover, a constitution, as we said in our first chapter, is an

agreement that binds the government and the governed and as such it must be

known by all the contractants, and must have had a say on the terms thereof.

Discussion or deliberation stage of the constitutional making process is therefore

aimed at opening this forum.

The third stage, which comes after the inclusion of the public's reflections that

must have been listed through the discussion minutes, is approval, adoption or

ratification. At this stage there are two approaches that are being practiced world

wide and both of which had been used in Ethiopia's constitution-making history.

These are referendum and approval of the constitution through a constituent

assembly. The former had been applied in Ethiopia during the approval or

adoption of the 1987 PDRE constitution and the latter during the adoption of the 1995 FDRE constitution. Since we have already seen their difference in relation to history in our second chapter, at this stage, there is already a notorious presumption that you already know it by heart.

The final stage, which is more of procedural than substantive, is promulgation of the constitution in the country's official legal gazeta. Promulgation or enactment is the act of formally proclaiming new legislation when it receives final and formal approval. At this stage the formally approved constitution will be officially announced to the public. Normally it is accomplished by publishing the text of the law in government legal periodicals, which in our case is the Negarit Gazeta. Most governments around the world have also adopted the practice of publishing laws on their local websites. Dear students, how many of you are familiar with the use of the web search? This is the Ethiopia's Federal Government Parliament website that you should look at to find any of the relevant legislations online. (<http://www.ethiopar.net/>)

Additionally, the national laws of extraordinary importance to the public are verbally announced by the head of state on national television or radio. This was used to be the case in Ethiopia before 1942 in the Imperial period where we did not have the Negarit Gazeta and even afterwards till the fall of the Derg, some extraordinary legislations were used to be announced through the television. The power to enact all laws lies with the authority having appropriate jurisdiction and such authority varies from country to country. In the Republic of Ireland, all laws passed are promulgated by the President, in France, the president of the Republic promulgates law (he may ask Parliament, if it is ordinary law of the parliament, to reconsider the law, but only once), In Germany, the President of

Germany has the duty to duly promulgate and issue laws, unless he deems them 'evidently unconstitutional'. The question to what extent he has to be convinced of the constitutional violation to deny promulgation is hotly debated. One such case arose recently in July 2005, when it was unclear whether Horst Kohler (the President) would sign the bill that paved the way for new elections in September 2005, after the German government under Gerhard Schröder had lost a parliamentary vote of confidence on purpose. He eventually did sign the bill. These and other cases may be mentioned in this regard, which have similarity in the person who is supposed to promulgate though much difference is observed with regard to the power of such person to influence the coming into force of the bill one way or another. In the case of Ethiopia, as mentioned under Article 71 of the FDRE constitution, the President of the country has the power to promulgate laws applicable at national level. However, the president has no right to challenge the legislation except signing the bill within 15 days of receipt.

Therefore, as the constitution is one variety of legislation having nation-wide application, it is supposed to be signed and promulgated by the president and that is why the date of approval and the date of promulgation may vary since once approved it has to await for a constitutionally elected president who shall enact that piece of legislation.

Dear student, have you followed the discussion above very carefully? I really hope that all is well so far. Following are few questions as summary to what we have been discussing so far. Please try to respond to the questions by yourself first and check later on if you have done well by referring to the answers at the end of the module.

Exercise III.

1. One of the following is not related with constitution-making process;
 - a) Constituent Assembly,
 - b) Initiation,
 - c) **Federalism,**
 - d) Promulgation,
2. Who has the power to promulgate legislation in Germany?
 - a) The President of the Republic,
 - b) The Head of the State,
 - c) The Head of Government,
 - d) The Prime Minister,
 - e) **A & B**
 - f) A & C
3. One of the following does describe the American constitution;
 - a) It establishes a unitary form of government,
 - b) It is modeled as a constitution as frame of government and protector of the rights of the people,
 - c) It is brief and to the point,
 - d) **All but a**
 - e) All but d
4. Which model may best describe the 1987 constitution of Ethiopia?
 - a) The constitution as a frame of government and protector of rights
 - b) The constitution as code,

- c) The constitution as (tempered) by political ideals
 - d) The constitution as revolutionary manifesto,
 - e) The constitution as modern expression of the traditional principles of constitutions
5. Which model describes the 1931 and the 1955 revised constitutions?
- a) The constitution as an expression of the traditional principles of constitution,
 - b) The constitution as code,
 - c) The constitution as (tempered) by political ideals,
 - d) The constitution as revolutionary manifesto
6. Once approved a constitution becomes,
- a) Legally binding for all,
 - b) It will have to await its promulgation for it to become formally binding,
 - c) Not of any effect whatsoever since it must be approved,
 - d) Substantively valid though needs a formal promulgation by the concerned organ,
 - e) It may be used to establish government accordingly,
 - f) All but c
7. Approval, adoption or ratification may be done by all but one of the following methods;

- a) Referendum,
- b) Through Constituent Assembly,
- c) Referendum and/or Constitutional Council,
- d) Parliament and/or constituent assembly,
- e) A & B
- f) C & D

Suggested Answers to Exercises in Module I

1. Chapter I.

Exercise I.

A1: When we say the state has sovereign power we mean that it has absolute and unrestricted power to stand above all other associations and groups in the society.

A2: A state, unlike civil societies, is public institution. It is responsible for making and enforcing collective decisions, while civil societies, which are predominantly private bodies, exist to satisfy smaller and private group interests. When we see the finance aspect as well, the state and its institutions are financed by the public while the civil associations may not have the public as their source of fund. And you can add more distinctions of your own.

A3: The state must have a geographically defined border which will have the purpose of ascertaining how much its sovereign power could extend. It is only on those people, whether nationals or not, who live within that territory that the state may have a sovereign jurisdiction. Moreover, to have a recognized existence by its bordering states, there must be a measurable and reachable territory. This will have the purpose of avoiding border and related disputes. Thus, the requirement has the purpose of identifying who are the subjects of the state and also aims at avoiding disputes that may crop up between states.

Exercise II.

1. A state, as said above, is a political institution within a defined territory.

Whereas a nation may not only be political, rather have strong forces of

- culture and psychological ties which could survive with or without institutions such as a state. Moreover, a nation may exist without a state while a state will always have a nation, i.e. it may not exist without at least a single nation constituting it, if not more.
2. The three factors that define a nation are cultural ties, political aspirations to come together and the psychological makeup which is not as decisive as the other two since people may join a certain nation as members though they lack this quality of patriotism or belongingness.
 3. The nation-state is an ideal that aims to achieve the goal which says 'every nation a state, only one state for the entire nation.' This acknowledges that no modern state is, or can be, culturally homogeneous. And such heterogeneity is to be accommodated under a single state which therefore justifies the grant of a name as 'nation-state.' As to the forces for the formation of a nation-state there are two contrasting views; for liberals and for most socialists, the nation-state is largely fashioned out of civic loyalties and allegiances (the subjective factor that we described above). For conservatives and integral nationalists, it is based on ethnic or organic unity (the objective factor that we described above).

Exercise III.

1. Democracy is 'rule by the people.'
2. The government *of* the people, *for* the people, and *by* the people.
3. The three questions are; who are the people, in what sense should the people rule, and how far should popular rule extend?
4. Political equality is a notion that dictates that political power should be distributed as widely and as evenly as possible. Irrespective of the definition that may be given to 'the people' the existence of political

equality in a nation ensures equal weight being accorded to each individual person in political decision making processes.

5. Direct democracy (sometimes 'participatory democracy') is based on the direct, unmediated and continuous participation of citizens in the tasks of government. Direct democracy thus obliterates the distinction between government and the governed and between the state and civil society; it is a system of popular self-government. It was achieved in ancient Athens through a form of government by mass meeting; its most common modern manifestation is the use of the referendum. To be exact, direct and popular participation is achievable only in small communities.

Representative democracy is a limited and indirect form of democracy. It is limited in the sense that popular participation in government is infrequent and brief, being restricted to the act of voting every few years. It is indirect in the sense that the public do not exercise power themselves; they merely select those who will rule on their behalf. This form of rule is democratic only insofar as representation establishes a reliable and effective link between the government and the governed. When compared with the direct democracy, therefore, this one offers a practicable form of democracy.

6. Liberal democracy advocates propound that the realm of democratic rule must be confined to political life of individuals, and the rest should be left as the realm of liberty. And the sole purpose of democracy is to establish the basic framework that creates an enabling environment for individuals for the exercise of liberal life. In contradistinction to this view, the radical democrats extend the reaches of democracy to every aspect of human lives, not merely to political decisions. Thus, such people call for social as well as industrial democracy.

Exercise IV.

2. Representative democracy is expressed through the periodic election that is being held once in five years time where the Ethiopian nations, nationalities and peoples will have to choose who shall decide on their behalf. Direct democracy is expressed through the airing of opinions, for instance, on the amendment of the constitution as indicated under Article 104 of the FDRE constitution.
3. Through the FDRE constitution, through their representatives elected by themselves through the procedures laid down by law, and through their direct participation.
4. The various forms of sovereignty are internal sovereignty, external/territorial sovereignty, parliamentary sovereignty and popular sovereignty. In Federal state structure, a concept called states' sovereignty has also been recognized whereby the various federated units are being endowed with sovereign powers that protect them constitutionally from undue interference by the central government in their own affairs. Our constitution has voted for popular sovereignty as described under Article 8 of the FDRE constitution.

Exercise V.

1. e; 2) b; 3) d; 4) a; 5) c; 6) e; 7) j.

2. Chapter II.*Exercise I.*

1. Religion, Might and Kinship claims.

2. Yes, there may be a constitution even if there is no any codified document for it. This is because there is, to date, no any constitutional law principle that requires for written documentation for the validity of rules and principles of constitutional law. The reference in countries where there is no written document will be to the general principles and customs that have acquired the force of constitutional law that one will have to resort to. In the three liberal democratic countries of the world, i.e., the UK, Israel and New Zealand, there is no written constitution to date.
3. The Emperor was motivated to grant the constitution by important factors; first there was a need to centralize power within his person, and secondly, there was an urge for the introduction of modern administrative rules and principles in the country as a matter of elegance before the international community. These two factors were the driving motives for the introduction of the 1931 constitution.
4. It was granted by the Emperor to the people than being made for them. This reference to granting is deliberate because of the fact that the people had no say in the initiation, deliberation and adoption of this fundamental law of the land as it ought to be within the ideals of modern constitutional making.
5. The establishment of the two-chambered parliament, the institutionalization of the ministries and the incorporation of chapter III that treated some human rights and freedoms may be sited as some of the modern ideas the 1931 constitution.

6. Ethiopia' admittance to the League of Nations membership with a tag of 'uncivilized state' had urged the Emperor to rethink on the existing system of government and on how to introduce modernity as a matter of elegance.

Exercise II.

1. The basic factor that motivated the revision of the previous constitution had been the reunification of Eritrea with Ethiopia in 1952 by federation. After the long-lived Italian colonization and few years of trusteeship administration by the UN, the latter's general assembly voted for the reunification of the two. Eritrea's constitution being relatively modern and due to the Emperor's interest of making Eritrea as part of the territory of Ethiopia, the revising task had been found out to be very timely. And the other factor was, after the lapse of some 24 years of existence and its little application, the 1931 constitution had become some how outmoded rendering its revision an imperative one.
2. Separation of powers was one of the most important developments that this constitution had brought to the constitutional system of the country. Secondly, this very constitution had taken the first move of public participation through universal suffrage to fill the lower chamber of the parliament, the House of Deputies. Thirdly, this constitution had made basic elaborations in its chapter three about the rights and duties of the Ethiopian people in a rather extensive manner.
3. Especially the introduction of the universal suffrage for the filing up of the lower house of the law making organ could be considered one of the basic measures of this constitution though if that was meaningful in terms of

effect on the socio-political system may still remain to be questionable. Either way could be accepted though it needs support of the arguments with concrete reasons.

Exercise III.

1. A constitutional monarch is a system of government whereby the monarch shares its powers with other government organs, and in most of the times s/he remains to be a ceremonial power holder that signifies the country's unity. This is the case in countries of the world such as the United Kingdom, Belgium, Cambodia, Jordan, The Netherlands, Norway, Spain, Sweden, and Thailand.
2. In 1975 the radical measure that the Derg had taken relates with the nationalization of the rural land and extra-houses. That was a Proclamation issued just few months after it had assumed power, proclamation no. 31, 1975. The land issue was at the top of the agenda for most of the anti-monarchical groups and individuals most of whom had organized themselves in to various parties. Therefore, by addressing the land question with such radical manner, in one way, the Derg was attempting to disarm such groups of their agenda for which they meant to stand primarily.
3. This was an attempt to respond to the then existing problems of nationality and questions of self-determination even if the constitution did not address them in its contents.
4. Even if it was meant for the first time in the history of Ethiopia to have a civilized government that was established on the basis of a constitution, in reality this brought little or no change to its preceding system of rule.

- There was a single party-WPE-that dominated the government power with the same political figures being in place before and after it.
5. The constitutional making process had went through the modern way of making constitutions; it had started by establishing a Constitutional Committee that was meant to come up with a draft for discussion (1), this committee had submitted its drat for discussion to the public (2), the committee reconvened and considered the suggestions that were gathered during the public discussions (3), a referendum was called to vote for or against the adoption of the constitution (4) and then it was promulgated as the PDRE constitution (5). These were the steps that this constitution had passed through. What makes it unique, as far as the constitution-making process of the country is concerned, was because of the fact that it was adopted by a referendum. This mode of adoption of legislation is, in essence, it involves the whole members of the society in the decision-making process who will vote for or against that legislation which may be a constitution or other ordinary law.
 6. Even if most of the provisions were taken from the 1977 Soviet Union constitution, there were few differences that one can observe between the two. The first was relating to the President's powers which were more extensive and far-reaching in the Ethiopian constitution than its Soviet counter-part. Moreover, the latter was meant to establish the union of independent republics whereas the Derg's constitution established a single multi-ethnic state.
 7. First it is better to start by defining multi-ethnic state, which is commonly known as multi-national state. This is a nation-state that has distinct and (if the status of the state has come to issue at all) rival cultures within it that compete for control. It is usually an unstable situation which

prevailed for long in Ethiopia. Then, the inclusion of such rival interests within one centralized rule is what we call 'single multi-ethnic state'. The tension that exists in such an environment can be stabilized for long periods if the balance of power is managed carefully through the introduction of such systems as Federation.

A federation (which is derived from a Latin word *foedus* meaning covenant) is a union comprised of a number of partially self-governing states or regions united by a central ('federal') government. In a federation, the self-governing status of the component states are typically constitutionally entrenched and may not be altered by a unilateral decision of the central government. The form of government or constitutional structure in a federation is known as federalism, which we will be dealing with while looking into the present constitution of Ethiopia. Federations may be multi-ethnic, as it is in Ethiopia, or cover a large area of territory, although neither is necessarily the case. Federation are often founded on an original agreement between a number of sovereign states, as it had happened over two hundred years back in the United States of America.

Exercise IV.

1. Some writers, like Dr. Fasil Nahom, argue that it might be because the fathers of the charter wanted to leave that right of coining a name for the factual situation on the ground for the official and the upcoming constitution. Other argument mentioned by the same authority is that it may be because of the need to leave all the options open, without any period judgment on what should the Ethiopian need to look like. If it had

mentioned something with that regard despite its being a transitional period charter, then it would have been some how speculative and even biased towards federalism thereby influencing the future outcome. However, one may also argue that the absence of the word 'federalism in those texts did matter little or nothing as far as the ruling party's premeditated plan of action to build up a federal state structure in the upcoming constitution. This is because all the skeletal sketches of the system had already been in place by those two pieces of legislations; the TGE charter and the 1992 Proclamation. It is like not putting a name-tag at the back of dog its absence may, under any wisdom, be able to negate that thing being a dog.

2. The basic difference of the two constitution making processes was that the former had been adopted by referendum while the latter was adopted through the decisions of the constituent assembly, who were in fact the representatives of the people. Moreover, there had been one-party participation-the WPE-in the 1987 constitution making process even if there was an attempt to create a constitutional commission from various groups of the society. When it came to the 1995 constitution there was relatively speaking a participation of more than one party in the whole process though skepticisms still remain if that was a real participation in the face of the strong dominance of the TPLF/EPRDF and its allies.
3. This has a legal justification in the sense that a constitution or any legislation for that matter will have the force of law only if it is promulgated on the official legal document in the country, which is for our purpose the *Negarit Gazeta*. And for that promulgation to take place there must be a constitutional government that has legitimate power to issue laws. Thus, the promulgation makes the constitution effective while

it was already adopted by the people. Some argue, however, that if that is so then the government has been made to precede the constitution rendering the former unconstitutional. However, the answer to this argument is simple in the sense that the promulgation on the *negarit gazeta* is only declaratory and it is not constitutive. That is to mean that for all intents and purposes the constitution exists as of the date that it has been adopted by the public in either of the ways. What remains is only formality and not any substantive requirement for its effectiveness. This is analogous to what we saw in relation to recognition of state. A state exists so long as the four requirements for statehood as enshrined in the 1933 Montevideo convention exist; defined territory, permanent population, government and the capacity to enter into relations with other states. Then, other states of the international community will have the option either to recognize that state as a state or not. When they do recognize that state they do not in effect constitute a new state, rather declaring those facts on the ground as sufficient to accord statehood under international law. The same works here in the case of constitution making process; the constitution exists so long as it has been approved by the people and the promulgation just gives it a formal authority in that land. It is postponed because there has to be a constitutional government that signs on the legislations that are publicized on the official legal gazeta, in the absence of which one formality requirement for law-making would have been missing.

4. Referendum is a referral of proposed legislations to the electorate for final approval. This direct form of legislation, along with the initiative, was known in Greece and other early democracies. When it comes to constituent assembly, it is a body elected from the electorate with a

defined mandate of drafting and in some cases adopting a constitution. Thus, while referendum is a direct exercise of democratic rights in legislative making processes the use of constituent assembly for same purpose signifies the situation where democracy is being exercised indirectly through elected representatives. We have already seen the practical limitations for the frequent use of direct democracy, if for its infrequent application that may come once in a very long while such as for the purpose of adopting a constitution which, presumably, lasts for a relatively undefined future.

3. Chapter III.

Exercise I.

1. Constitution making process has its own unique characteristic than other ordinary law-making process. One of these characteristics can be used to identify where one should place a constitution while establishing hierarchy of laws. As you might have learned in your introduction to civil law and persons course, hierarchy of laws is a mechanism of categorization of laws in their order of supremacy with one another. Though all the laws are normative, we may still consider one norm as more higher than the other taking into account various factors. One of these factors is to ask the question 'who made this law?' The response to this question tells us that it is the public itself that is presumably going to make the constitution. If this expectation is met, then that piece of legislation, the constitution in this case, must be superior to any other law in that country which is to be made by representatives of the public. Therefore, the constitution-making process and hierarchy of laws could have this form of relationship.

2. Ordinary law making involves a parliament which is to be established through the means and mechanisms as laid down in a constitution. When it comes to the constitution, it is an artifact of the public itself. Secondly, a constitution passes through a process which is extensive. Moreover, at each level of the process the involvement of various organs is to be observed. When we see an ordinary legislation this is not usually the case.

Exercise II.

1. Such questions as how to handle consent of the governed thereby securing legitimacy, how to create key institutions, how to design methods of apportioning and controlling power are all very pertinent that need to be addressed from the outset. The designers must inquire what sort of state structure to adopt, and the options could be federal, unitary, or confederal. The form of government itself needs critical thinking so as to go for either the parliamentary, presidential, or some hybrid of the two. Participation of all those who have stake in the polity also needs careful handling. The level of participation and how to get their assent to be part of the play itself is a major issue. This involves two-level decisions; first on their participation in the crafting of the constitution and second in the government itself that may bring into the fore either to go for multi-party system or uni-party system. These and many other questions that I mentioned in the text of this topic will be very relevant to answer while drafting a constitution.
2. This is mainly because of the fact that from the outset those who come to power happen to be there either through a very short-lived coup or after a strong, long-lasting armed struggle. Such power-holders mostly try to redo what had been in place before, through constitutional change and/or

pieces of legislations. More often than not such changes are radical in nature. Thus, it is hardly possible to see continuity from what existed yesterday. Such kind of deconstruction and reconstruction necessarily involves innovation which inevitably relies on their own political agendas for which they had been paying in warfare. Accordingly, it is for this reason, among other things, that we call third world constitutions to be modeled on tempered political ideal.

3. This is for two reasons. Firstly, the Constitution, in its briefly designed and 7 Articled texts, lays down the structure of government without too much detail (which makes it distinct from the code model). Secondly, it has provided for the protections of citizens' rights.
4. This is a very difficult question, though. I said difficult because it is hardly possible to categorize it under any of the models alone. Thus, the better approach would be to consider it to have embraced the blend of the two models. These are primarily the Constitution as tempered by political ideal, for most of the provisions are radical in terms of Ethiopia's political history and also because of the fact that those radical positions have been auspiced mainly by the ruling political party and which had tremendous influences during the crafting of the constitution. Secondly, it may also be considered to fall within the first model as it lays down the structure of government and the most fundamental rights and freedoms of the people. Dear student, this may not have a single answer and you may have your own opinion so long as you support it by strong reasons.

Exercise III.

- 1) c; 2) e; 3) d; 4) c; 5) a; 6) f; 7) f.

Module II

Basic Features, Classifications and Fundamental Principles of Constitutional Law

Module Introduction:

Dear student, now we are making a progress in our discussion of this course. In this module we are going to see the basic features of a constitution which make it distinct from any other ordinary legislation, the classification of constitutions, and finally the fundamental principles that underline a constitution. This will enable us to explore deep into the subject matter and understand it in a better way. Especially our discussions of the principles of a constitution will give us the opportunity to see many of the provisions of the currently operative FDRE Constitution.

Module Objectives:

A student who has finished reading this module will have;

- the capacity to understand the basic features of constitutions,
- the understanding of the fundamental principles of constitution,
- the knowledge of the various mechanisms of classifying constitutions.

Chapter I

Basic Features of Constitution

Dear student, now we will be considering the basic features of constitutional law that make it distinct from any of the other ordinary legislations. In this way you will be able to understand further the nature of this fundamental legislation.

Objectives:

At the end of this chapter the student will be able to;

- Explain the meaning of generality of the constitution,
- Define what is meant by transitivity and permanence,
- Elaborate on the supremacy of the constitution,
- Answer any practical or hypothetical questions that require the understanding of the features of a constitution,
- Relate the discussions with the current constitution of Ethiopia-FDRE.

1.1. Generality

A constitution has this defining feature of generality than any other piece of legislation in a country. Constitutional norms are to provide for general principles that are meant to cover as wider situations and happenings as possible. If it were to go to the detailed rule-makings with extensive elaborations, then there would have been no or little need for having a legislature in that country as every norm would have been established by the text of the constitution like the Holy Bible or the Holy Koran. Moreover, there would have been no room for manipulating its texts to accommodate newly emerging situations that need to be addressed without a need to change the constitution. In effect, the generality of the norms to be set in a constitution is but one way of ensuring its permanence or stability for an indefinite future.

For instance, let's read the following Article from our Constitution:

Article 15: Right to Life

Every person has the right to life. No person may be deprived of his life except as a punishment for a serious criminal offence determined by law.

From this provision we can understand many things even if it is stated in a very precise and brief manner. It is stated that right to life is a right that is given for every person without any distinction. Thus, it applies for citizens and non-citizens alike. The second bit of the provision tells us that this right is not absolute in the sense that in exceptional circumstances determined by law as serious criminal offences, one's right to life may legitimately be deprived when and if the court decides for so doing. A wide range of legislative discretion has been opened by this provision to our law makers in the sense that they will have to decide what type of acts may constitute serious criminal offences deserving capital punishment/death penalty.

Here the provision is general because it did not state, for example, which form of criminal acts constitute as serious and that may call for death penalty. It rather only has put the basic principle in general terms. This is so on the ground that what may constitute serious crime today may no longer be so after sometime, or to the contrary an act which is not contemplated as serious crime may change its character and becomes a serious crime for that particular time. Thus, if the constitution is to remain stable, there is a need to put only the objective principles leaving the rest for the determination of the particular legislative organ whose norms may possibly be adjusted as the need arises. Moreover, this is so also because of the limited expertise knowledge for the details on the part of those who may be engaged in drafting a constitutional text. At the point of drafting a constitution what needs to be agreed upon is only the general framework.

At this juncture, it is also good to point out that generality is not a feature exclusively of a constitution. It is rather a common feature of all legislative provisions. All laws are supposed to be general so as to let judicial flexibility with the objective of accommodating newly emerging circumstances. Otherwise, a legislature would have been obliged to sit everyday and draft new laws for every aspect of human interactions. Therefore, what you have to bear in your mind is that the difference lies in their degree of generality. Our legislature has, for example, already provided in the Criminal Law that a person who has committed an aggravated homicide may receive a punishment ranging from rigorous life imprisonment up to death sentence. The possibility of imposing death sentence within Ethiopian territory has been derived from the constitutional provision that we have seen above. Taking that possibility further, the legislature has defined what may constitute serious criminal offence and said 'aggravated homicide'. As to what may be considered as aggravated the law has said only killing of another with 'premeditation, in an exceptionally dangerous way, with cruelty, or with the intention of hiding another offence, or working with others as a gang'. These are the indicators for the judiciary and they do provide no clue if Mr. Mata has killed someone so as to be called as aggravated homicide. Thus, this is a general statement of the law that the judiciary will have to manipulate and apply for particular occurrences. Thus, no law exists that specifically addresses someone or something so as to afford its ready-made application.

Most of our old codes are, however, believed to be more specific with deliberate effort on the part of the drafters of those codes. As you might

have read some of the provisions of the code, they are filled in with many sub-articles trying to put general rules and then specifying the exceptions, even sometimes the exceptions from the exception. While explaining this fact, Rene David, the drafter of our Civil Code, had written that 'due to the inadequacy of well-developed jurisprudence and a fear that the judges may not be in a position to understand the stipulations...it is tried to be descriptive at the pain of being unduly extensive'. Thus, when we say generality it is a relative term, though the bottom-line for the generality principle of all laws remains still valid.

Dear student, "" are you following this discussion? Hope you do and understand what has been said in relation to generality of the constitution. Let me put you few queries that would enable you understand better what we have been discussing so far.

Σ

Exercise I.

1. What does generality mean? Give a brief description of this term.

2. Why constitutional provisions are spelt in general terms?

3. What makes the generality of a constitutional provision different from the generality of other ordinary laws?

1.2. Permanence and Transitivity

Dear student, do you remember what we have said with regard to the values of the generality feature of a constitution? If I may recall it for you, it ensures the stability/permanence of the constitution. This is the basic advantage of a general rule. It will have the capacity to accommodate newly emerging circumstances to the extent possible thereby avoiding the need for its frequent changes to cope up with societal dynamism.

Stability/permanence is also achieved due, mainly because of the fact that the amendment of a constitution is not as simple as it is the case for ordinary laws. It is made to be out of the reaches of the legislative organ, basically because it is the will of the people who alone should decide to change it when the need arises. If we see the amendment procedure provided in our constitution, it is so stringent that, among other things, the two federal houses, the regional councils and the public-through discussion-must involve one way or another in any amendment proposal

relating to the provisions of the constitution. This is a topic that we will be coming back to in our final discussions of this course. For the moment you can just have a quick look at Articles 104 & 105 of the FDRE constitution. Thus, this also ensures the permanence of the constitution.

The relevant question here is why is it that the constitution be permanent for an indefinite future? In other words, what concern is being addressed in avoiding or at least shying away from the frequent change of a constitution of a country? Constitutional stability is a factor that creates a lasting peace in a society, coupled with other factors of course. We have once said that a constitution is a pact between the government and the governed, the federal government and the federated units in a federal constitution, and if that is true this pact/contract is expected to remain stable so long as there is peace among those concerned. Unstable constitutional environment more often than not implies socio-political instability, which is the case for most of African and other third world countries. If one looks at the American constitution, it has survived over quite many years since 1787.

Through the stable constitutional system the legislature will ensure continuity by issuing laws that govern the ever changing social dynamisms. This implies that the ordinary laws need not, relatively speaking, be stable so long as the need arises for changing them to accommodate new happenings. When we see Ethiopia's constitutional history, there has been a contrary trend of events than suit. This is because, we have embraced our Civil Code for over 40 years while we have had four constitutional changes within this same span of time. Basically, this

emanates from the background in which the country opted to adopt a constitution in those times. As we have seen in our first module, such constitutions that experience frequent and radical change are those which are tempered by political ideals of the adopting regime.

When we say transitivity of a constitution, it is to mean that the constitution has the nature of serving as the source for all the other ordinary laws to be issued in that particular country. It has therefore, a transitivity effect in the sense that it translates itself in all the other detailed laws which exist but as implementing and promoting tools of the general legal, economic, political, social, and cultural values and principles as reflected in the texts of the constitution. It serves, in other words, as an umbrella within the country's legislative and policy formulation, implementation and review processes. That is what we call transitivity feature of the constitution.

To summarize what we have seen so far, we can say that constitution must be able to stand changes of governments and political ideals so as to qualify as stable/permanent. For how long a constitution should remain operative to qualify as permanent/stable is just a question of relativity. It is very difficult to say any of our constitutions to be stable, including the FDRE constitution. This is because of the fact that the latter has not yet been tested whether it could stand change of even a single regime or political ideal. And transitivity of a constitution tells us that a constitution is meant to reincarnate itself in ordinary legislations.



Exercise II.

1. Someone argues, who is your friend, that the 1931 constitution, in Ethiopian history, had stayed for about 24 years which shows that it was permanent, at least relatively speaking. Do you buy this argument? Why/why not?

2. What does transitivity mean to you?

3. What challenge should the current constitution need to stand so as to be considered as stable?

1.3. Supremacy

Supremacy of the constitution is even one of the fundamental principles of a constitution which we shall be discussing in greater detail in the forthcoming chapter. A constitution has this innate character or feature of being supreme to any other law within the country. This reinforces its feature of generality and

transitivity. The question is why is a constitution supreme? This again is a question that we will come back to in the next chapter, though it may not be unjust to respond it here in general. It is supreme from the historic point of view. This is to mean that the constitution has been created earlier than a legislature that is making a law within the country and with which the constitution is being compared. Thus, there is this 'historic' ground to consider the constitution supreme since it has come first than the legislative organ, even much more so for its laws.

Secondly, there is a moral ground for the supremacy of the constitution in the sense that the creature must always be considered lower than the creator itself. The constitution is resumed to create all the organs of government which are endowed with legislative, executive and judicial responsibilities. Thus, any of these organs' enactments must be subdued as lower than the constitution itself which is considered as the mother of all laws. Thus, this is from the moral point of view.

Legally speaking the constitution contains general principles that are meant to be translated by implementing legislations, decisions and policies in the country. Thus, they are the sources of all the other norms that are meant to be applicable in a compatible manner. Thus, since all the other laws owe their authority to the constitution, they must remain below the general principles laid down in the constitution. And the constitution itself will always have a supremacy clause giving it a legal ground and not just moral or historical reasons. We will be looking into Article 9 of the FDRE constitution (the Supremacy clause) in our next chapter discussion. Thus, for these reasons, the constitution must be supreme and all constitutions have this feature. With this we shall end this part

of our discussion and of course the chapter too with the following few summery questions that you need to answer.

Exercise III.

1. What are the reasons for upholding the constitution's supremacy over any other laws?

2. Is there any relationship whatsoever, between a constitutional provision's generality and its permanence?

Chapter II

Fundamental Principles of Constitutional Law

2.1. Introducing the Chapter

Dear student this chapter is rather extensive and we will be dealing with the most important principles of constitutional law. And we shall also make, when necessary, reference to the FDRE Constitution in search of identifying those principles as enshrined in its texts.

These principles are more or less universal in the contemporary modern constitutional law settings. Basically, we shall inquire only to some of them that are considered fundamental, one of which is the fundamental rights and freedoms of the people. Due to its extensiveness and significance, however, as I told you in the beginning of this course it will be separately treated as one semester course. So, we shall see five principles here all together.

Objectives:

After reading this chapter the student will;

- understand the meaning of supremacy of the constitution in greater details and with reference to the FDRE constitution,
- be able to critically evaluate the principle of popular sovereignty,

- be in a position to explain the meaning and nature of the principle of separation of powers and checks and balances,
- be able to understand the meaning and nature of separation of state and religion,
- analyze the principle of independence of the judiciary.

2.2. The principle of Supremacy of the constitution

In countries of constitutional democracy this principle is reflected in their constitutions in clear terms. This means that any law that violates the Constitution, or any conduct that conflicts with it, shall be challenged and struck down by an appropriate organ, in most of the cases by courts, that is given the power to safeguard the supremacy of the constitution. This is a counter-part of the parliamentary sovereignty principle, which is a concept in constitutional law that applies to some parliamentary democracies such as the United Kingdom and New Zealand. It has been defined by Albert Dicey in his book 'Introduction to the Study of the Law of the Constitution (1885), as to mean 'parliament has the right to make and unmake any law whatever; and further, that no person or body is recognized by the law of England as having a right to override or set aside legislation of parliament.' This doctrine may be summarized in three points: (1) parliament can make law concerning anything, (2) no parliament can bind its successor (that is, cannot pass a law that cannot be changed or reversed by a future parliament), and (3) no body except parliament can change or reverse a law passed by parliament.

This rightfully works in countries which do not have written constitutions, thereby have no constitutional democracy, and instead have parliamentary democracy. Where the supremacy of the constitution is in place the

parliamentary sovereignty must go out so as to create harmony in the system. For the proper application of the supremacy clause of the constitution, however, a court that is empowered to interpret the constitution is precondition. The current trend also reveals that judicial review is becoming a norm in most of the systems through which any executive as well as legislative measures would have to be reviewed if they encroach up on peoples' rights and contrary to the constitutional provisions. Even parliamentary sovereignty is losing its traditional absoluteness in favor of this judicial review mechanism leaving the principle only a legal term without much practical effect. Thus, most countries' constitutions establish a separate constitutional court/council for this purpose or leave it to the ordinary courts so that they could routinely interpret the constitution ensuring conformity of all government acts and measures to be in line with the constitution. Let's see now the FDRE Constitution's supremacy clause and try to unpack its meaning.

Article 9: Supremacy of the Constitution

1. *The constitution is the supreme law of the land. Any law, customary practice or a decision of an organ of state or public official which contravenes this constitution shall be of no effect.*
2. *All citizens, organs of state, political organizations, other associations as well as their officials have the duty to ensure observance of the constitution and obey it.*
3. *It is prohibited to assume state power in any manner other than that provided under the constitution.*
4. *All international agreements ratified by Ethiopia are an integral part of the law of the land.*

This is the supremacy clause which is provided within chapter II of the constitution that stipulates the fundamental principles of the constitution. As we saw in chapter one of this module, this gives the supremacy of the constitution a legal basis.

Under sub article one it is provided that the Constitution is the supreme law of the land which only has declaratory purpose and no more. In other words, except putting the principle that we have discussed above, it does not give any clue as to the meaning of the constitutional supremacy. The next bit of the sub-article, however, goes further in explaining what supremacy is all about in Ethiopian context. It is a principle that makes any law, customary practice, decisions of state organ or public official devoid of any effect if done in contravention with the terms of the constitution. By law we mean the laws of the country's legislative organs both at the federal and regional levels in the present context. The reference to custom is relevant especially in the existence of rich and well functioning customary rules and practices in countries such as Ethiopia.

The main bit of this article is the one that claims that any of these norms will have no effect so long as they contravene the constitution. And the House of the Federation has been empowered to declare this ineffectiveness elsewhere in chapter four of the Constitution. Therefore, unlike the usual trends that we have seen with this regard, it is considered as purely political issue is to be vindicated before an organ which is instituted on through political representation and by politicians. We shall be looking into this matter in detail in relation to the interpretation of the constitution around the end of our course.

The next sub-article imposes a duty on all-rounded subjects, citizens, state organs and their officials, political organizations and their officials, as well as

other associations such as civil societies of both governmental and non-governmental in nature and their officials to ensure the respect of the constitution and themselves to obey same. It is apparently clear that the citizens' role in ensuring the observance of the constitution is quite thin in comparison with that of state organs and their officials.

The third sub-article is indicative of the constitutional democracy that the country has opted to follow. It reaffirms that any successive power transfers must be made through the platform indicated in the constitution itself. If government power is to be transferred, as the constitution aspires, then it will also have the effect of ensuring constitutional stability. It would be worth inquiring about the proximate linkages between the principle of constitutional supremacy and the constitutional assuming government power in no other manner but only through the constitution. Of course there is relationship, though it is doubtful if that relationship is proximate enough to put it as an element of the supremacy clause in all circumstances. When it comes to constitutions that establish federal state structure, the prelateship is rather strong and it is normal to insert this form of provision in the supremacy clause. For instance the Federal Republic of Nigeria's constitution of 1999 offers, in its chapter I part I section I, the following as its supremacy clause;

1. *This constitution is supreme and its provisions shall have binding force on the authorities and persons throughout the Federal Republic of Nigeria.*
2. *The Federal Republic of Nigeria shall not be governed, nor shall any persons or group of persons take control of government of*

Nigeria or any part thereof, except in accordance with the provisions of this constitution.

3. *If any other law is inconsistent with the provisions of this constitution, this constitution shall prevail, and that other law shall, to the extent of the inconsistency, be void.*

Whereas the Constitution of the Republic of South Africa that it has promulgated in 1996 has rather put this supremacy clause in a brief manner which says '*This constitution is the supreme law of the Republic; law or conduct inconsistent with it is invalid, and the obligations imposed by it must be fulfilled*'. The declaration that says that power transfer must be made in accordance with the constitution is spelt out in the two federal constitutions while not in the Republic of South African constitution. This same thing is missing from the Constitution of India's supremacy clause too, which is the most elaborate constitution ever written in the world (without including its huge number of amendments it has 444 Articles with a total of 117,639 words, compared with our constitution which has 106 Articles and a total of 13,633 words). Neither does it exist in the US federal constitution supremacy clause Article VI paragraph 6 which reads;

'This constitution, and the laws of the United States which shall be made in pursuance thereof; and all treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land; and the judges in every state shall be bound thereby...'

This is rather a different approach to the supremacy clause in a federal constitution in the sense that its purpose is more of empowering the federal government over the federated units. This has its own historical reason since they came to the federal structure from their previous independent statehood

and there was a need to have a strong central government that will hold all those separate, independent and sovereign states together within the federal setup. Accordingly, the federal government's law has been equated with the federal constitution and the country's international commitments that might be created through treaties. Therefore, in the context of the US Constitution's supremacy clause, the matter will be completely different than the Ethiopian Federal Constitution which has created federal structure from within, i.e. that operated by centrifugal force. In the case of the latter form of federalism there is a call for empowering the federating units that have presumably been demanding for autonomy from the center and the constitution must serve as a guarantee for that autonomous existence without affecting the unity. One way of ensuring this is first by making those provisions of the constitution as supreme to any laws within the country, whether federal or regional, and secondly, by ensuring that power will only be assumed through constitutional means. We will also look into the features of federal state structure in the forthcoming chapters.

The final sub-article is about international treaties which are ratified by Ethiopia thereby excepting those which are not ratified but adopted by the country. The ones that shall come as part of the law of the land are those ratified by the appropriate organ as provided in the Constitution Article 55(12). The wording of this sub-article needs unpacking. What does 'an integral part of the law of the land' mean? The law of the land includes this constitution itself, proclamations by the House of Peoples' Representatives and regional councils, the regulations of the Council of Ministers and the directives to be issued by implementing agencies, commissions and bureaus. How are we going to integrate such international treaties within these ranges of the laws of our land?

This is an issue that has attracted enormous research and debate. The whole endeavor tends to indicate, though not invariably, that there is a dichotomy between the common law approach to the matter and that of the civil law. For the common law countries, any international law, either in the form of customary international law or treaty-based must be legislated by the acts of the parliament so as to have application, which is called dualism approach to the application of international law rule within the national jurisdiction. The civil law countries tend to be 'international law-friendly' in the sense that their constitutions provide a provision that domesticates any international agreement that has been ratified by the concerned organ. In this sense, therefore, their approach is named as monism as it puts no barrier (in the form of prior legislation by the parliament) to their application similarly with the domestic legislations. As I said above, this dichotomy of the common law and civil law is not an absolute one which fact can be proved by the US constitution supremacy clause that I had put for you above in which treaties have been given equal and supreme status with the federal constitution.

It is also worth considering the Republic of South Africa's 1996 constitution in relation to the status of international law within the national jurisdiction. It is provided under chapter 14 Sections 231-33 in the following way;

231. *International Agreements*

- 1. The negotiating and signing of all international agreements is the responsibility of the national executive.*
- 2. An international agreement binds the Republic only after it has been approved by resolution in both the National Assembly and the National*

- Council of Provinces, unless it is an agreement referred to in subsection (3).*
3. *An international agreement of a technical, administrative or executive nature, or an agreement which does not require either ratification or accession, entered into by the national executive, binds the Republic without approval by the National Assembly and the National Council of Provinces, but must be tabled in the Assembly and the Council within a reasonable time.*
 4. *Any international agreement becomes law in the Republic when it is enacted into law by national legislation; but a self-executing provision of an agreement that has been approved by Parliament is law in the Republic unless it is inconsistent with the Constitution or an Act of Parliament.*
 5. *The Republic is bound by international agreements which were binding on the Republic when this Constitution took effect.*

232. Customary International Law: *Customary international law is law in the Republic unless it is inconsistent with the Constitution or an Act of Parliament.*

233. Application of International Law: *When interpreting any legislation, every court must prefer any reasonable interpretation of the legislation that is consistent with international law over any alternative interpretation that is inconsistent with international law.*

The South African constitution approach is that of dualist approach in tune with what we have said above with regard to categorization of the common law jurisdictions as dualist while the civil law as monist. This is not always true as exemplified by the US constitution which is a common law country with monist

approach to the application of international law within its domestic jurisdiction, although it still holds many exceptions for it. By monist we mean that international laws and national laws are given equal primacy in domestic application without any further government legislation, and thus there is a single regime of laws. When it comes to the dualist approach which prevails in most common law countries, it is dual in the sense that there are layers of laws which are international and national. As far as the international law is concerned it needs promulgation by the legislature as such for its application. Otherwise, it remains to be not amenable for application within the national jurisdiction. Therefore, the national legislature is given the power to promulgate both national as well as international laws.

When we see the Ethiopian Constitution, the only requirement for its domestic application is ratification which is not the same as saying it must be enacted by parliament. Therefore, our approach coincides with most civil law countries such as Federal Republic of Germany's 1949 constitution Article 25 which provides 'The general rules of international law shall be an integral part of federal law. They shall take precedence over the laws and directly create rights and duties for the inhabitants of the federal territory'. Moreover, with regard to supremacy, it rather has adopted a different approach under its Article 31 by saying 'Federal law shall take precedence over 'Land' law'. By Land it is referring to the federated units of the republic which we call regions. Even if the reference to 'the general rules of international law' is different from treaty-based international law, it is still clear that there is a monist approach to the domestic application of international law.

What is a bit ambiguous when it comes to the FDRE constitution is the status of international treaties that have been ratified by Ethiopia. At which level of hierarchy they may be placed is not spelt out clearly as is done in the above mentioned constitutional provisions that I have stated to you. Thus, the question is where are we going to place them? Here there are various arguments that are being forwarded as far as this issue is concerned. Treaties are normally ratified by the House of Peoples' Representatives which is the highest government organ in the country and as its tool it has the power to issue proclamations. Thus, those treaties that it enacts must be given at least a status not lower than a proclamation. As far as hierarchical relation that should exist between the constitution and such international treaties is concerned, it has to be governed by the supremacy clause of Article 9(1) and thus the constitution must remain supreme in case there exists inconsistency between the two.

The second line of argument is the one forwarded on the basis of Article 13(2) which reads;

'The fundamental rights and freedoms specified in this Chapter shall be interpreted in a manner conforming to the principles of the Universal Declaration of Human Rights, International Covenants on Human Rights and International instruments adopted by Ethiopia.'

Some people tend to argue that even if the constitution is supreme when it comes to the fundamental rights and freedoms as enshrined in chapter 3 are concerned the constitution has already made an exception and accordingly, if the international agreement relates with such theme it shall be above the constitution. Therefore, the supremacy of the constitution in the eyes of international treaties relating to human rights may not be invoked. This point in fact needs closer

scrutiny of the contents of Article 13(2) and the message it tries to address. Dear student what is your opinion on this point. Try to discuss with your friend extensively.

By way of summary I have put for you few questions that you need to attempt exhaustively and which will enable you to go back once again and read our discussion when necessary.

Exercise I.

1. How do you define the supremacy of the constitution?

2. Why is the constitution supreme? In attempting this question, also refer to our discussion in the first chapter of this module.

3. What is the status of international treaties ratified by Ethiopia in relation to a proclamation and in relation to the constitution?

4. What will happen if there exist a contradiction between an international treaty ratified by Ethiopia and the provisions of a proclamation? Which one should be given priority?

5. How do you define monism and dualism approaches to the domestic application of international law?

6. What is the relevance of inserting a statement relating to power transfer in the supremacy clause?

7. What makes the supremacy clause of the US and German constitutions different from that of the FDRE constitution?

8. What is the effect of the monist approach to the status of international law within the domestic plane?

2.3. Popular Sovereignty

Dear student now we are going to see the basic tenets of sovereignty. And we shall focus particularly on popular sovereignty because that is what the modern trend is and that is what is reflected in our FDRE constitution too. Sovereignty means the right and power to command, decide, rule, or judge: authority, command, control, domination, might, power, prerogative, etc may be used as nearly synonyms to sovereignty. And when considered from the perspective of inter-state relations it may mean the condition of being politically free: autonomy, freedom, independence, liberty, self-government, etc may connote the sovereignty of state in its international personality.

Jean Bodin (1530-1596) is considered to be the modern initiator of the concept of sovereignty, with his 1576 treatise *Six Books on the Republic* which described the sovereign as a ruler beyond human law and subject only to the divine or natural law. He thus predefined the scope of the divine right of kings, stating 'Sovereignty is a Republic's absolute and perpetual power'. Sovereignty is *absolute*, then *indivisible*, but not without any limits: it exercises itself only in the public sphere, not in private sphere. It is perpetual, because it does not expire with its holder (as kings do). In other words, sovereignty is no one's property: by essence, it is *inalienable*. Dear student, have you understood the basic features of sovereignty? These characteristics are very pertinent as they help you understand popular sovereignty which originated in the social contract theories of Rousseau (1712-1778).

The progress that was made in defining sovereignty by Rousseau from that of Jean Bodin is relating to the holder of this sovereign power/prerogative. For the former it must be the public who has to be the legitimate power holder and accordingly introduced the concept of popular sovereignty. Machiavelli, Hobbes, Locke and Montesquieu are also among the key figures in pushing forward the concept of sovereignty.

Popular sovereignty is the doctrine that the state is created by and subject to the will of the people, who are the source of all political power. The central tenet of this form of sovereignty is that legitimacy of rule or of law is based on the consent of the governed. Popular sovereignty is thus a basic doctrine of most democracies. Hobbes, Locke and Rousseau were the most influential thinkers of this school, all postulating that individuals choose to enter into a *social contract* with one another, thus voluntarily giving up some rights in return for protection

from the dangers and hazards of *a state of nature*. Most republics and many constitutional monarchies are theoretically based on popular sovereignty. However, a legalistic notion of popular sovereignty does not necessarily imply an effective, functioning democracy: a party or even an individual dictator may claim to represent the will of the people, and rule in its name.

Popular sovereignty is a distinct concept from territorial sovereignty. As many instances of territorial cession show, territorial sovereignty is held by a government, not by the people, to be claimed against other states. This is a principle in international law, which pertains to a government possessing full control over its own affairs within a territorial or geographical area or limit. Thus, it is very important, as we have noted in our introductory chapter, to distinguish the two forms of sovereignty.

The exercise of popular sovereignty may be direct, as in a popular assembly, or, more commonly, indirectly through the election of representatives to government. The latter is known as a representative democracy, a system of government currently used in most countries of the world. Popular sovereignty also exists in other forms, such as in constitutional monarchies, usually identical in political systems as in the United Kingdom and commonwealth realms. Systems of representative democracy can also be mixed with other methods of government, for instance the use of referendums in many countries. In Switzerland, for instance, referendums are the widely used means of legislative approval as well as initiation and decisions on the amendment of the constitution. This is being applied side-by-side with the representative democracy where the legislative organs are being elected to sit in parliament and make laws without the need to call for referendum.

When we see our FDRE constitution this matter has been addressed under Article 8 of the constitution in the following way;

Article 8: Sovereignty of the People

1. *All sovereign power resides in the Nations, Nationalities, and Peoples of Ethiopia.*
2. *This constitution is an expression of their sovereignty.*
3. *Their sovereignty shall be expressed through their representatives elected in accordance with this Constitution and through their direct democratic participation.*

The first sub-article has clearly spelt out the concept of popular sovereignty by declaring that the NNPs of Ethiopia are the sovereign power holders. The reference to Nations, Nationalities, and Peoples of Ethiopia is widely seen in this constitution signifying the primacy that the constitution has given to the rights of self-determination. The term has been defined under Article 39(5) as “*A Nation, Nationality or People*” for the purpose of this Constitution, is a group of people who have or share large measure of a common culture or similar customs, mutual intelligibility of language, belief in a common or related identities, a common psychological make-up, and who inhabit an identifiable, predominantly contiguous territory.” Thus, the gross reference to the ‘People of Ethiopia’ has not been preferred anymore while describing the sovereign power-holders in the constitution. It is believed that such generalized reference has had the effect of undermining the distinct cultures and values at the same time making few of the cultures to flourish at the expense of the others.

The expressions of sovereignty, as we have discussed them earlier in relation to basic concepts of constitutional law, are threefold: the constitution itself, through direct participation, as well as through their elected representatives. Therefore, it is not always true that the exercise of popular sovereignty through only one-form, as we have seen the case of Switzerland. It is also quite important to emphasize that democracy is not a precondition for the existence of popular sovereignty, and that was why even the 1987 constitution had declared popular sovereignty as one of its principles which was said to be exercisable through the Workers' Party of Ethiopia.

Dear my constitutional law student, is our discussion making any sense to you? Again it is very important to note the overlap of politics and law when it comes to the study of this fundamental law of a country. Let me put some exercise questions for you before we proceed to our next discussion.

Exercise II.

1. Describe the basic features of sovereignty as propounded by Jean Bodin.

2. "Sovereignty is amenable to no limitation whatsoever." Do you agree with this statement? Why/Why not?

3. The Constitution of the Republic of South Africa declares the following in its Chapter I Section I.

1. *The Republic of South Africa is one sovereign democratic state founded on the following values:*

- a) Human dignity, the achievement of equality and advancement of human rights and freedoms.*
- b) Non-racialism and non-sexism.*
- c) Supremacy of the constitution and the rule of law.*
- d) Universal adult suffrage, a national common voters' roll, regular elections, and a multi-party system of democratic government, to ensure accountability, responsiveness and openness.*

And the Federal Republic of Nigeria's 1999 constitution has provided in its Chapter I section 2 as 'Nigeria is one indivisible and indissoluble sovereign state to be known by the name of the Federal Republic of Nigeria.'

After reading these two provisions, how do you describe their distinction with that of FDRE constitution on sovereignty?

4. Is democracy a precondition for declaring popular sovereignty?

2.4. Separation of powers and the principle of checks and balances

Now we are moving to the third principle and which is the most important one and this relates with separation of powers, a principle that was later modified by the fathers of the US constitution by including in it another caveat-checks and balances. This is a principle that propounds the division of the legislative, executive and judicial functions of the government among separate and independent bodies. And at the same time the principle of checks and balances serves as a means of maintaining the balance while the organs are functioning separately. Let's see each of these two doctrines one after the other.

2.4.1. Separation of Powers:

As said above it dictates us that the three major functions of government must operate independently by the three organs and such a separation limits the possibility of arbitrary excesses by government, since the sanction of all three branches is required for the making, executing, and administering of laws. This way, power is distributed horizontally across each organ with its own distinct type of role. The concept received its first modern formulation in the works of *Montesquieu*, who declared it as the best way to safeguard liberty; he influenced the framers of the Constitution of the United States, who in turn influenced the writers of the 19th and 20th century constitutions.

Montesquieu proposed division of political power between an executive, a legislative, and judiciary as a model for the governance of the state, which principle has also been extended to the non-political realms under the term 'separation of duties.' Under his model, each branch must be separate in terms of *function, person, and institution*. By functional separation he meant that an

executive organ's function must be essentially execution of the laws of the legislative branch and so shall be for the other two organs. This is not, however, to prohibit the issuance of normative rules by the executive as an incidence to its main function. By personal separation he referred to the fact that a person in the executive branch may not be permitted to sit in the legislative branch, as that would tantamount to letting this person to legislate and execute a law which goes in direct contradiction with the principle. Institutionally too there need to be separation of these three organs. This way, he says that it is possible to avoid tyranny of rule which would exist if all the three functions were to be performed by one organ.

Taking this as a standing stone the fathers of the American constitution had developed it further by saying that an absolute separation of the three functions may not be enough to avoid tyranny. This is because within its confines of legislative power, if left unchecked, there is no possibility to deter the legislative organ from being tyrannical by issuing such laws. The same holds true for the judiciary and the executive organs of government. Therefore, it is proposed and widely accepted that there is a need for checks and balances of powers that complements the principle of separation of powers. This is a means of maintaining balance within the organs. Now let's see briefly the meaning and nature of checks and balances.

2.4.2. Checks and Balances

In a system of government with competing sovereigns (such as a multi-branch government or a federal system), 'checks' refers to the ability, right, and responsibility of each power to monitor the activities of the other(s); 'balances' refers to the ability of each entity to use its authority to limit the powers of the

others, whether in general scope or in particular cases. As described above, keeping each independent entity within its prescribed powers can be a delicate process. Therefore, 'checks and balances' make sure not one branch is too powerful.

Such balance is maintained in various ways and means. Basically, each organ will have its own sphere of operation and with that regard no interference is permitted. The classical checks and balances exist between the three organs by the three organs themselves while there are also other means of checking those organs. Before considering such mechanisms of checks and balances outside the organs themselves, first it is good to see how this system works within the organs themselves. The best example is to have a look at the American constitution's basic elements of the separation of powers and its corresponding checks and balances exercised by each organ over the other. In summary of this, take a look at the following table that explains the basic tenets as enshrined within the US constitution.

Legislative (Congress)	Executive (President)	Judiciary (Supreme Court)
1. Power to write laws	1. May veto laws (but this may be overridden by a two-thirds majority in both houses)	1. May declare laws unconstitutional and unenforceable
2. Power to enact taxes, authorise borrowing, & set the budget	2. May refuse to enforce certain laws	2. Determines which laws apply to any given case
3. Sole power to declare war	3. May refuse to spend money allocated for certain purposes	3. Sole power to interpret the law and apply it to particular disputes
4. Subpoena (investigative)	4. Sole power to wage war	4. Power to determine the

Power	(operational command of the military)	disposition of prisoners
5. Power to confirm Supreme court judges and Executive cabinet officials	5. Responsibility for making declarations (for example, declaring a state of emergency) and promulgating lawful regulations and executive orders	5. Appointed for life
6. Each house is responsible for policing its own members	6. Executive privilege (refusal to submit to legislative subpoena)	6. Power to compel testimony and the production of documents
7. Powers internal to the legislature are split between its two houses, the Senate and the House of Representatives. Only the House may originate spending bills. Only the House may impeach the President, but only the Senate may remove him/her from office. Only the Senate approves treaties and nominees.	7. Use of the advantageous position as chief executive to propose and advocate for laws	7. The appeals process enforces uniform policies in a top-down fashion, but gives discretion in individual cases to low-level judges (The amount of discretion depends upon the standard of review, determined by the type of case being reviewed.)
8. Each house can prevent the other from passing any law	8. Responsibility to appoint judges	8. May only rule in cases of an actual dispute brought between actual petitioners
9. Sole Federal Agency with the power to pass constitutional amendments (by two-thirds majority and with the consent of three-	9. Power to grant pardons to federal offenders	

quarters of the states)		
10. Power to determine the size and structure of the courts		
11. Power to determine the budgets of the courts		
12. Responsibility for confirming judicial nominees		
13. Power to impeach and remove judges		
14. Power to determine courts' jurisdiction (except Supreme Court's original jurisdiction)		

The three branches of government while functioning in their area of specialization will have the opportunity and right to review the other's acts. The legislature's law-making power may be checked by the executive's veto power and the judiciary's power as interpreter of the constitution whereby it may nullify a legislation that contradicts the constitution. While the power of the executive to appoint judges may be checked by the corresponding responsibility of the Congress to approve such appointment the legal protection for secured tenure will have a checking effect as it denies the executive not to interfere into the works of the judiciary. On top of budgetary decisions, the legislative organ also has a checking power over the judiciary by its right to impeach and remove judges. Many of such intertwined powers and responsibilities show how sophisticated the matter is for design. But once done it remains to be a very effective means of closing the door for tyrannical rules.

When we see the FDRE constitution in respect of the above mentioned points, the absence within the prerogatives of the courts the power to interpret the

constitution avoids the means for the latter to check the excesses of the legislative organ. Moreover, as is true in parliamentary system of government, the executive is 'dependent' or in our case, part of the legislature. This is so because in principle the highest government power remains within the House of Peoples' Representatives. As indicated in Article 50(3) 'The House of Peoples' Representatives is the highest authority of the Federal Government. The House is responsible to the People.' (Here for consistency sake the last word 'the People' should have been 'the Nations, Nationalities, and Peoples of Ethiopia.') The Premier, while appointing his crew cabinet members has the option to look into the two Houses or outside. Though that can be considered as the normal way to do it, the absence, in the constitution, of denying a Minister's seat within the law-making body once appointed as a minister by the Premier creates a situation where a person will make a law that he himself is expected to execute.

The executive, with the approval of the House appoints the chief justice of the Federal Supreme Court thereby controlling the judiciary and being checked by the legislature. However, the absence of judicial review and administrative courts in our legal system, the checking that should have been exercised by the judiciary over the executive remains just a wish. Budget is to be decided nationally by the House on the basis of the proposal by the executive branch, and to thinly allocate the budget remains to be at each organ's own prerogative. The House, as the highest government organ in the country, has the right and responsibility to question the executive on its day-to-day running of its affairs. It is provided in Article 55(17) in the following way;

'It has the power to call and to question the Prime Minister and other Federal officials and to investigate the Executive's conduct and discharge of its responsibilities.'

If, through such process, the executive fails to maintain the support of the majority of the House, it shall lose vote of confidence and the party or coalition of parties that has formed the executive will also lose its political power. The following is provided under Article 60(2) concerning the effect of loss of the majority's support within the House;

'The President may invite political parties to form a coalition government within one week, if the Council of Ministers of a previous coalition is dissolved because of the loss of its majority in the House.'

This way, it is expected that a strict checking would be exercised over the executive by the legislative organ of the country. Accordingly, it is very important to note for the executive it is not a 'once-in-five-years' job as far as its responsibility to maintain the vote of confidence within the House of Peoples Representatives is concerned.

The other form of checking that we find in the US constitution is the one that exists within the single organ itself. This form of checking exists only with the two organs of government, i.e. the legislature and the judiciary. In the former it exists because of the true bicameral parliament while in the latter because of the tiers of courts that function in any judicial system. As indicated in the table at point 8 in relation to the Congress and point 7 with regard to the Judiciary, there is intra-organ checking by, for instance, either of the houses by rejecting a bill that has been approved by the other. Similarly the higher court having the right

to reverse the lower courts' decisions will exercise a checking power. It is only the latter that works when it comes to the Ethiopian constitution as we do not have a true bicameral parliament because one of the Houses (the Federation Council) is not involved in the legislation process, except its power to propose the enactment, on civil matters, of laws that it '*deems necessary to establish and sustain one economic community.*'

2.4.3. 'Fourth-organ' checking mechanisms

Other than the checks and balances that is exercisable within the three organs themselves there exists checking by the so called 'fourth-organs' of the state. Within these category are primarily the peoples themselves who will have the opportunity at least once in a while to challenge those in power in an open forum of election as has happened during the second term election to the incumbent US Republican party that has undergone a landslide defeat in favor of the Democrats after its twelve years of reign in the US politics. Therefore, what we see here is modern day politics may now be seen as a form of check and balance. The leader of the opposition has the ability to scrutinize the work of the government, as has been done by the Democrats, thus ensuring a further safeguard against any abuse of power by the executive. As a consequence, a leader may fall from power at the following election. Thus, here politics is serving as a fourth-branch of checking and *opposition leaders and the public* are the primary players which is true in all countries where there are democratic institutions that ensure the active participation of these two agents.

The properly identified fourth branch of government in the modern democracies is the *bureaucracy* which is governed by the rules of *civil service*. This is a group of professional corps of officials organized in a pyramidal hierarchy and

functioning under impersonal, uniform rules and procedures. Recruitment is done on the basis of competence and not on political allegiance. The goal of any bureaucracy is to be rational, efficient, and professional. Thus, as the name 'civil' indicates, these occupations are neither political nor judicial. The members of the civil service are meant to serve as neutral advisors to elected officials and though not charged with their formulation they are charged with the execution of policies. This fourth branch of government is supposed to check the excesses of each organ within which they are working in a neutral, friendly and constructive approach.

The third and the most important fourth branch is *the press* which is entrusted with this task of checking the government's exercise of power through public criticisms. For the opposition leaders and the public at large the information source is the press on which the formers have to rely to play their respective roles. Traditionally, the press has been the 'voice of the people' keeping government somewhat in check. Among the widely known US press success stories the Watergate Scandal could be cited where two Washington Post reporters exposed government corruption and cover up at the highest levels of government. This exposure caused many individuals to resign, be fired, or prosecuted. For the May 2005 elections in Ethiopia, the role that the Ethiopian free press has played is to be remembered for 'eternity', though such vigilance still has its own risk of ending up in jail, if not worse, in countries of 'beginners-to-democracy.'

In the common law traditions, *the Juries* (groups of randomly selected citizens) also have an important role in the check-and-balance system. They have the sole authority to determine the facts in most criminal and civil cases, acting as a powerful buffer against arbitrary enforcement by the executive and judicial

branches. In many jurisdictions they are also used to determine whether or not a trial is warranted, and in some places Grand Juries have independent investigative powers with regard to government operations. This again is not present in the civil law traditions such as Ethiopia.

Related restraint-of-power concepts are Federalism-also known as vertical separation of powers prevents abuse by dividing governing powers, the separation is usually between municipal, provincial and national governments; rule of law also prevents arbitrary exercise of the executive power, preserves general and minority rights, and promotes stability and predictability; democracy and civil society, attempts to constrain elected branches of government to act in the public interest, not in self-interest; civilian control of the military, helps prevent dictatorship through military rule; an independent central bank-financial institution designed to regulate and control the money supply of a nation, with the goal of fostering economic growth without inflation-may also play a role if it is fairly independent through market analysis and preventing the government from 'bad spending'.

These are some of the checking mechanisms that exist outside the three organs of government and they sometimes are much stronger than the one that exist within the three organs themselves. It is also important to note that these are not as such recognized as fourth-branch of government though they are playing their role as one. Still important is the fact that the traditional threefold government power division is somehow being modified by such instances as *the Gaza Strip* which had only executive and legislative branches, reducing the traditional power share into two. A different approach is also that of the *Republic of China's* government which has five branches: *the Executive Yuan, Legislative Yuan, Judicial*

Yuan, Control Yuan, and Examination Yuan (many countries have rough analogues to the Control Yuan in the forms of Ombudsmen, separate from the executive and the legislature.)

Dear student, are you following all the discussions that we have been making? Let me now take the opportunity to test your attentiveness through out the discussion by putting few review questions on the subtopic.

Exercise III.

1. What is/are the advantage(s) of separation of powers for Montesquieu?

2. What is the difference between separation of powers and separation of duties?

3. Briefly describe the meanings of functional, personal and institutional separation of powers.

4. Why absolute separation of power by and in itself was not considered to be enough by the framers of the American constitution and introduced the principle of checks and balances?

5. Describe the two mechanisms of checks and balances that operate within the organs themselves.

6. Discuss how the public, opposition leaders, and the press could play a checking role as the fourth branch of government.

7. What factors may be considered as preconditions for the bureaucracy to play its checking role on the politicians' exercise of power?

8. Do you think the Republic of China's approach to government power division is to be preferred than the traditional threefold power division? Discuss.

2.5. Separation of State and Religion

The other fundamental principle to be discussed is separation of state and religion. This is a principle of the modern secular constitutions. The relationship between the religious and secular authority has undergone a fundamental change in many societies. In most ancient civilizations the separation of religious and political orders was not clearly defined. With the advent of Christianity, the idea of two separate orders emerged, based on Jesus' command to "Render unto Caesar what are Caesar's, and to God the things that are God's" (Mark 12:17). The close association of religion and politics, however, continued even after the triumph of Christianity as emperors such as Constantine exercised authority over both church and state.

The concept of secular government was influenced by Enlightenment thinkers. In most countries of today's world states protect freedom of worship and maintain a distinction between civil and religious authority. However, the legal systems of some modern Islamic countries are based on Shari'ah. In the US and many other countries of transition from Christianity to secularism, the principle of separation of state and church has been tested in the arena of public education by

controversies over issues such as school prayer, public funding of parochial schools, and the teaching of creationism.

The separation of state and religion is a principle that government must maintain an attitude of neutrality toward religion. And it is also a political doctrine which states that the institutions of the state or national government should be kept separate from those religious institutions. The belief that religious and state institutions should be separate covers a wide spectrum, ranging between one extreme which would secularize or eliminate the church, and theocracy, in which the government is an affiliate of the church. Some secularists believe that the state should be kept entirely separate from religion, and that the institutions of religion should be entirely free from governmental interference.

A secular government does not cite a specific religious institution for the justification of its authority. However, some secular governments claim quasi-religious justifications for their powers, emphasizing the relationship mainly for ceremonial and rhetorical purposes. This is done for the general welfare and the benefit of the state, does not necessarily favor any specific religious group, and the state does not conform to any doctrine other than its own. This arrangement is called *civil religion*. Some secularists would allow the state to encourage religion (such as by providing exemptions from taxation, or providing funds for education and charities, including those that are 'faith based'), but insist the state should not establish one religion as state religion, require religious observance, or legislate dogma.

Some countries embrace a middle position, a compromise between secular and religious government. In these countries the state uses the powers of government to directly support a specific religious institution or established church. In

Turkey, for example, despite it being an officially secular country, the Preamble of the Constitution states that 'There shall be no interference whatsoever of the sacred religious feelings in State affairs and politics.' In order to control the way religion is perceived by adherents, the State pays imams' wages, and provides religious education in public schools (article 24 of that country's constitution). The state has a department of Religious Affairs (article 136 of the Constitution), directly under the Prime Minister bureaucratically, responsible for organizing the Muslim religion-including what will and will not be mentioned in sermons given at mosques, especially on Fridays. Such an interpretation of secularism, where religion is under strict control of the State is largely at odds with the freedom to exercise one's religion.

A theocracy exists when a religion establishes the government and religious law is applied to state policy under the direct authority of the religious institution. In a theocracy, the courts or officials of the religion direct policies of the civil government. This form of religious and secular institutional and legal mix-up exists at present in some Muslim countries of the world and the vast majority of states seem to incline either to the pure secularism or the middle way that is described above.

When we see Ethiopia's history with this regard, there had been a very close relationship between the church and politics until recently, to wit, till the fall of Emperor Haileselassie I. The monarchs used to claim that their rule was based on divine right, which in turn helped them to ensure legitimacy. The rules of both the religion and the state had also been incorporated in a single document, called 'the Fetha Nagast'. Influenced by the socialist ideology, the Derg had brought the separation of the church from the state into the scene. Its party members were

not allowed to have, at least 'officially', any religious affiliation. The current constitution has also made it clear, as was done by the 1987 constitution, that state and religion are separate.

It is still chapter II, in which we find the important principles that we have been discussing so far that is relevant part of the constitution together with the other Article which deals with freedom of religion elsewhere in chapter III. The main Article as far as the principle is concerned is the one that we find in chapter II. It reads in the following way;

Article 11: Separation of State and Religion

1. *State and religion are separate.*
2. *There shall be no state religion.*
3. *The state shall not interfere in religious matters and religion shall not interfere in state affairs.*

And Article 27 of the constitution provides for freedom of religion, belief and opinion. Just to get a sense of it sub-article 1 of this article says, 'Everyone has the right to freedom of thought, conscience and religion. This right shall include the freedom to hold or to adopt a religion or belief of his choice, and the freedom, either individually or in community with others, and in public or private, to manifest his religion or belief in worship, observance, practice and teaching.' From these two provisions it is not so difficult to judge which position that our constitution has opted for.

Secularism coupled with freedom of religion seems the position. The first and the second sub-articles of Article 11 tell us in clear terms that the state is non-theocratic or secular by declaring first the separation of the two and then by

reaffirming the absence of any patronage to any one religion. These two statements support each other and strengthening what is said by the other, both are meant to deliver the same message. A kind of mutual obligation has been imposed by sub-article 3 of the same article as it signals a duty to ward-off from each other's business. It is meant a duty for the religions which are allowed to be freely exercisable within the country as well as to the state. In fact the exercise of the right has its own scope and up on the weight to be given under the circumstances between this freedom of religion and that of public interest that might have been put at risk, then there is always a preferred position to be taken in favor of the latter. This will be a discussion that we will come back to when we deal with fundamental rights and freedoms.

Therefore, our constitution has this secularity principle coupled with neutrality, and non-interference into the free exercise of the religious rights both negatively as well as positively. In fact the positive way of intervention into religious affairs, for instance to promote good morale among the youth, is somehow questionable, not on the basis of separation of state and religion, rather on the basis of the prohibition on neutrality/impartiality, which is reflected under article 11 sub-article 2. However, the question that still remains bizarre is what is wrong in intervention that is done without discrimination, to wit, to all the religious sects functioning within the country. This may have a benefit for the overall public as the ultimate beneficiary from a well behaved youth is this same society. That is just something that I will leave for your own discussion, if it is worth of it.

Exercise IV.

1. A person argues that there need to be positive interference in what religious institutions do by the state. However, he has no answer how it

could be done within the context of the FDRE's constitutional stipulations. First of all do you agree with the need of such interference? Why/why not? If you agree with the need, then how can it be done without violating any of the provisions of the FDRE constitution?

2. What is civil religion?

2.6. Rule of Law

Dear student, this is also one of the principles of constitutional law, which in fact is the most important one too. What does it sound to you? What comes to your mind when you hear now and then, which I am sure you do, this term being uttered by politicians and non-politicians alike?

The United Nations Secretary General, in one of its speeches while addressing the General Assembly had defined rule of law in the following manner;

'a principle of governance in which all persons , institutions, entities, public and private, including the State itself are accountable to laws that are publicly promulgated, equally enforced, and independently adjudicated,

laws which are consistent with international human rights norms and standards'

The rule of law is rather an ambiguous term that can mean different things in different contexts. In one context the term means rule according to law, which is to mean that no individual can be instructed by the government to pay civil damages or undergo criminal punishment except in strict accordance with well-established and clearly defined laws and procedures. Secondly, the term may mean rule under the law, which again is to mean that no branch of government is above the law, and no public official may act arbitrarily or unilaterally outside the law. In a third and final context the term means rule according to a higher law, which means no written law may be enforced by the government unless it confirms with certain unwritten, universal principles of fairness, morality, and justice which transcend human legal systems. Let us see each of these three separately for the better understanding of the term.

a) Rule according to Law

The rule of law requires the government to exercise its power in accordance with well-established and clearly written rules, regulations, and legal principles. A distinction is sometimes drawn between power, will, and force on the one hand, and law on the other. When a government official acts pursuant to an express provision of a written law, he acts within the rule of law. However, government official acts by the sheer force of his will and power where there is no law to back up his actions.

Under the rule of law, no person may be prosecuted for an act that is not punishable by law. When the government seeks to punish someone for an

offense that was not deemed criminal at the time it was committed, the rule of law is violated because the government exceeds its legal authority to punish. The rule of law requires that government impose liability only insofar as the law will allow. Government exceeds its authority when a person is held to answer for an act that was legally permissible at the outset but was retroactively made illegal. This principle is reflected by the prohibition against the non-retroactivity of criminal laws under Article 22 of the FDRE constitution.

For similar reasons, the rule of law is abridged when the government attempts to punish someone for violating a vague or poorly worded law. Ill-defined laws confer too much discretion upon government officials who are charged with the responsibility of prosecuting individuals for criminal wrongdoing. The more prosecutorial decisions are based on the personal discretion of a government official, the less they are based on law. This is also stipulated in criminal laws by outlawing the creation of crimes using analogy as an interpretative tool. You may refer in a rush to Article 2 of the Criminal Code with this regard.

Before the government may impose civil or criminal liability, a law must be written with sufficient precision and clarity that a person of ordinary intelligence will know that certain conduct is forbidden. When a court is asked to shut down a paint factory that is emitting pollutants at an illegal rate, for example, the rule of law requires the government to demonstrate that the factory owner failed to operate the business in accordance with publicly known environmental standards. Thus, one can see how the meaning of the rule of law is so broad and that as how it can mean anything even under this heading of 'rule according to law.' Let's now see the second sense of the term which is also much more

important and relate much more to accountability issues that His Excellency Kofi Annan had referred to in his speech.

b) Rule under Law

The rule of law also requires the government to exercise its authority under the law. This requirement is sometimes explained with the phrase "no one is above the law." During the seventeenth century, however, the English monarch was vested with absolute sovereignty, including the prerogative to disregard laws passed by the House of Commons and ignore rulings made by the House of Lords. In the eighteenth century, absolute sovereignty was transferred from the British monarchy to Parliament. Similar situations existed in the monarchical periods of Ethiopia where the king was considered as the fountain of justice and enjoyed impunity for his acts.

Under a modern Constitutional system, no single branch of government is given unlimited power. The authority granted to one branch of government is limited by the authority granted to the coordinate branches and by the human rights and freedoms, federal and state statutory provisions, and customary practice. The power of any single branch of government is similarly restrained at the state level.

Members of the judiciary face a slightly different scenario when it comes to the rule of law. Each day judges are asked to interpret and apply legal principles that defy clear exposition. Terms like "due process," "reasonable care," and "undue influence" are not self-defining. Nor do judges always agree about how these terms should be defined, interpreted, or applied. When judges issue controversial decisions, they are often accused of deciding cases in accordance

with their own personal beliefs, be they political, religious, or philosophical, rather than in accordance with the law.

Scholars have spent centuries examining this issue. Some believe that because the law is written in such indefinite and ambiguous terms, all judicial decisions will inevitably reflect the personal tastes of the presiding judge. Other scholars assert that most laws can be interpreted in a neutral, objective, and apolitical fashion even though all judges may not agree on the appropriate interpretation. In either case the rule of law is better served when judges keep an open mind to alternative readings of constitutional, statutory, and common-law principles. Otherwise, courts run the risk of prejudging certain cases in light of their own personal philosophy. And there is a difficulty for holding them responsible for such partiality, as that is their life-long business-giving life to the dead words of a legislative text to apply it in a specific case by using their consciences.

c) Rule according to Higher Law

A conundrum is presented when the government acts in strict accordance with well-established and clearly defined legal rules and still produces a result that many observers consider unfair or unjust. Before the Civil War, for example, African Americans were systematically deprived of their freedom by carefully written codes that prescribed the rules and regulations between master and slave. Even though these slave codes were often detailed, unambiguous, and made known to the public, government enforcement of them produced unpleasant results.

Do such repugnant laws comport with the rule of law? The answer to this question depends on when and where it is asked. In some countries the political

leaders assert that the rule of law has no substantive content. These leaders argue that a government may deprive its citizens of fundamental liberties so long as it does so pursuant to a duly enacted law. At the Nuremberg Trials, the political, military, and industrial leaders of Nazi Germany unsuccessfully advanced this argument as a defense to Allied charges that they had committed abominable crimes against European Jews and other minorities during World War II.

In other countries the political leaders assert that all written laws must conform to universal principles of morality, fairness, and justice. These leaders argue that as a necessary corollary to the axiom that "no one is above the law," the rule of law requires that the government treat all persons equally under the law. Yet the right to equal treatment is violated when the government categorically denies a minimal level of respect, dignity, and autonomy to a single class of individuals. These unwritten principles of equality, autonomy, dignity, and respect are said to transcend ordinary written laws that are enacted by government. Sometimes known as natural law or higher law theory, such unwritten and universal principles were invoked by the Allied powers during the Nuremberg trials to overcome the defense asserted by the Nazi leaders.

Dear student, I suppose that now you realize how relevant the concept of rule of law is. This is a concept that also focuses on the practice of laws rather than in their abstract. When a certain action is taken, therefore, a knowledgeable person of the rule of law will immediately ask 'where is your ground for so acting?' Then, first the answer should not be I don't have any, sorry for that! (Rule according to law), or it can't be said that even if there is restriction on not acting this way, I have the right to violate that prohibition and act that way anyway (Rule under the law). And there is also a need to see if that act, even if permitted

by the unambiguously written law, is not above the principles of justice, fairness, morality, etc (Rule according to the higher law). In civil law countries, with this regard, the reference as the source of the higher law would be the constitution, and one will have the right to say that this law, even if legislated by the parliament, is against the constitution and thus you are acting against the principle of rule of law.

Albert Venn Dicey, in his book entitled 'Law of the Constitution' (1895) had addressed these three elements of the rule of law, though in different terms. Dicey identified three principles which together establish the rule of law:

*(1) the absolute supremacy or predominance of regular law as opposed to the influence of arbitrary power (**which is the same as saying Rule according to law**); (2) equality before the law or the equal subjection of all classes to the ordinary law of the land administered by the ordinary courts (**which again is slightly the same as Rule under the law**); and (3) the law of the constitution is a consequence of the rights of individuals as defined and enforced by the courts (**this exactly represents rule according to the higher law**).*"

A final point to note with this regard is that the concept of "rule of law" *per se* says nothing of the "justness" of the laws themselves, but simply how the legal system upholds the law. As a consequence of this, a very undemocratic nation or one without respect for human rights can exist with or without a "rule of law", a situation which many argue is applicable to several modern dictatorships. However, the "rule of law" is considered a pre-requisite for democracy, and as such, has served as a common basis for human rights discourse between countries such as the People's Republic of China and the West.

Now let us see briefly one of the provisions within the FDRE constitution that addresses rule of law, among others. As I said above, rule of law is not something to be legislated about; rather it is something to be practiced. The greatest that the law may provide with this regard is the consequences for acting out of the terms of the law, which is legally termed as misuse or abuse of power. Under Article 12 of the FDRE constitution, there is one provision that lays down one principle with regard to conduct and accountability of public officials; and there is Article 22 that I had already mentioned to you; there is Article 2 of the criminal code that prohibits creating an offence by analogy; there is Article 37 of the FDRE constitution that talks about access to justice as one of the democratic rights of the Ethiopian people. All these, in conjunction with others, give you a picture of rule of law within the above mentioned guidelines. I have reproduced Article 12 for you here;

Article 12: Conduct and Accountability of Government

1. *The conduct of affairs of government shall be transparent.*
 2. *Any public official or an elected representative is accountable for any failure in official duties.*
 3. *In case of loss of confidence, the people may recall an elected representative.*
- The particulars of recall shall be determined by law.*

By its first sub-article, this provision is laying down the platform for accountability and the rule of law. Unless there is transparent way of doing things which are meant in the public interest it is hardly possible to monitor the respect for the rule of law. This starts from the point of making the laws public on the basis of which the citizens may be judged for their actions or inactions. Once the rules are known everyone will have the chance to question the measures of the official in light of the rules of the game. If the official fails in

his/her duties, for instance by conducting him/herself against the rule of the game, sub-article two states that s/he shall be answerable. The responsibility may range, depending on the circumstances, from legal up to political responsibilities. As far as the legal responsibility is concerned-which may be civil and/or criminal-it is to be treated elsewhere in the civil and criminal codes. However, this provision, mentions the political responsibility which is loss of vote of confidence as a sanction for being against the tenets of rule of law. It is, therefore, very important to bear in mind this framework that the constitution has provided in general concerning rule of law.

Exercise V.

1. Briefly describe the three meanings of rule of law.

2. One friend of yours is saying that the principle of the rule of law does not work when it comes to judges. Do you agree with his assertion? Why/Why not?

3. 'Rule of law does not have any substantive content and thus it may mean anything for everyone.' Explain!

4. 'Dictatorship and rule of law can go together.' Do you agree with this statement? Why/Why not?

2.7. Independence of the Judiciary

Dear student judicial independence is another principle that we are going to consider briefly. This is a doctrine that decisions of the judiciary should be impartial and not subject to influence from the other branches of government or from private or political interests. The very fact that the organs must remain separate makes judicial independence a matter of necessity. Moreover, guaranteeing the independence of the judiciary is a basic means of securing trust of and legitimacy in the public in what the courts' do as guardians of individual and group rights.

Basically, judicial independence has two elements; institutional independence and functional independence. By institutional independence, we are referring to the fact that the judicial branch must be independent from the executive and legislative branches. It is believed that the possibility of guaranteeing the rights of individuals and groups will be less likely to happen where the judicial branch of the government is subordinated to the other branches of government which control the treasury as well as the military. The judicial organ, which does have a

say neither on the budget nor on the 'weapons' has only the law in its hand which, if left free, may play as a strong a role as the other two. At the same time, if subordinated, it has no any might to resist such subordination and that is why the United Nations General Assembly in its Resolutions 40/32 of 29 November 1985 declared that 'the independence of the Judiciary shall be guaranteed by the State and enshrined in the Constitution...It is the duty of all governmental and other institutions to respect and observe the independence of the judiciary.' This is one of the principles that this resolution has addressed concerning this particular principle with the objective of providing for member states guidance with this regard. Thus, it is to be emphasized that by this resolution states are required to have the principle enshrined in their constitutions and guarantee the judiciary with institutional independence.

This form of independence has been stated under the FDRE Constitution Article 79(2) in the following way:

Courts of any level shall be free from any interference of influence of any governmental body, government official or from any other source.

From this we can understand that the judiciary, as represented by the courts, has been guaranteed with institutional independence, at least in terms of normative and constitutional aspirations. This is to mean that practically, there may be mechanisms to screw-up this kind of norm and defeat its ultimate purpose. The other aspect of judicial independence is functional independence, which is also called decisional independence. The functions of the judiciary-as an organ empowered to interpret laws to routinely apply them in particular factual situations-may be influenced by external as well as internal factors.

Externally, the judges must be guarded off from the influences of politics, media and other pressures that may come to their ways while trying to reach at a particular decision. Thus, the only ground for taking a certain position by way of judgment must always be the law and nothing but the law. Internally, biases on the grounds of corruption or affiliation to either of the parties must not influence the outcome of a particular litigation, which again would tantamount to going against the independence of the judiciary. Again the following is provided in its second paragraph of the UN resolution that I cited above which addresses this issue;

The judiciary shall decide matters before them impartially, on the basis of facts and in accordance with the law, without any restrictions, improper influences, inducements, pressures, threats or interferences, direct or indirect, from any quarter or for any reason.

This same fact has been addressed by the FDRE Constitution Article 79, one of which being the above provision and followed by sub-article 3 of the same Article in the following way;

Judges shall exercise their functions in full independence and shall be directed solely by the law.

From this, it is easy to discern that the judicial organ must be let to function on the instrumentalities of the law, without any biases which might be motivated externally or internally. Especially, the external influence may be a derivative of many factors such as tenure security, decent salary and good working conditions. Where the judge's tenure is in the hands of an organ that is predominantly motivated by political ideals, then there is a disincentive to remain neutral, which works the same way where the salary of the judges is at a level that hardly enables them to enjoy their 'freedom from want.' Such factors could also be sources for the internal influences, such as to accept bribes and to be biased by

relationships at the expense of impartiality. All these factors have been addressed by the UN resolution that I mentioned above and which I have attached at the end of this course material for you. Even if this matter is quite controversial and calls for a wider discussion, I will leave most of the issues for your own further reading and research. Principally I urge you to compare the relevant provisions of chapter 9 of the FDRE constitution with the Basic Principles on the Independence of the Judiciary that are provided in the UN resolution that has been attached herewith.

Exercise VI.

1. Why do we need to make the judiciary independent?

2. What are the two aspects of independence of the judiciary?

3. The following is provided under the UN basic principles concerning the independence of the Judiciary at paragraph 5: 'Everyone shall have the right to be tried by ordinary courts or tribunals using established legal procedures. Tribunals that do not use the duly established procedures of the legal process shall not be created to displace the jurisdiction belonging to the ordinary courts or judicial tribunals.' Which aspect of the judicial independence do you think is reflected by this principle and why? Which

of the provisions of the FDRE constitution reflect this principle, if there is any?

4. Again read the following from the principles: 'The term of office of judges, their independence, security, adequate remuneration, conditions of service, pensions and the age of retirement shall be adequately secured.' (The basic principles Para. 11). Which feature of independence is reflected by this principle and why? Is it possible to find any similar provision in the FDRE constitution?

Basic Principles on the Independence of the Judiciary

(Adopted by the Seventh United Nations Congress on the Prevention of Crime and the Treatment of Offenders held at Milan from 26 August to 6 September 1985 and endorsed by General Assembly resolutions 40/32 of 29 November 1985 and 40/146 of 13 December 1985)

Whereas in the Charter of the United Nations the peoples of the world affirm, inter alia, their determination to establish conditions under which justice can be maintained to achieve international co-operation in promoting and encouraging respect for human rights and fundamental freedoms without any discrimination,

Whereas the Universal Declaration of Human Rights enshrines in particular the principles of equality before the law, of the presumption of innocence and of the right to a fair and public hearing by a competent, independent and impartial tribunal established by law,

Whereas the International Covenants on Economic, Social and Cultural Rights and on Civil and Political Rights both guarantee the exercise of those rights, and in addition, the Covenant on Civil and Political Rights further guarantees the right to be tried without undue delay,

Whereas frequently there still exists a gap between the vision underlying those principles and the actual situation,

Whereas the organization and administration of justice in every country should be inspired by those principles, and efforts should be undertaken to translate them fully into reality,

Whereas rules concerning the exercise of judicial office should aim at enabling judges to act in accordance with those principles,

Whereas judges are charged with the ultimate decision over life, freedoms, rights, duties and property of citizens,

Whereas the Sixth United Nations Congress on the Prevention of Crime and the Treatment of Offenders, by its resolution 16, called upon the Committee on Crime Prevention and Control to include among its priorities the elaboration of guidelines relating to the independence of judges and the selection, professional training and status of judges and prosecutors,

Whereas it is, therefore, appropriate that consideration be first given to the role of judges in relation to the system of justice and to the importance of their selection, training and conduct,

The following basic principles, formulated to assist Member States in their task of securing and promoting the independence of the judiciary should be taken into account and respected by Governments within the framework of their national legislation and practice and be brought to the attention of judges, lawyers, members of the executive and the legislature and the public in general. The principles have been formulated principally with professional judges in mind, but they apply equally, as appropriate, to lay judges, where they exist.

Independence of the judiciary

1. The independence of the judiciary shall be guaranteed by the State and enshrined in the Constitution or the law of the country. It is the duty of all

governmental and other institutions to respect and observe the independence of the judiciary.

2. The judiciary shall decide matters before them impartially, on the basis of facts and in accordance with the law, without any restrictions, improper influences, inducements, pressures, threats or interferences, direct or indirect, from any quarter or for any reason.

3. The judiciary shall have jurisdiction over all issues of a judicial nature and shall have exclusive authority to decide whether an issue submitted for its decision is within its competence as defined by law.

4. There shall not be any inappropriate or unwarranted interference with the judicial process, nor shall judicial decisions by the courts be subject to revision. This principle is without prejudice to judicial review or to mitigation or commutation by competent authorities of sentences imposed by the judiciary, in accordance with the law.

5. Everyone shall have the right to be tried by ordinary courts or tribunals using established legal procedures. Tribunals that do not use the duly established procedures of the legal process shall not be created to displace the jurisdiction belonging to the ordinary courts or judicial tribunals.

6. The principle of the independence of the judiciary entitles and requires the judiciary to ensure that judicial proceedings are conducted fairly and that the rights of the parties are respected.

7. It is the duty of each Member State to provide adequate resources to enable the judiciary to properly perform its functions.

Freedom of expression and association

8. In accordance with the Universal Declaration of Human Rights, members of the judiciary are like other citizens entitled to freedom of expression, belief, association and assembly; provided, however, that in exercising such rights, judges shall always conduct themselves in such a manner as to preserve the dignity of their office and the impartiality and independence of the judiciary.

9. Judges shall be free to form and join associations of judges or other organizations to represent their interests, to promote their professional training and to protect their judicial independence.

Qualifications, selection and training

10. Persons selected for judicial office shall be individuals of integrity and ability with appropriate training or qualifications in law. Any method of judicial selection shall safeguard against judicial appointments for improper motives. In the selection of judges, there shall be no discrimination against a person on the grounds of race, colour, sex, religion, political or other opinion, national or social origin, property, birth or status, except that a requirement, that a candidate for judicial office must be a national of the country concerned, shall not be considered discriminatory.

Conditions of service and tenure

11. The term of office of judges, their independence, security, adequate remuneration, conditions of service, pensions and the age of retirement shall be adequately secured by law.

12. Judges, whether appointed or elected, shall have guaranteed tenure until a mandatory retirement age or the expiry of their term of office, where such exists.

13. Promotion of judges, wherever such a system exists, should be based on objective factors, in particular ability, integrity and experience.

14. The assignment of cases to judges within the court to which they belong is an internal matter of judicial administration.

Professional secrecy and immunity

15. The judiciary shall be bound by professional secrecy with regard to their deliberations and to confidential information acquired in the course of their duties other than in public proceedings, and shall not be compelled to testify on such matters.

16. Without prejudice to any disciplinary procedure or to any right of appeal or to compensation from the State, in accordance with national law, judges should enjoy personal immunity from civil suits for monetary damages for improper acts or omissions in the exercise of their judicial functions.

Discipline, suspension and removal

17. A charge or complaint made against a judge in his/her judicial and professional capacity shall be processed expeditiously and fairly under an appropriate procedure. The judge shall have the right to a fair hearing. The examination of the matter at its initial stage shall be kept confidential, unless otherwise requested by the judge.

18. Judges shall be subject to suspension or removal only for reasons of incapacity or behaviour that renders them unfit to discharge their duties.

19. All disciplinary, suspension or removal proceedings shall be determined in accordance with established standards of judicial conduct.

20. Decisions in disciplinary, suspension or removal proceedings should be subject to an independent review. This principle may not apply to the decisions of the highest court and those of the legislature in impeachment or similar proceedings.

Chapter III

Classification of Constitutions

3.1. Introducing the chapter

Dear student this chapter, which will be the last chapter of this module, is due to acquaint you with the various classifications of constitutions and which fact again will put you in a better position to understand what a constitution is all about. Classifying the constitutions under various headings based on such features as 'the form and status of its rules, the ease with which the constitution can be changed, the degree to which the constitution is observed in practice, and based on its content' has the benefit of clarity of knowledge in the area.

Objectives:

A student who has successfully finished reading this chapter will;

- be able to discern the difference of written and unwritten constitutions as well as codified/uncodified constitution,
- be in a position to explain a rigid constitution in contradistinction to a flexible one,
- be able to discuss the distinction between effective and nominal constitutions,

- be able to develop the skill of identifying a monarchical, republican constitution as well as a constitution that establishes federal, unitary, presidential or parliamentary systems by looking to its contents.

3.2. Various classifications of constitutions

3.2.1. Written/Unwritten constitution

The most widely known classification is the one that categorises constitutions in to two based on the form they assume. It is clear from the wording that when we say a constitution is written, it is to mean that the constitutional principles have been documented and have taken such a form that enables them easily accessible while the unwritten ones are those which do not have such a form of documentation and which are presumed to be found in that society's custom and tradition. While the written ones are considered to involve the human ingenuity as their creator, the unwritten ones are just organic evolutions of societal dynamism and tradition.

Over the world, there are only few countries that have unwritten constitution (i.e. Israel, New Zealand and the UK together with Bhutan, Saudi Arabia and Oman which are considered as non-democratic states), the overwhelming majority of the world states have written constitutions. Both the written as well as the unwritten forms of a constitution have their own benefits and fouts which have been exhaustively identified by Andrew Heywood in his book entitled 'Politics' (H., Andrew 1997; 295). I have reproduced his statements herein below for you;

A codified constitution: strengths and weaknesses

The strengths of a codified or written constitution include the following;

- ❖ *Major principles and key constitutional provisions are entrenched (securely established).*

- ❖ *The power of the legislature is constrained, cutting its sovereignty down to size.*
- ❖ *Non-political judges are able to police the constitution to ensure that its provisions are upheld by other public bodies.*
- ❖ *Individual liberty is more securely protected, and authoritarianism is kept at bay (is restrained).*
- ❖ *The codified document has an educational value, in that it highlights the central values and overall goals of the political system.*

The drawbacks or weaknesses of codification include the following;

- ❖ *A codified constitution is more rigid, and may therefore be less responsive and adaptable than an uncoded one.*
- ❖ *Government power may be more effectively constrained by regular elections than by a constitutional document.*
- ❖ *With a codified constitution, constitutional supremacy resides with non-elected judges rather than with publicly accountable politicians.*
- ❖ *Constitutional provisions enshrined in custom and convention may be more widely respected because they have been endorsed by history and not 'invented'.*
- ❖ *Constitutional documents are inevitably biased, because they endorse one set of values or principles in preference to others, meaning that they may precipitate more conflicts than they resolve.*

These are very pertinent and exhaustive listings that one can make with regard to the nature and virtues of each form of constitutions. It is good to note that the advantage mentioned for the written constitutions is generally considered as the disadvantage of the unwritten one. Accordingly, when we say that the written constitution has a feature of being rigid than not, we are saying that the unwritten one is relatively speaking flexible. This is so because, in the countries where their constitution is not codified, they have the principle of parliamentary

sovereignty than constitutional supremacy. This same fact empowers the elected representatives of the public to do whatever they might consider constitutionally sound legislation thereby changing the existing principles in the way it pleases them. Their formal accountability being to the public and exercisable once in a while during election periods it is likely that they may be in a position to make frequent changes on the unwritten constitutional principles of that particular country. It is, in any case, proper to understand these pros and cons as applicable to both of the forms by reading what is said for one in the opposite.

3.2.2. Rigid/Flexible Constitution

Such classification is based on the susceptibility/amenability of the constitution for change. And it is very important to understand the fact that both are very relative terms in the sense that a constitution is rigid or flexible by comparison to peer documents of its nature, otherwise there is no any criteria or objective content either for a rigid or flexible constitution, as such. A writer by the name Bryce (J., Bryce, 1835) had tried to connect the written/unwritten dichotomy with the rigid/flexible in his two Essays ('Flexible and Rigid Constitutions' and 'The Action of Centripetal and Centrifugal Forces on Political Constitutions'). He proposed that the basic distinction between the written and unwritten constitutions is not solely to be seen from its superficial form of being documented or not, rather also observable 'in the relation which each type of constitution bears to the ordinary laws of the state, and to the ordinary authority which enacts those laws.' Dear student, let's try to unpack what he meant by this statement and try to relate it with the rigid/flexible classification of the constitution.

In situations of unwritten constitution, the relation of the constitution with that of the ordinary laws is that they have the same rank and exert the same force. Moreover, there is a single authority to make and unmake any law of whatever nature, be it constitutional or other ordinary law. Dear student, have you understood the relation that an unwritten constitution has with ordinary laws and the authority that enacts those laws? Very great! From your own intuitive knowledge, do you think such a constitution be considered as rigid or flexible? I think you are in a good position to get this question right by saying flexible. Did you get it? I only have to hope that you did.

Let's try to establish the same relation for the written constitution. In case of written constitutions, there are two kinds of laws, one kind higher than the other, and more universally strong/potent; and there are likewise two legislative authorities, one (for example, a Constituent Assembly) superior and capable of legislating for all purposes whatsoever, the other inferior and capable of legislating only so far as the superior authority has given it the right and function to do so. From such relation one can see that written constitutions are more of rigid as they are supposed to remain authoritative over the changing and ordinary legislations that are to be issued by the ordinary law-making organ which is to be empowered by the written constitution. Thus, here the constitutional supremacy, rather than the parliamentary sovereignty is to be guaranteed.

Bryce further makes a very rational conclusion from the relations that we have tried to establish between written and rigid constitutions on the one hand and unwritten and flexible constitutions. 'Flexible constitutions have tended to be more stable than rigid ones.' Do you accept his conclusion? This seems a

contradiction in terms since flexible means a direct opposite to stability, which word is some times used as a synonym for rigid constitutions. He has reasons for his assertions which are worth noting here. First, he says, stability of any constitution depends not so much on its form (its being written or unwritten) as on the social and economic forces that stand behind it and support it. Secondly, the best instances of flexible constitutions have been those which grew up and lived on in nations of a conservative temper, nations which respected antiquity, which valued precepts, which liked going on doing a thing in the way their fathers had done it before them. The third and final reason he gives for his paradoxical assertion is that a constitution which has come down in the form of a mass of laws, precepts and customs, is not more mysterious, and therefore more august (noble), to the minds of the citizens than one they can read in a document, but is not felt by them to lie at their mercy and to live only by their pleasure.

Dear student, I hope that you are enjoying these analyses of the 18th century constitutional law writer since they seem too convincing and logical. If you grasp from where he started, i.e. categorizing written constitutions as rigid and the unwritten ones as flexible, then it will be easy to follow up the stable/unstable characterization based on the refined three reasons that he has provided us with. Thus, stability may not be equated with rigidity, nor flexibility be associated with instability of the constitution. This is so because, a rigidly drafted constitution may undergo a notoriously frequent change than a constitution, which on its face-value, appears to be flexible.

The features of a written constitution as either being flexible or rigid may be readable from the procedures of amendment that are laid down in its texts. Let us see what three constitutions provide for amendment procedures, one of which

being the FDRE constitution. Three texts are chosen not by accident rather by design so that to make you sense the flavour of relativity with regard to this form of classification of constitutions. These are the Federal Republic of Nigeria's Constitution, the Switzerland's Constitution and that of the FDRE constitution.

a) Federal Republic of Nigeria's Constitution chapter I, Part II and Section 9 (which falls within the part that treats powers of the Federal Republic of Nigeria) provides the following:

- (1) The National Assembly may, subject to the provision of this section, alter any of the provisions of this constitution.
- (2) An Act of the National Assembly for alteration of this constitution, not being an Act to which section 8 of this constitution applies (*this is a section that discusses how to pass an Act that creates a new state/region in our case*), shall not be passed in either House of the National Assembly unless the proposal is supported by the votes of not less than two-thirds majority of all the members of that House and approved by resolution of the Houses of Assembly of not less than two-thirds of all the States.
- (3) An Act of the National Assembly for the purpose of altering the provisions of this section, section 8 or Chapter IV (*which is about Fundamental rights, as is Chapter III of the FDRE Constitution*) of this Constitution shall not be passed by either House of the National Assembly unless the proposal is approved by the votes of not less than four-fifths majority of all the members of each House, and also approved by resolution of the House of Assembly of not less than two-third of all States.
- (4) For the purposes of section 8 of this Constitution and of subsections (2) and (3) of this section, the number of members of each House of the National Assembly shall, notwithstanding any vacancy, be deemed to be

the number of members specified in sections 48 (*This is a provision that says 'The Senate shall consist of three Senators from each State of them-and one from the Federal Capital Territory, Abuja'*) and 49 (*Again this is a provision that says 'Subject to the provisions of this Constitution, the House of Representatives shall consist of three hundred and sixty members representing constituencies of nearly equal population as far as possible, provided that no constituency shall fall within more than one State'*) of this Constitution.

b) The Constitution of Switzerland under Articles 138 and 139 has the following to say:

Article 138: Popular Initiative for the total revision of the Federal Constitution

- (1) 100,000 citizens entitled to vote may propose a total revision of the Federal Constitution.
- (2) 100,000 citizens entitled to vote may within 18 months of the official publication of their initiative demand a total revision of the Federal Constitution.

Article 139: Formulated popular initiative for Partial Revision of the Federal Constitution

- (1) 100,000 citizens entitled to vote may within 18 months of the official publication of their formulated initiative demand a partial revision of the Federal Constitution.
- (2) If the initiative violates the principle of unity of form, the principle of unity of subject matter, or mandatory rules of international law, the Federal Parliament declares it invalid, in whole or in part.
- (3) The initiative is submitted to the vote of the people and Cantons. The Federal Parliament recommends the initiative for adoption or rejection.

c) The FDRE Constitution Articles 104 and 105

Article 104: Initiation of Amendments

Any proposal for constitutional amendment, if supported by two-thirds majority vote in the House of Peoples' Representatives, or by a two-thirds majority vote in the House of the Federation or when one-third of the State Councils of the member States of the Federation, by a majority vote in each Council have supported it, shall be submitted for discussion and decision to the general public and to those whom the amendment of the Constitution concerns.

Article 105: Amendment of the Constitution

(1) All rights and freedoms specified in Chapter Three of this Constitution, this very Article, and Article 104 can be amended only in the following manner:

- When all State Councils, by a majority vote, approve the proposed amendment;
- When the House of Peoples' Representatives, by a two-thirds majority vote, approves the proposed amendment; and
- When the House of the Federation, by a two-thirds majority vote, approves the proposed amendment.

(2) All provisions of this Constitution other than those specified in sub-Article 1 of this Article can be amended only in the following manner:

- When the House of Peoples' Representatives and the House of the Federation, in a joint session, approve a proposed amendment by a two-thirds majority vote; and

- When two-thirds of the Councils of the member States of the Federation approve the proposed amendment by majority votes.

Dear student, try to read these constitutional provisions at least twice and formulate your own value-judgement about their level of rigidity or flexibility in relative terms-as this is bound to be the case always. Which one do you think is the most rigid one, or the relatively flexible one? It appears that the most rigid one is obviously the Swiss Constitution as it calls for its amendment a referendum, which is more stringent to arrive at such wide range of assent than securing a majority (either qualified or absolute) of people sitting in a parliament. And when we compare the Nigerian and that of Ethiopian Federal constitutions, there appears greater similarity than difference. The only variation that we see is in relation to initiation and participation of the public in discussing the initiated proposal of amendment, though it matters almost nothing in determining the flexibility or rigidity of a constitutional text. A closer look to the provisions also reveals that the FDRE constitution is more rigid with regard to the amendment of the rights and fundamental freedoms since it requires the majority votes' approval of all the States' Councils while the Nigerian Constitution only requires two-thirds of the States' approval.

Dear student, before we go to the next subsection where we will be looking into classifications of constitutions based on their content, let me put you few questions so that to check your understanding of our discussions so far.

Exercise I.

1. While I was visiting the Awuramba Community-a community known for hard work, gender balance and ethical generation build-ups, to say

the least-I posed a question I to the chief of the area, Zumra Nuru, by saying 'have you written all these rules of entitlements so that to be used by your generations to come?' he replied by saying 'I don't like these rules being written because it would be unreasonably burdening the generation to come since they are going to say that 'since our fathers had said this and that' and this very fact denies them the opportunity to make necessary changes as the social dynamism demands. Can you change the Bible? No you can't and it would be just like that if we write these rules that we are being governed by now and put them for the future.' Dear student, this is just my personal experience that one can draw up a lesson from, if s/he sees it the way I saw it. Without bothering yourself too much, are you able to draw any lesson that relates somehow with our foregoing discussion?

2. What is the relationship between written constitution and parliamentary sovereignty? Unwritten constitution and constitutional supremacy?

3. 'A rigid constitution is *ipso facto* stable while a flexible one works to the opposite.' Do you agree with this statement? Why/Why not?

3.2.3. Federal/Unitary Constitution

This is a classification of constitutional texts based on their content. A constitution may establish a unitary state structure whereby it establishes a central government with single legislative, executive and judicial organ which operate at the centre and regulate all the parts of the country with arms-length relations. Where the state structure established by the constitution is that of Federalism, then the constitution is named as federal constitution and its contents accordingly vary from that of a constitution that establishes a unitary State Structure.

The content of a federal constitution is basically engaged in power division between the central and the regional/state/cantonal governments and that is a very complicated assignment for the architects of such a constitution. It requires the understanding of the country's situations to a micro-level details and it has to address most of the sources of differences and those that could be put as common aspirations. By the differences, the regional governments' power shall be identified and by the common aspirations, the central government's powers and responsibilities will be defined.

When it comes to a constitution that is supposed to establish a single central government, the whole idea will be delimiting the government's power through the people's rights and freedoms, vertical division of power among the three organs of government and addressing the principles of checks and balances. We shall be discussing the differences of the two in much detail in our next module which is about forms, systems and organs of governments.

3.2.4. Republican/monarchical constitutions

A constitution may have content of establishing a republican government or to the contrary a monarchical one. Dear student, what is a republican government and what makes it different from that of a monarchical one? Let us see the meaning and nature of each of these so that you could understand the nature of the classification better.

'Republic' is derived from two Latin words-'res' and 'publica'- which means 'thing or affair of the public'. It is a form of government in which state is ruled by representatives elected by its populace. The term was originally applied to a form of government in which the leader is periodically appointed under a constitution; it was contrasted with governments in which leadership is hereditary. A republic may also be distinguished from direct democracy, though modern representative democracies are by and large republics.

Today it is understood to be a sovereign state ruled by representatives of a widely inclusive electorate. The term *republic* formerly denoted a form of government that was both free from hereditary or monarchical rule and had popular control of the state and a conception of public welfare. It is in this sense that we speak of the ancient Roman republic. Today, in addition to the above characteristics, a republic is a state in which all segments of society are enfranchised (freed) and in which the state's power is constitutionally limited. Traditionally a republic is distinguished from a true democracy in that the republic operates through a representative assembly chosen by the citizenry, while in a democracy the populace participates directly in governmental affairs. In actual practice, however, most modern representative governments are closer to a republic than a democracy. The United States is an example of a federal republic, in which the powers of the central government are limited and the

component parts of the nation, the states, exercise some measure of home rule. France is an example of a centralized republic, in which the component parts have more limited powers. The USSR, though in theory a grouping of federated republics and autonomous regions, was in fact a centralized republic until its breakup in 1991. As the name implies, the Federal Democratic Republic of Ethiopia is also an example of a republic.

Often Republics and Monarchies are described as mutually exclusive. Defining a republic as a *non-monarchy*, the most common short definition, is based on this idea. When we speak of Monarchy we refer to undivided sovereignty or rule by a single person, who is the permanent head of state. The term is now used to refer to countries with hereditary sovereigns. The monarch was the ideal head of the new nation-states of the 16th and 17th centuries; his powers were nearly unlimited, though in Britain Parliament was able to restrict the sovereign's freedom of action, particularly through the Magna Charta (1215) and the Bill of Rights (1689). The old idea that the monarch represented (within the limits of his dominions) the rule of God over all things culminated in the 17th century in the doctrine of the divine right of kings. The French Revolution gave absolute monarchy a crushing blow, and World War I effectively destroyed what remained of it, the rulers of Russia, Germany, and Austria-Hungary being held responsible for the war and postwar misery. The institution developed into the Constitutional Monarchy in Western Europe, though absolute (or near-absolute) monarchies continue to exist in the Middle East. So there are basically two types of monarchies; *absolute* and *constitutional monarchy*, while in the latter the monarch's power is backed by constitution whereas in the former the monarch remains to be above any text of law whatsoever. The institutionalization of

constitutional monarch in the Ethiopian politics had been tried at the final days of Emperor Haileselassie I, which however proved to be a futile attempt.

There have also been situations in which a dictator proclaimed himself Monarch of a previous republic, thus starting a *self-proclaimed monarchy* with no historical ties to a previous dynasty. The most famous example of this was general Napoleon Bonaparte who crowned himself first Emperor of France (formerly a kingdom) after legally assuming political control of the French Republic as First Consul for life; a blatant imitation of his empire was that of dictator Bokassa I in the very poor Central African Empire. Thus, Republican and monarchical constitutions are classified on their content of establishing either a dictatorship or popular government. Dear student, have you grasped the difference between these two types of constitutions? I hope you did and in case you still are unsure about any of the points it is always good to go back and read the specific point that you want to develop your confidence further.

3.2.5. Presidential/Parliamentary Constitutions

Again content wise, constitutions could be classified into presidential and parliamentarian ones based on the system of government they establish. Dear student, what is the difference between the two and in which category can you put the FDRE constitution? Following is an attempt to respond to these two questions.

A constitution may establish a *presidential/congressional* system of government which is a system of government where the executive branch exists and *presides* (hence the term presidential) separate from the legislature and is both unaccountable to, and cannot be dismissed in normal circumstances by the latter.

It owes its origins to the mediaeval monarchies of France and the nations of Great Britain, in which executive authority was vested in the Crown, not in parliament. The concept of separate spheres of influence of the executive and legislature was copied in the Constitution of the United States, with the creation of the office of President. While Great Britain have moved to a position where the executive is answerable to parliament, the United States maintains the concept of separation. This has given rise to criticism of the United States presidency, with accusations that the United States has an "Imperial Presidency". Others dispute the extent to which a real separation exists, referring to the concept of "separate institutions sharing power".

The shared features of all presidential systems could be summarized in the following way:

- The president is both *head of state* and *head of government* (ceremonial power and political/actual executive power are fused in one person-the president).
- The president has no formal relationship with the legislature. He is not a voting member, nor can he introduce bills. However, in systems such as that of the United States, the President has the power to veto acts of the legislature, and in turn a *supermajority* of legislators (by joint session of the two houses) may act to override the veto. This practice is derived from the British tradition of *Royal Assent*, in which an act of Parliament cannot come into effect without the assent of the Monarch (the Queen).
- The president has a *fixed term* of office. Elections are held at scheduled times, and cannot be triggered by a vote of confidence or other such

parliamentary procedures. However, many presidential systems incorporate provisions for the president's trial and subsequent removal from office by the legislature if he or she is found to have committed a crime.

- The executive branch is unipersonal. Members of the Cabinet serve at the pleasure of the president and must carry out the policies of the executive and legislative branches. However, presidential systems frequently require legislative approval of presidential nominations to the Cabinet as well as various governmental posts such as judges; while the president generally has the power to issue orders to members of the Cabinet, military, or any officer or employee of the Executive Branch, a president does not generally have the power to dismiss or give orders to judges.
- The president often has the power to *pardon* or *commute* sentences of convicted criminals, a power which, in systems with separate heads of state and heads of government, is generally given to the head of state.

One final point with this regard is that many dictators style themselves 'President', which constitutes at best dictatorship and not presidential system, regardless of the title used; likewise, some, perhaps even most, parliamentary democracies, notably *Israel* and *Ireland*, have a president with fairly little power, however these governments do not follow the model of the presidential system. We shall be coming back to the merits and demerits of this system of government while discussing systems of government in the forthcoming module. So a constitution that establishes a presidential system of government will have content typical of addressing these issues that the system requires.

A parliamentary system, also known as parliamentarianism, is distinguished by the executive branch of government being dependent on the direct or indirect support of the parliament, often expressed through a vote of confidence. Hence, there is no clear-cut separation of powers between the executive and legislative branches, leading to criticism from some that they lack checks and balances that is found in a presidential republic. Parliamentarianism is praised, relative to presidential system, for its flexibility and responsiveness to the public. It is faulted for its tendency to sometimes lead to unstable governments, as in the German Weimar Republic and the French Fourth Republic. Parliamentary systems usually have a clear differentiation between the head of government and the head of state, with the head of government being the prime minister or premier, and the head of state often being an appointed figurehead/president in our case or hereditary monarch with only minor or ceremonial powers. However, some parliamentary systems also have an elected president with many reserved powers as the head of state, providing some balance to these systems (called a parliamentary republic). As a general rule, constitutional monarchies have parliamentary systems. 57 countries over the world, together with Ethiopia, do follow this parliamentary system either with federal or unitary state structure. See the following table that outlines some of the important features of parliamentarian system of government.

Features of Parliamentary system:

- ❖ The executive branch of a parliamentary government is typically a cabinet,

- and headed by a prime minister who is considered the *head of government*.
- ❖ The prime minister and the ministers of the cabinet typically have their background in the parliament and may remain members thereof while serving in cabinet. The leader of the leading party or group of parties, in the parliament is often appointed as the prime minister.
 - ❖ In many countries, the cabinet, or single members thereof, can be removed by the parliament through a vote of no confidence. In addition, the executive can often dissolve the parliament and call extraordinary elections (see Article 60(1) of the FDRE Constitution).
 - ❖ Because the executive is directly related to the legislature, some argue the executive is actually more accountable than many fixed term presidential systems, as the executive, being linked to the legislative, can face an early election in the face of the aforementioned 'vote of no confidence'. In addition, because the executive is beholden to the legislature, it faces more direct questioning by opposition politicians than an executive would in a presidential system.
 - ❖ It can also be argued that it's relatively easier to pass legislation within a parliamentary system since the executive and the legislature are always controlled by the same party and since the executive has a greater ability to "snap the whip" and force indecisive party members into alignment.
 - ❖ Within presidential systems, the executive is often chosen independently from the legislature. If the executive is of a different party from those leading the legislature, then legislative activity can grind to a halt.

Dear student, we now break our discussion and keep the rest for the next part of your study, especially those issues relating to the anticipated advantages of this

system in contradistinction to the presidential system. Thus, a constitution that aims at establishing a parliamentary or presidential system has to have at the minimum the task of defining the relations of the executive and the legislature and where the balance of political power is tilted towards the legislature we call that system parliamentarianism and the constitution a parliamentarian constitution. If it, however, tends to make the president as the highest political power holder then it is a presidential system and its constitution a presidential constitution.

Dear Student, now we are almost through this chapter and the second module of your constitutional law I study. In fact we will have to also transfer the remaining part of this course for constitutional law II which basically aims at addressing one of the fundamental principles of constitutional law, i.e. fundamental rights and freedoms. We will be having a discussion in the first part of that course few of the remaining parts of this course too. Now, let me raise few exercise questions concerning the last three forms of classifications, classification of constitutions based on their content and wind up our course.

Exercise II.

1. What does a federal constitution do, which may not be done by a constitution that establishes a unitary state structure?

2. What is the difference between a republic and direct democracy?

3. What distinguishes the presidential system from that of the parliamentary system? Do you think federalism or unitary state structure is specifically suited to any of these systems of government?

Suggested Answers to Exercises in Module II

1. Chapter I.

Exercise I.

1. Generality means an expression by a constitutional rule only the principle from which all the other specific parliamentary enactments would be derived.
2. This is meant mainly to ensure stability/permanence of the constitution. This is to mean that where rules are designed in general terms they will leave a room for elaborative laws that are to follow them as implementing legislations and as a matter of addressing newly emerging circumstances that can, even if not specifically thought of at the time of drafting the constitution, adequately be accommodated within the generally stipulated provision without any further need to change same.
3. It is only a matter of scope. Otherwise, all laws have this feature of generality in common, whether constitutional or ordinary.

Exercise II.

3. As we have discussed in the text of this sub-topic, years do not count for a constitution to be considered as permanent or unstable. There is a need for the constitution to stand through the storms of changes of socio-political as well as economic nature. When we see the 1931 constitution, which was not made in a way that a modern constitution-making process requires at a minimum, was not operative for a long period after the Italian invasion and its being chased after five years by the support of the British Army. Then after few years of

disuse, it was thought that a revision was imminent in the unlashings of the then new happenings that we had discussed in our first module. Thus, it even remains to be arguable if it had lasted operative for 24 years, notwithstanding the irrelevance of the age of the constitution during which it was serving the regime that has once created it to reflect upon its own political agenda/ideologies.

4. Transitivity means the rebirth of the general principles of the constitution in their detailed version through the works of the legislative branch of the government that has been established on the basis of this same constitution.
5. Basically, this question has been answered indirectly by question number 1. So you may refer to it again.

Exercise III.

1. The supremacy of the constitution is being justified on such grounds as historical reasons, moral reasons and legal grounds.
2. There is a link between the generality of a constitutional provision with that of its stability since the fact that it is put in a general expression, it can encompass newly emerging circumstances through interpretation.

2. Chapter II.

Exercise I.

1. Supremacy of the constitution means that within the national jurisdiction all laws, customary practices and official decisions must remain under the constitution and if there is any inconsistency between any of these with that of the terms of the constitution, the latter shall trump always.

2. The constitution is supreme because of legal, historic as well as moral reasons discussed in chapter one of this module and it is good to once again to return back and refer meaning of these reasons.
3. As described under Article 9(4) of the FDRE Constitution, international treaties ratified by Ethiopia shall be integral parts of the laws of the land which means that they shall be considered as any one of the laws of the land. When we consider their status the question is rather tricky and must be considered from different perspectives. The first is to see to the organ that has the power to ratify a treaty which is provided under Article 55(12) of the constitution as the House of Peoples' Representatives. And this organ issues a proclamation and as such that treaty must be given at least a status of a proclamation. As far as the relation that should exist between the constitution and the international treaty is concerned, the supremacy clause must be consulted which says 'Any law...' which must be read to include both national as well as international law to be below the constitution. Thus, we see that an international treaty ratified by Ethiopia must be below the constitution. The second way of looking into the matter is from the perspectives of international treaties such as UDHR that relate to fundamental rights and freedoms of the people and their relationship with the constitution. Obviously such treaties will be above any other ordinary law though not clear if they still are above the constitution.
4. Where there is a contradiction between an international treaty and a provision of a proclamation, obviously the international treaty must be given precedence as it is a norm which has a wider range of acceptability within the international community and that standard has been accepted as part of the domestic law by the act of the parliament through ratification. But, this again remains to be arguable.

5. The monist approach, which is a principle in most of the civil law traditions, accepts international law as an integral part of the domestic jurisdiction which fact is usually addressed within the constitution. When it comes to most common law countries they opt to follow the dualist approach which is a principle that requires a prior legislation for an international law to have application within the domestic jurisdiction thereby considering international law as a separate layer as far as its applicable laws are concerned.
6. That kind of approach as is reflected under the FDRE and the Federal Republic of Nigerian constitution will ensure the stability of the constitution and specially when it comes to federal constitutions it will have the impact of guaranteeing the federated units with the existence of constitutional means of power use and transfer. This is usually meant to safeguard the presumably weaker federated units from the strong central government in the case of federalism established by centrifugal forces.
7. The US and the Federal Republic of Germany's constitutions provide for the supremacy of the federal laws in the country explicitly subjecting all laws of the federated states or Landers to fall under the federal constitution and other laws of this central government. When it comes to the FDRE constitution it only states the supremacy of the constitution and not the supremacy of the laws of the federal government over that of the regional laws which fact still remains disputable.
8. Were a country follows the monist approach to the application of international law on the domestic plane that means that they will have similar application within the national jurisdiction with other laws of the country so long as they are ratified by the national legislature, which is different when it comes to the dualist approach whereby international

laws will not be in and of themselves may not be applicable within the national plane unless they are issued as any of the ordinary laws of the country through parliamentary deliberation. Here it is important to note that ratification of an international treaty is different from the enactment of same through the normal legislative process.

Exercise II.

1. Sovereignty is absolute, indivisible and inalienable. This was what had been described by Jean Bodin with regard to the basic features of sovereignty in general. You have to refer back to the text of your readings if you still do not properly understand the meaning of each of these terms.
2. Sovereignty is absolute but only within the confines of the public sphere. For instance, a king, as constructed by Jean Bodin, is sovereign and will have an absolute prerogative to do whatever that pleases him so long as it relates with public affairs. As a human person, this king has his own private sphere within which he may not be able to exercise his sovereign power, as for instance, in his family matters, his relations in shops and barber. Thus, to that extent, sovereignty is not absolute.
3. These two expressions of the South African and Nigerian constitutions signify another form of sovereignty which is not treated under the provisions of the FDRE constitution. They describe territorial sovereignty while the FDRE constitution only describes popular sovereignty. In its Article 1 it provides that 'This Constitution establishes a Federal and Democratic State structure. Accordingly, the Ethiopian state shall be known as the Federal Democratic Republic of Ethiopia.' This might have been the proper place to describe the territorial sovereignty of the country

and it may not be rational to think that the two forms of sovereignties are mutually exclusive or otherwise identical.

4. It is not, though for its exercise there need to be democratic ways and means. Otherwise, just for the purpose of declaring popular sovereignty there is no need to be democratic anymore than writing it on paper.

Exercise III.

1. For Montesquieu separation of power will serve as a restraint on the government's excesses as all of the three functions would have to pass through three independent organs. This avoids the possibility for the government of being tyrannical.
2. Separation of powers is a political term that is used to describe the power distribution among the three organs of government, which are known popularly as the legislative, executive and judiciary. Separation of duties is, however, a non-political term that developed along with the political one which also is used in organizations that strive for efficiency through, inter alia, distribution of duties across their personnel thereby try to avoid unfair share of burdens of responsibilities.
3. For the meanings of functional, personal and institutional separations of powers refer your readings since it is clearly described there.
4. The separation of powers, even if it is a basic ground for reducing the chance of tyranny, it still remains to be a possibility within the assigned responsibilities themselves. For instance, if the judiciary's decision is not checked by the executive (for instance, for serious decisions that bear death penalty, the executive's approval is required before it is being implements in Ethiopia and in many other countries), and the legislature,

- it may make tyrannical decisions, which fact will also hold true for the other organs. Therefore, there is a need for checking those organs as to their proper discharge of their assigned responsibilities based on the principle of checks and balances.
5. There are inter-organ and intra-organ checking mechanisms within the organs themselves. The inter-organ checks and balances works by the exercise of checking power with one another; e.g. the legislature checking the executive, and the judiciary and the others also doing the same. The intra-organ checks and balances works in a bicameral legislature and within the judiciary whereby the single organ itself, due to its organizational structure, will have the opportunity to check itself by other part of its own type. For instance, the House of Representative's approved Bill in US Congress may be quashed by the Senate.
 6. The public through election, the opposition leaders through scrutinizing the works of the government, and the press through public criticism and by exposing facts and data to the public and the opposition leaders serve as checks on the government's exercise of power.
 7. The basic precondition is that they need to be free from political pressures and be ensured of their freedom of expression. If the bureaucracy is filled by politicians, which is true in Ethiopia, it will not be an organ that has the capacity to criticize as it is expected to promote the political agenda. Even if the bureaucracy is filled with non-politician professionals, if freedom of expression is in threat, again it may not serve as a checking organ, equally as a politicized bureaucracy can not.
 8. The Dec. 1982 constitution of the Republic of China, as new and innovative as it looks, still remains in its infancy stage. From what we know of the classical approach to government power distribution, it may

seem pragmatic to introduce the fourth and fifth branches as organs of checking the three organs independently. The examinations and control houses are meant to serve this purpose. If that is a real development we will see in the future when it is practically applied, since it is premature to judge it now.

Exercise IV.

1. It is a question that is arguable. One may argue on the basis of 'utilitarianism' saying that since this would fetch a greater benefit for the greater number of the public the state needs to intervene in such institutions' affairs so as to strengthen them and enable them remain functional within the public. What the constitution prohibits first of all is establishment of a state religion. And the second prohibition is intervention in religious matters such as for instance not to dictate them what to teach and what not to. It doesn't, however, prohibit support and assistance that may be extended for their continued existence so long as it is done in an impartial way, one of the ways of which is to do it for all. This is so because if it is done in a partial manner, it would amount to a disfavor for the others and creating a remote semblance of state religion. A complete rejection of this view may hold that interference, either positive or negative has been ruled out clearly by sub-article 3 of article 11. And the meaning of interference must be understood widely to include any form of interference that may or may not touch the dogmas of the religion. And the least contested interference, for these people is an intervention that in any manner is meant to promote religious practices. Thus, the issue is an unsettled one.

2. Civil religion or civic religion is used to refer to ritual expressions or patriotism of a sort practiced in all countries, not always including religion in the conventional sense of the word. Among such practices are the following:

- ❖ Crowds singing the national anthem at certain public gatherings;
- ❖ Parades or display of the national flag on certain patriotic holidays;
- ❖ Oaths of allegiance, such as the pledge of allegiance used by the Premier up on assuming office after election, for instance,
- ❖ Ceremonies concomitant to the inauguration of a president or the coronation of a king;
- ❖ Retelling exaggerated, one-sided, and simplified mythologized tales of Founding Fathers and other great leaders or great events (e.g. battles, mass migrations) in the past (this is also called in literatures as romantic nationalism);
- ❖ Monuments commemorating great leaders of the past or historic events;
- ❖ Monuments to dead soldiers or annual ceremonies to remember them;
- ❖ Expressions of reverence for the country of the constitution or the king;

The phrase "civil religion" was first discussed extensively by Jean-Jacques Rousseau in *The Social Contract*. Rousseau defined "civil religion" as a group of religious beliefs he believed to be universal, and which he believed governments had a right to uphold and maintain: belief in a deity, belief in an afterlife in which virtue is rewarded and vice punished; and

belief in religious tolerance. Beyond that, Rousseau affirmed that individuals' religious opinions should be beyond the reach of governments.

Exercise V.

1. Rule of law could mean first, rule according to law, which is to mean that no action/measure may be taken by government official which does not have some rule to base it on. Secondly, it means rule under the law, which also is to say that no official is above the law and the early days of absolutism of the monarchs no more holds right in the current democratic era. Third, rule of law may also be interpreted as rule according to a higher law. With this regard, we are saying that even if there is a promulgated law, it must be considered in light of the principles of fairness, justice and morality. In the civil law traditions, such higher values of justice, fairness and morality are supposed to be reflected under the constitution and thus when we say rule according to the higher law we are saying that all legislative, executive as well as judicial measures must be evaluated in light of the constitutional provisions and anything less will be considered not only unconstitutional but also against the principle of rule of law.
2. The judicial branch of the government is the one that interprets legislations and interpretations are subject to personal value judgments and biases. Accordingly, we may be tempted to say that judges routinely violate the principle of the rule of law as a matter of necessity. However, it is an argument which can not be held valid for the very reason that judges are not only expected to respect this principle but also to protect it. It will be contradictory in terms to say that they can only protect it and not themselves expected to respect it.

3. It is true that we can not come up with the substantive content of rule of law that can easily be identified and applied. This is because the principle is concerned on the practice of law and not on its design as such. However, the principle has its own agreed meaning and features which are more or less universal and accordingly it does not mean something for someone and another thing to another person.
4. By its very nature dictatorial rule excludes rule of law and rule according to law, rule under the law and rule according to higher law exactly means absence of dictatorship, among others.

Exercise VI.

1. The independence of the judiciary is justified, among other things, on the grounds of the separation of powers principle and as a means of creating trust or securing legitimacy in the public. The courts must be considered as organs that anyone may resort to obtain remedy for any infringement of his/her rights from any member of the society. Where there is subordination to the other political organs of the government or where the courts are considered as organs that have compromised their independence due to internally or externally motivated waves of influences, then the public would lose any wall to lean on in times of distresses resulting from rights infringements. At the worst, it will lose any trust and the appetite to seek judicial remedies, and rather opt for taking the law in its own hands to make justice for itself.
2. The two aspects of the independence of the judiciary are institutional independence and functional/decisional independence. By the former we mean that the judiciary shall be protected from any form of subordination institutionally to either of the organs of the government which essentially

- are supposed to operate under political ideals and programs. In the functional independence is an aspect of the judicial independence that tells us that the courts' functions must be dictated by the ideals of the law without any external as well as internal influencing factors.
3. This is one aspect of the institutional independence of the judiciary in the sense that where the jurisdiction of the courts is usurped by establishing other organs that are supposed to do the same job with that of the courts, then their institutional integrity will be in question as they would be rendered powerless. For instance, where the government establishes a tax authority within which there exists a tax adjudication tribunal with no possibility of revising its decisions through judicial review, it directly violates the institutional independence of the judiciary as its power has been stripped off to that extent. This same principle has been provided in the FDRE Constitution Article 78(4) in the following way: '*Special or ad hoc courts which take judicial powers away from the regular courts or institutions legally empowered to exercise judicial functions and which do not follow legally prescribed procedures shall not be established.*' This is, thus, meant to keep the institutional independence and integrity of the judiciary. Usurping the powers of the judiciary leaving it with only matters of nitty-gritty would tantamount to violating the principle of judicial independence.
 4. This again is a principle that reflects the functional independence of the judiciary and it specifically guards off the external factors that may one way or another affect the independence of the judiciary. Where the judges' tenure security is put in threat or the level of their salary falls below the bare minimum (like not more than 1000ETB), then it is quite probable that they may function properly and expect a decision solely guided by the law. For nearly similar stipulations under the FDRE Constitution, see

Article 79(4) of the constitution. As far as the level of wage and its influence on the judges' functional independence, for instance being corrupt, a lot of fresh debate is going on that basically are forwarded from two extreme angles; one is saying that low rate of payment should not be considered as a valid ground for going corrupt and thus not a factor for judicial independence, and the other just the opposite. Thus, you are warmly invited to join the debate and air your opinion to keep the debate going till a well reasoned and unanimous position is being attained, if at all that is attainable.

Chapter III.

Exercise I.

4. It is clear that the wise man was talking about the merits and demerits of written norms. In his view, reducing social norms to a written form makes them less amenable to change even if the contemporary and dynamic way of life so requires, and thus he says, I don't want to write these noble rules and let them stay as spoken entitlements in the mouth and memories of the wise men like him, which will be transferred in their unformatted way to the generation to come who will try to understand them in a way that they fit to the then contemporary situations.
5. Written constitution and parliamentary sovereignty can not exist together and neither can unwritten constitution and constitutional supremacy co-exist.
6. Not necessarily so as succinctly discussed by Bryce and if you haven't understood this issue you better go back and read that part of the text of this material.

Exercise II.

1. Essentially the unique task of a federal constitution is the horizontal power division between the central and the regional governments, together with the vertical power distribution among the three branches of the government. A constitution that establishes a unitary state structure is expected to make only the vertical power distribution among the legislature, the executive and the judiciary.
2. A republic is a form of government that favors popular rule and preferred way of participation of the populace in modern republics is through representative democracy. A republic is therefore usually contrasted with direct democracy where the public has direct participation in the day-to-day affairs of the government.
3. A presidential system is a system of government where the executive organ of the government, chaired by the president, has the highest political power without any form of subordination to the legislature, which is the case in the parliamentary system. In the latter it is the legislature, and not the executive that has the highest political power in the country. Much more detailed distinctions will be drawn up in our next module. But one point to bear in mind is that state structure is not in any way selective of any of the systems of government in the sense that either it is a unitary or federal state structure matters the least in adopting either the presidential or the parliamentary system of government though two-housed parliament is being favored in most federal state structures (for reasons to be discussed latter) than in unitary system.